

AKN4EU 4.2

PART 2 – Document types

History

Version 4.2	- Council acts and proposals (WP 6.1.1) - o PART 2.1 – 1 modify the introduction to cover the Council legal act. - o PART 2.1 – 2 include “attachment” as component of an EU act - o PART 2.1 – 3.5.2 add <placeholder> in <longTitle> - o PART 2.1 – 3.9.2 add <attachment> for the “Table of annexes” - o PART 2.1 – 3.9.3 add <attachment> for the “attachment” of an EU act - o PART 2.1 - 4.4 <mainBody>: ▪ replace "intermediar structures" by "core structures" and put it at the top of the list as it can arrive alone, without any high level structures. ▪ add <article> as possible core structure ; independent subject can be mixed with <article> ▪ remove the description for article and level and replace it by reference to the AKN4EU PART 1. - o add a PART 2.1 - 4.5 <attachments>, for the annex(es) of an annex - o PART 2.3 - 1 : add use case for the "attachment" of a legal text in Proposal for an act. - o PART 2.3 – 3.3 change to take into account the step in procedure is optional - o PART 2.3 - 4.5 : add the mark-up for a short Explanatory Memorandum without section. - INTERNAL_DOC_CONSIL with draft DEC (WP 6.1.2) - o add a PART 2.3 – 1.4 for the case ‘Council internal document with (draft) act - o in PART 2.5 – 3.5 Examples: add the case with a draft act. - o Add a PART 2.5 – 3.6.4 The Council internal document with (draft) act - Council IMPL_DEC and PROP (WP 6.1.3 - 6.1.4) - o PART 2.1 – 1 add Implementation Decision as act type - o PART 2.1 – 3.2 add “DEC_IMPL” as possible value for @name attribute - o PART 2.3 – 1 add Proposal for a Council Implementing Decision as use case - o PART 2.3 – 2 the <bill> can be a “DEC_IMPL” - o PART 2.3 – 3.4.5 add example of <longTitle> for Proposal for Council Implementing Decision . - o Add a PART 2.3 – 4.5.1 for “unnumbered paragraphs” before sections in Explanatory Memorandum + after PART 2.3 – 4.5.3, add an example of an overall <mainBody> with this case - OLP cover pages for EC documents (WP 6.2.4) - o modify PART 2.3 - 3.4.3 to cover the COM internal identifier . - o add a new PART 2.3 - 3.4.5 for corrigenda and addenda information - o add a new PART 2.3 – 3.4.6 for authentic language(s) information - o add a new PART 2.3 - 3.4.7 for package title - o modify PART 2.3 - 3.4.8 (previously PART 2.3 - 3.4.5) to introduce note in the <longTitle>. - o add a new PART 2.3 - 3.4.9 notes in <coverPage> - Joint PROP for a Council REG (WP 6.1.5) - o modify PART 2.3 - 3.4.3 to cover the COM number in the case of Joint Proposal. - o modify PART 2.3 - 3.4.2 to cover Joint Proposal - CONS Fragment of a bill (WP 6.1.6 ; 6.3.2)
-------------	--

	○ Add a new PART 2.5 – 5.2 Fragment(s) of a consolidated version of a document - Legacy structures on import (WP 6.3.1) ○ PART 2.1 – 4.4 modify the content of the section to introduce “crossheading” (<block name=“crossheading” and <crossheading> mark-up - Corrections ○ For any document types except <documentCollection>, in the section “overall organization”, remove “<coverPage> allowed but out of the scope of AKN4EU” ○ In PART 2.5 – 5.1 complete the structure (section PART 2.5 – 5.1.4 <preface>, PART 2.5 – 5.1.5 <body>, PART 2.5 – 5.1.6 <conclusions>) ○ PART 2.3 – 3.4.10: update the ELI URI for associated documents according to ELI URI for preparatory document specification
Version 4.1.1 Errata	- PART 2.3 – 6 New component in Proposal for an Act : the Legislatif Financial and Digital Statement in replacement of Legislative Financial Statement
Version 4.1.1	- New numbering of the sections of the specification, to include in the numbering, the PART number. - Remove the “_” as first character of @xml:id - Specification of the <i>Financial statement</i> part of the <i>Proposal for an Act</i> - Corrections ○ PART 2.2 – 4.4 Correction of the sentence regarding the <mainBody> of annexes of International Agreement. ○ p 41, in example replace ‘xml:id=“_REG”’ by ‘xml:id=“ANNEX”’

Table of content

PART 2.1	EU ACTS	9
PART 2.1 - 1	EU ACTS : USE CASES FOR AKN4EU	10
PART 2.1 - 2	AKN4EU MARK-UP OF THE EU ACTS: OVERALL STRUCTURE	11
PART 2.1 - 3	THE AKN4EU MARK-UP OF THE MAIN PART OF THE EU ACTS.....	13
PART 2.1 - 3.1	<act> or <bill>	13
PART 2.1 - 3.2	@name attribute	13
PART 2.1 - 3.3	Overall organization	14
PART 2.1 - 3.4	<meta>.....	15
PART 2.1 - 3.5	<preface>.....	16
PART 2.1 - 3.5.1	<container name="procedureIdentifier">	16
PART 2.1 - 3.5.2	<longTitle>	16
PART 2.1 - 3.5.3	<container name="eeaRelevance">	21
PART 2.1 - 3.6	<preamble>.....	22
PART 2.1 - 3.6.1	<formula>	22
PART 2.1 - 3.6.2	<citations>	22
PART 2.1 - 3.6.3	<recitals>	23
PART 2.1 - 3.7	<body>	24
PART 2.1 - 3.7.1	<article>	24
PART 2.1 - 3.7.2	<part><title><chapter><section><subsection>	26
PART 2.1 - 3.7.3	<clause>	27
PART 2.1 - 3.8	<conclusions>.....	27
PART 2.1 - 3.8.1	<references> section of the metadata for the <conclusions>	27
PART 2.1 - 3.8.2	Structure of <conclusions>	28
PART 2.1 - 3.9	<attachments>.....	29
PART 2.1 - 3.9.1	<attachment> for “annex”	29
PART 2.1 - 3.9.2	<attachment> for “Table of annex”	30
PART 2.1 - 3.9.3	<attachment> for “attachment”	30
PART 2.1 - 4	ANNEX	32
PART 2.1 - 4.1	Overall organization	32
PART 2.1 - 4.2	<meta>.....	32
PART 2.1 - 4.3	<preface>.....	33
PART 2.1 - 4.4	<mainBody>.....	34
PART 2.1 - 4.4.1	High level structures	34
PART 2.1 - 4.4.2	Core structures	34
PART 2.1 - 4.4.3	“crossheading”	35
PART 2.1 - 4.4.4	Low level structures	35
PART 2.1 - 4.5	<attachments>.....	35
PART 2.1 - 4.5.1	annex of an annex.....	35

PART 2.2	INTERNATIONAL AGREEMENT	37
PART 2.2 - 1	INTERNATIONAL AGREEMENTS : USE CASES FOR AKN4EU	38
PART 2.2 - 2	AKN4EU MARK-UP OF THE INTERNATIONAL AGREEMENT: OVERALL STRUCTURE	39
PART 2.2 - 3	THE AKN4EU MARK-UP OF THE MAIN PART OF THE INTERNATIONAL AGREEMENT	40
PART 2.2 - 3.1	<act> or <bill>	40
PART 2.2 - 3.2	@name attribute	40
PART 2.2 - 3.3	Overall organization	40
PART 2.2 - 3.4	<meta>	40
PART 2.2 - 3.5	<preface>	41
PART 2.2 - 3.5.1	<longTitle>	41
PART 2.2 - 3.6	<preamble>	42
PART 2.2 - 3.6.1	<heading>	42
PART 2.2 - 3.6.2	<recitals>	43
PART 2.2 - 3.7	<body>	43
PART 2.2 - 3.8	<conclusions>	43
PART 2.2 - 3.8.1	Place and date	43
PART 2.2 - 3.8.2	Signatory	44
PART 2.2 - 3.9	<attachments>	45
PART 2.2 - 3.10	<attachment>	45
PART 2.2 - 4	THE AKN4EU MARK-UP OF THE ANNEX	47
PART 2.2 - 4.1	Overall organization	47
PART 2.2 - 4.2	<meta>	47
PART 2.2 - 4.3	<preface>	48
PART 2.2 - 4.4	<mainBody>	48
PART 2.2 - 4.5	<attachment>	48

PART 2.3	PROPOSAL FOR AN ACT	49
PART 2.3 - 1	PROPOSAL FOR AN ACT : USE CASES FOR AKN4EU	50
PART 2.3 - 2	AKN4EU MARK-UP OF THE PROPOSAL FOR AN ACT: OVERALL STRUCTURE	53
PART 2.3 - 3	THE MARK-UP OF THE <DOCUMENTCOLLECTION>	55
PART 2.3 - 3.1	@name attribute	55
PART 2.3 - 3.2	Overall organization	55
PART 2.3 - 3.3	<meta>.....	55
PART 2.3 - 3.4	<coverPage>	57
PART 2.3 - 3.4.1	<container name="logo">.....	57
PART 2.3 - 3.4.2	<container name="actingEntity">	57
PART 2.3 - 3.4.3	<container name="mainDoc">	59
PART 2.3 - 3.4.4	<container name="procedureIdentifier">	61
PART 2.3 - 3.4.5	<container name="corrigendum"> and <container name="addendum">	61
PART 2.3 - 3.4.6	<container name="packageTitle">	62
PART 2.3 - 3.4.7	<longTitle>	63
PART 2.3 - 3.4.8	Notes in <coverPage>	64
PART 2.3 - 3.4.9	<container name="eeaRelevance">	65
PART 2.3 - 3.4.10	<container name="associatedReferences">.....	66
PART 2.3 - 3.4.11	<container name="mainDocLanguage">	66
PART 2.3 - 3.5	<collectionBody>.....	67
PART 2.3 - 3.5.1	<component> for the Explanatory Memorandum.....	67
PART 2.3 - 3.5.2	<component> for legal text	67
PART 2.3 - 3.5.3	<component> for the Legislative Financial Statement	67
PART 2.3 - 4	THE MARK-UP OF THE EXPLANATORY MEMORANDUM	68
PART 2.3 - 4.1	@name attribute	68
PART 2.3 - 4.2	Overall organization	68
PART 2.3 - 4.3	<meta>.....	68
PART 2.3 - 4.4	<preface>.....	68
PART 2.3 - 4.5	<mainBody>.....	69
PART 2.3 - 4.5.1	The “unnumbered paragraph(s)” before the “section(s)”	69
PART 2.3 - 4.5.2	The section: <tblock>	69
PART 2.3 - 4.5.3	The specific content of a section: <blockContainer>	69
PART 2.3 - 5	THE MARK-UP OF THE LEGAL TEXT	72
PART 2.3 - 5.1	@name attribute	72
PART 2.3 - 5.2	Overall organization	72
PART 2.3 - 6	THE MARK-UP OF THE LEGISLATIVE FINANCIAL AND DIGITAL STATEMENT AND OF THE LEGISLATIVE FINANCIAL STATEMENT	73
PART 2.3 - 6.1	@name attribute	73
PART 2.3 - 6.2	Overall organization	73
PART 2.3 - 6.3	<meta>.....	73
PART 2.3 - 6.4	<preface>.....	73
PART 2.3 - 6.5	<mainBody>.....	74
PART 2.3 - 6.5.1	Core structure: element <level>	74
PART 2.3 - 6.5.2	Low level structures.....	75

PART 2.4	EP TEXTS ADOPTED	78
PART 2.4 - 1	EP TEXT ADOPTED : USE CASES FOR AKN4EU	79
PART 2.4 - 1.1	Case 1: Legislative resolution alone.....	79
PART 2.4 - 1.2	Case 2: Legislative resolution and Consolidated text in the context of an agreement with the Council 80	
PART 2.4 - 2	AKN4EU MARK-UP OF THE EP TEXTS ADOPTED: OVERALL STRUCTURE	81
PART 2.4 - 3	THE MARK-UP OF THE <DOCUMENTCOLLECTION>	82
PART 2.4 - 3.1	@name attribute	82
PART 2.4 - 3.2	<meta>.....	82
PART 2.4 - 3.3	<coverPage> and <preface>	84
PART 2.4 - 3.3.1	<coverPage>	84
PART 2.4 - 3.3.2	<preface>	85
PART 2.4 - 3.4	<collectionBody>.....	86
PART 2.4 - 3.4.1	<component> for the Legislative Resolution	86
PART 2.4 - 3.4.2	<component> for the Consolidated text abridged	86
PART 2.4 - 4	THE MARK-UP OF THE LEGISLATIVE RESOLUTION	88
PART 2.4 - 4.1	@name attribute	88
PART 2.4 - 4.2	Overall organization	88
PART 2.4 - 4.3	<meta>.....	88
PART 2.4 - 4.4	<preface>.....	89
PART 2.4 - 4.5	<preamble>.....	91
PART 2.4 - 4.6	<body>	92
PART 2.4 - 5	THE MARK-UP OF THE CONSOLIDATED TEXT ABRIDGED	93
PART 2.4 - 5.1	@name attribute	93
PART 2.4 - 5.2	Overall organization	93
PART 2.4 - 5.3	<meta>.....	93
PART 2.4 - 5.4	<preface>.....	94
PART 2.4 - 5.4.1	<container name="mainDoc">	94
PART 2.4 - 5.4.2	<longTitle>	94
PART 2.4 - 5.4.3	<container name="abridgedTextComment">	95
PART 2.4 - 5.5	<preamble>.....	95
PART 2.4 - 5.6	<body>	96

PART 2.5	COUNCIL DOCUMENTS	97
PART 2.5 - 1	COUNCIL DOCUMENTS: USE CASES	98
PART 2.5 - 1.1	<i>Council internal documents in general</i>	98
PART 2.5 - 1.2	<i>Statement of the Council's Reasons</i>	100
PART 2.5 - 1.3	<i>Position of the Council</i>	100
PART 2.5 - 1.4	<i>Council internal document with (draft) act</i>	101
PART 2.5 - 2	AKN4EU MARK-UP OF THE COUNCIL DOCUMENTS: OVERALL STRUCTURE	102
PART 2.5 - 3	THE MARK-UP OF THE <DOCUMENTCOLLECTION>	103
PART 2.5 - 3.1	<i>The @name attribute</i>	103
PART 2.5 - 3.2	<meta>	103
PART 2.5 - 3.3	<coverPage>	105
PART 2.5 - 3.3.1	<container name="logo">	106
PART 2.5 - 3.3.2	<container name="actingEntity">	106
PART 2.5 - 3.3.3	<container name="mainDoc">	106
PART 2.5 - 3.3.4	<container name="procedureIdentifier">	107
PART 2.5 - 3.3.5	<container name="mainDocReference">	107
PART 2.5 - 3.3.6	<container name="subjectMatter">	108
PART 2.5 - 3.3.7	<container name="distribution">	108
PART 2.5 - 3.3.8	<container name="docHeader">	109
PART 2.5 - 3.4	<collectionBody>	112
PART 2.5 - 3.4.1	<component>	112
PART 2.5 - 3.5	<i>Examples</i>	112
PART 2.5 - 3.5.1	The general case of Council internal document	113
PART 2.5 - 3.5.2	Statement of Council's reasons	115
PART 2.5 - 3.5.3	The Position of the Council	116
PART 2.5 - 3.5.4	The Council internal document with (draft) act	118
PART 2.5 - 4	THE MARK-UP OF THE 'COUNCIL EXPLANATORY' SUBDOCUMENT	120
PART 2.5 - 4.1	<i>The @name attribute</i>	120
PART 2.5 - 4.2	<i>Overall organization</i>	120
PART 2.5 - 4.3	<meta>	120
PART 2.5 - 4.4	<preface>	120
PART 2.5 - 4.5	<mainBody>	121
PART 2.5 - 4.5.1	The structures	121
PART 2.5 - 4.5.2	The representation in AKN4EU	121
PART 2.5 - 5	THE MARK-UP OF THE CNSDOCANN	124
PART 2.5 - 5.1	<i>Act or bill</i>	125
PART 2.5 - 5.1.1	The @name attribute	125
PART 2.5 - 5.1.2	Overall organization	125
PART 2.5 - 5.1.3	<meta>	126
PART 2.5 - 5.1.4	<preface>	126
PART 2.5 - 5.1.5	<body>	126
PART 2.5 - 5.1.6	<conclusions>	126
PART 2.5 - 5.2	<i>Fragment(s) of consolidated version of a document</i>	127
PART 2.5 - 5.2.1	Introduction	127
PART 2.5 - 5.2.2	The AKN4EU content of the CNSDocANN	127
PART 2.5 - 5.3	<i>Document (Council conclusions for example)</i>	130
PART 2.5 - 5.3.1	Overall organization	130
PART 2.5 - 5.3.2	<meta>	130
PART 2.5 - 5.3.3	<preface>	130
PART 2.5 - 5.3.4	<mainBody>	131
PART 2.5 - 5.3.5	Examples	132

PART 2.1 EU acts

PART 2.1 - 1 EU acts : use cases for AKN4EU

The AKN4EU baseline version contains the following use cases for the EU acts:

- Decision
- Directive
- Regulation
- Implementing Decision

This covers **Acts** that are adopted following the **OLP (= Ordinary Legislative Procedure)** as well as their drafting version during the legislative process but also acts that are adopted following other procedures, like the Council legal acts. The structure of an EU act, according to the CoV is the following

Title of the

preamble
citations

recitals

Enacting terms
article

annex

Direct applicability
signature
signatory

REGULATION (EU) No 1384/2014 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 18 December 2014 on the tariff treatment for goods originating in Ecuador THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION, Having regard to the Treaty on the Functioning of the European Union, and in particular Article 207(2) thereof, Having regard to the proposal from the European Commission, After transmission of the draft legislative act to the national parliaments, Acting in accordance with the ordinary legislative procedure⁽¹⁾, Whereas: (1) Article 329 of the Trade Agreement between the European Union and its Member States, of the one part, and Colombia and Peru, of the other part⁽²⁾ (the Agreement) signed on 26 June 2012, provides for the possible accession to the Agreement of other Member Countries of the Andean Community. (2) Following the request by Ecuador to restart negotiations with the Union to become a Party to the Agreement, negotiations were conducted between the Union and Ecuador in 2014. As a result of those negotiations, a Protocol of Accession by Ecuador to the Agreement (the Protocol of Accession) was initiated on 12 December 2014. (3) Following the initialling of the Protocol of Accession, an interim reciprocal arrangement is necessary for the establishment of a free-trade area with Ecuador in order to avoid unnecessary trade disruption. Therefore, as from 1 January 2015, customs duties applied on the date of initialling of the Protocol of Accession should not be increased nor new customs duties applied to goods originating in Ecuador. (4) This Regulation therefore provides for the maintenance of the level of duty rates applicable to goods originating in Ecuador on 12 December 2014 as from 1 January 2015. (5) The tariff treatment provided for under this Regulation is without prejudice to measures taken under Council Regulations (EC) No 260/2009⁽³⁾, (EC) No 597/2009⁽⁴⁾ or (EC) No 1225/2009⁽⁵⁾. (6) As a condition for the application of the tariff treatment provided for under this Regulation, Ecuador should abstain from introducing new duties or charges having equivalent effect and new quantitative restrictions or measures having equivalent effect for imports from the Union, or from increasing existing levels of duties or charges or from introducing any other restrictions from 12 December 2014. (7) To ensure that Ecuador maintains its commitment to core international conventions on human and labour rights, environmental protection and good governance, the application of this Regulation should be subject to the continued and effective implementation of those conventions by Ecuador. (8) In order to prevent any risk of fraud, the entitlement to benefit from the tariff treatment provided for under this Regulation should be conditional on compliance by Ecuador with the relevant rules of origin of goods and the procedures related thereto. (9) It is necessary to provide for the application of Common Customs Tariff duties with regard to any goods originating in Ecuador which cause, or threaten to cause, serious difficulties to Union producers of like or directly competing products, subject to an investigation by the Commission. ⁽¹⁾ Position of the European Parliament of 17 December 2014 (not yet published in the Official Journal) and decision of the Council of 18 December 2014. ⁽²⁾ OJ L 354, 21.12.2012, p. 3. ⁽³⁾ Council Regulation (EC) No 260/2009 of 26 February 2009 on the common rules for imports (OJ L 84, 31.3.2009, p. 1). ⁽⁴⁾ Council Regulation (EC) No 597/2009 of 11 June 2009 on protection against subsidised imports from countries not members of the European Community (OJ L 185, 18.7.2009, p. 49). ⁽⁵⁾ Council Regulation (EC) No 1225/2009 of 30 November 2009 on protection against dumped imports from countries not members of the European Community (OJ L 343, 22.12.2009, p. 51).	(10) In the event of failure to comply with any of the conditions laid down in this Regulation, implementing powers should be conferred on the Commission to suspend temporarily, in whole or in part, the tariff treatment provided for herein. Those powers should be exercised in accordance with Regulation (EU) No 182/2011 of the European Parliament and of the Council⁽⁶⁾. (11) This Regulation should be applied until six months after the entry into force or date of provisional application of the Protocol of Accession, and until 31 December 2016 at the latest, HAVE ADOPTED THIS REGULATION: Article 1 Definitions For the purposes of this Regulation: (a) 'tariff treatment' means the customs duties and treatment applied to goods originating in Ecuador as provided for by Article 2; (b) 'Common Customs Tariff duties' means the duties specified in Part II of Annex I to Council Regulation (EEC) No 2658/87⁽⁷⁾, except those duties established as part of tariff quotas; (c) 'goods originating in Ecuador' means products that conform to the origin requirements under Title II, Chapter 2 of Council Regulation (EEC) No 2913/92⁽⁸⁾ and, depending on the tariff treatment sought pursuant to Article 2 of this Regulation, Title IV, Chapter 1 or Title IV, Chapter 2, Section 1 of Commission Regulation (EEC) No 2454/93⁽⁹⁾. Article 2 Tariff treatment 1. Customs duties applied to goods originating in Ecuador on 12 December 2014 shall not be increased and no new customs duties introduced after that date shall be applied to those goods. 2. The tariff treatment provided for in paragraph 1 shall be applied without prejudice to any measures taken under Regulations (EC) No 260/2009, (EC) No 597/2009 or (EC) No 1225/2009. Article 3 Conditions for entitlement to the tariff treatment Entitlement to benefit from the tariff treatment set out in Article 2 shall be subject to: (a) Ecuador complying with the rules of origin referred to in Article 1(c) and the procedures related thereto, including, as appropriate, the effective administrative cooperation provisions applicable on 12 December 2014; (b) Ecuador abstaining from introducing new duties or charges having equivalent effect and new quantitative restrictions or measures having equivalent effect for imports from the Union, or from increasing existing levels of duties or charges or from introducing any other restrictions from 12 December 2014; (c) maintaining the ratification and ensuring effective implementation on the part of Ecuador of the covenants, conventions and protocols listed in the Annex, and accepting without reservation the reporting requirements, regular monitoring and review of Ecuador's implementation record in accordance with the provisions of the covenants, conventions and protocols it has ratified; (d) Ecuador cooperating with the Commission and providing all information necessary to assess Ecuador's compliance with the requirements in point (c); (e) Ecuador conducting continuous efforts to sign and ratify the Protocol of Accession. ⁽⁶⁾ Regulation (EU) No 182/2011 of the European Parliament and of the Council of 16 February 2011 laying down the rules and general principles concerning mechanisms for control by Member States of the Commission's exercise of implementing powers (OJ L 53, 28.2.2011, p. 13). ⁽⁷⁾ Council Regulation (EEC) No 2658/87 of 23 July 1987 on the tariff and statistical nomenclature and on the Common Customs Tariff (OJ L 256, 7.9.1987, p. 1). ⁽⁸⁾ Council Regulation (EEC) No 2913/92 of 12 October 1992 establishing the Community Customs Code (OJ L 302, 19.10.1992, p. 1). ⁽⁹⁾ Commission Regulation (EEC) No 2454/93 of 2 July 1993 laying down provisions for the implementation of Council Regulation (EEC) No 2913/92 establishing the Community Customs Code (OJ L 255, 11.10.1993, p. 1).
Article 6 Committee procedure 1. For the implementation of Article 4 of this Regulation, the Commission shall be assisted by the Customs Code Committee established by Article 248a of Regulation (EEC) No 2913/92. That committee shall be a committee within the meaning of Regulation (EU) No 182/2011. 2. Where a reference is made to this paragraph, Article 5 of Regulation (EU) No 182/2011 shall apply. Article 7 Entry into force, application and expiry This Regulation shall enter into force on the day following that of its publication in the <i>Official Journal of the European Union</i>. It shall apply from 1 January 2015. This Regulation shall expire six months after the Protocol of Accession enters into force or is applied provisionally, or on 31 December 2016, whichever occurs first. The Commission shall publish a notice in the <i>Official Journal of the European Union</i> in the event that this Regulation ceases to apply before 31 December 2016. This Regulation shall be binding in its entirety and directly applicable in all Member States. Done at Brussels, 18 December 2014. For the European Parliament The President M. SCHULZ For the Council The President S. GOZI	ANNEX COVENANTS, CONVENTIONS AND PROTOCOLS REFERRED TO IN ARTICLE 3(C) CORE HUMAN AND LABOUR RIGHTS UN/ILO CONVENTIONS - Convention on the Prevention and Punishment of the Crime of Genocide (1948) - International Convention on the Elimination of All Forms of Racial Discrimination (1965) - International Covenant on Civil and Political Rights (1966) - International Covenant on Economic, Social and Cultural Rights (1966) - Convention on the Elimination of All Forms of Discrimination Against Women (1979) - Convention Against Torture and Other Cruel, Inhuman and Degrading Treatment or Punishment (1984) - Convention on the Rights of the Child (1989) - Convention concerning Forced or Compulsory Labour, No 29 (1930) - Convention concerning Freedom of Association and Protection of the Right to Organise, No 87 (1948) - Convention concerning the Application of the Principles of the Right to Organise and to Bargain Collectively, No 98 (1949) - Convention concerning Equal Remuneration for Men and Women Workers for Work of Equal Value, No 100 (1951) - Convention concerning the Abolition of Forced Labour, No 105 (1957) - Convention concerning Discrimination in Respect of Employment and Occupation, No 111 (1958) - Convention concerning Minimum Age for Admission to Employment, No 138 (1973) - Convention concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labour, No 182 (1999)

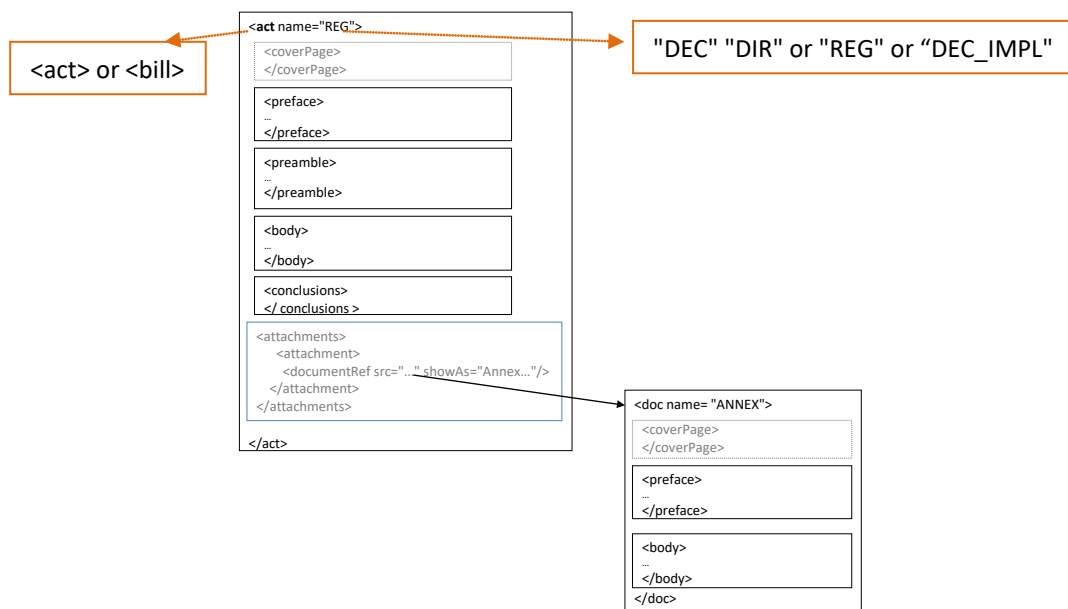
PART 2.1 - 2 AKN4EU mark-up of the EU acts: overall structure

The main part of an EU act, containing the title of the document, the preamble, the enacting terms and the signatures is in one AKN4EU file. It is marked as an <act> or a <bill> (see after).

An EU act can contain one or more annex(es)¹. Annexes can be embedded at multiple levels, so it is possible to have, e.g., an annex to annex. The following rules apply:

- For each top-level annex, there must exist one <attachment> element inside the <attachments> section of the <act> or the <bill> ;
- For each embedded annex, there must exist an <attachment> element inside the <attachments> section of the higher-level annex;
- The content of each annex MUST be in a specific AKN4EU file;
- Each annex is marked with the element <doc>.

Sometimes, the annexes are preceded by a special component “List of annexes”. The first annex after it is numbered “1”.



¹ Depending on the context, an annex may represent different realities, such as ANNEX, APPENDIX etc. In the description below, 'annex' is used in a generic sense, covering all these cases.

An EU act or bill can also have attachment(s) containing other legal acts.

These are attachments and not annexes.

In this case, the following rules apply:

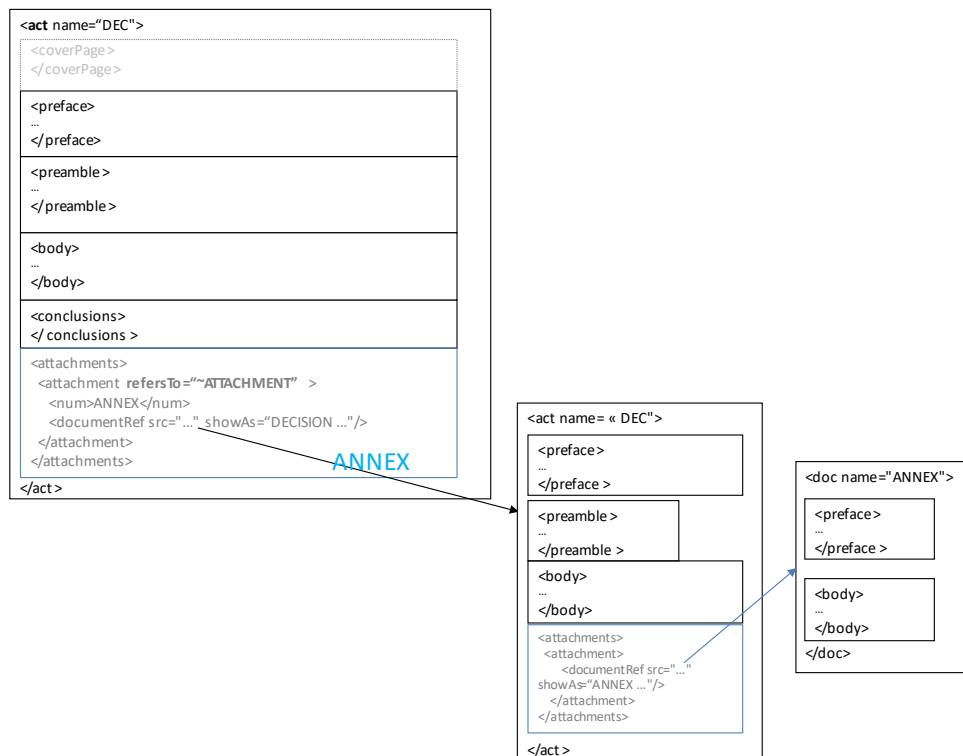
- For each “attachment”, there MUST exist an <attachment> element inside the <attachments> section of the <act> or the <bill> where it is attached.
- This <attachment> MUST have a @refersTo that points to an entry of the <references> part of the metadata that refers the authority code “ATTACHMENT”².

This attribute is essential to differentiate an ‘annex’ from an ‘attachment’.

In a further step of the legislative workflow, the attachment can be detached as it is not part of the EU act.

- When an attachment to an act is labelled with a word like “ANNEX”, “ATTACHMENT” etc., this word is put inside a <num> element of the corresponding <attachment> element
- The content of each attachment MUST be in a specific AKN4EU file;

Each attachment is marked with an <act>, <bill>, <doc> depending on the document type of the attachment



² Entry of the authority table 'resource-type'.

PART 2.1 - 3 The AKN4EU mark-up of the main part of the EU acts

PART 2.1 - 3.1 <act> or <bill>

Akoma Ntoso uses two elements to mark up a legal text:

- <act>, for the final version that is published in the Official Journal;
- <bill>, for the main part of any draft version of the legal text during the legislative/legal process.

Accordingly, in AKN4EU,

- Decisions, Directives, Regulations and Implementing Decisions, when published in the Official Journal, are marked as <act>
- A draft version of what may become, at the end of the legislative/legal procedure, an act, is marked as a <bill>.

It can be the legal text proposed in the *Proposal for a Decision*, the *Proposal for a Directive*; the *Proposal for a Regulation* or the *Proposal for an Implementing Decision*, issued from the Commission and that initiates the Legislative/legal Procedure or it can be a Draft act (Draft Decision for example) inside a Council internal document.

Similarly, this description is applicable to the 'EP Consolidated text' which marks the Position of the European Parliament regarding the legal text included in the *Proposal from the Commission*. It is, in fact, a new version of this legal text, in form of a text consolidating all amendments adopted by the Parliament (with all the changes appropriately marked)

It is also applicable to the Position of the Council for the version of the drafted legal text it contains.

PART 2.1 - 3.2 @name attribute

<act> or <bill> MUST have a @name attribute, used in AKN4EU to define the type of act.

In AKN4EU, the value of this attribute MUST be the code of an entry of the Named Authority List 'Resource type' (<https://publications.europa.eu/en/web/eu-vocabularies/at-dataset/-/resource/dataset/resource-type>).

The following values for the attribute @name are used:

Value of the attribute @name for <act> or <bill>	Description
"DEC"	- Decision - Any draft version of a <i>Decision</i> .
"DIR"	- Directive - Any draft version of a <i>Directive</i> .
"REG"	- Regulation - Any draft version of a <i>Regulation</i> .
"DEC_IMPL"	- Implementing Decision - Any draft version of an Implementing Decision

PART 2.1 - 3.3 Overall organization

<act> and <bill> for EU acts have the following structure:

- <meta> mandatory (metadata)
- <preface> mandatory
- <preamble> mandatory
- <body> mandatory
- <conclusions> mandatory
- <attachments> mandatory if there is one or more annex(es) or attachments

CoV terminology	Example	AKN4EU elements
Regulation		<act name="REG"> <meta>
Title of the document	REGULATION (EU) 2017/1938 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of 25 October 2017 concerning measures to safeguard the security of gas supply and repealing Regulation (EU) No 994/2010 (Text with EEA relevance)	<preface> <longTitle>
preamble	THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION, Having regard to the Treaty on the Functioning of the European Union, and in particular Article 194(2) thereof, Having regard to the proposal from the European Commission, ... Acting in accordance with the ordinary legislative procedure (2), Whereas: (1) Natural gas (gas) remains an essential component of the energy supply of the Union. A large proportion of such gas is imported into the Union from third countries. ... HAVE ADOPTED THIS REGULATION:	<preamble>
enacting terms	Article 1 Subject matter This Regulation establishes provisions aiming to safeguard the security of gas supply in the Union by ensuring the ... This Regulation shall be binding in its entirety and directly applicable in all Member States.	<body>
signature	Done at Strasbourg, 25 October 2017. <i>For the European Parliament</i> <i>For the Council</i> <i>The President</i> <i>The President</i> A. TAJANI M. MAASIKAS	<conclusions>

PART 2.1 - 3.4 <meta>

The following metadata are required:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata **MUST** be set to "true".
- In <references>, a <TLCReference name="docType"> **MUST** exist, with the information on the entry in the authority table "resource-type" corresponding to the value of the @name attribute of the <documentCollection> (the value of the attribute @name **MUST** be the authority code)

Example



```
<act name="REG">
  <meta>
    ...
    <references source="~...">
      ...
      <TLCReference xml:id="REG" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/REG"
        showAs="Regulation"/>
      ...
    </references>
  </meta>
  ...
</act>
```

- In <references>, a <TLCReference name="procedureReference"> **SHOULD** exist, if the document is associated to a legislative/legal procedure (MANDATORY when a procedure is defined in the <preface>). As fourth indication of the @shortForm attribute, the step inside the legislative/legal procedure **CAN** be indicated if this information exists for the current legislative/legal procedure.

Example

```
<TLCReference xml:id="procedure_2011_458" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2011_458" showAs="2011/0458 (COD) "
  shortForm="2011/458/COD/RDG1"/>
```

- A corresponding <TLCTProcess> **CAN** exist to make an explicit link between the step inside the legislative procedure and the corresponding entry in the authority table:

```
<TLCTProcess xml:id="RDG1"
  href="http://publications.europa.eu/resource/authority/procedure-phase/RDG1"
  showAs="First reading"/>
```

With the following example (No <TLCTProcess> is needed):

```
<TLCReference xml:id="procedure_2020_165" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2020_165" showAs="2020/0165 (CNS) "
  shortForm="2020/165/CNS"/>
```

PART 2.1 - 3.5 <preface>

The <preface> can contain the following containers:

PART 2.1 - 3.5.1 <container name="procedureIdentifier">

This container is only available for <bill> when exists a legislative/legal procedure. It contains the identifier and the type of the legislative/legal procedure.

The container contains a <p> element. The identifier and the type of the legislative/legal procedure MUST be inside a <docketNumber> element.

The <docketNumber> element MUST have a @refersTo attribute that points to the corresponding <TLReference name="procedureReference">

Example

2016/0411 (COD)

Will be marked as the following

```
<meta>
  <TLReference xml:id="procedure_2016_411" name="procedureReference"
    href="http://eur-lex.europa.eu/procedure/EN/2016_411"
    showAs="2016/0411 (COD)" shortForm="2016/411/COD/RDG1"/>
</references>
</meta>
...
<container name="procedureIdentifier">
  <p><docketNumber refersTo="~procedure_2016_411">2016/0411 (COD)</docketNumber></p>
</container>
```

PART 2.1 - 3.5.2 <longTitle>

The <longTitle> is used to mark the title of the document.

The <longTitle> MUST contain only one <p> that can contain the following elements:

- <docStage>
- <docType>
- <docPurpose>

<placeholder> can also be present when needed.

PART 2.1 - 3.5.2.1 <docStage>

<docStage> CAN ONLY be used for <bill>.

It allows to mark the part of the type of the document that is related to the type of draft version.

For example

Proposal for a

REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

amending Regulation (EC) No 1008/2008 on common rules for the operation of air
services in the Community


```

<longTitle>
  <p><docStage>Proposal for a</docStage>
  ... </p>
</longTitle>
...

```

<docStage> CAN contain

- a <docType>.
The <docType> inside the <docStage> indicates the role of the draft in the legislative/legal procedure.
- A <date> if there is a date in the text. The <date> element has a mandatory attribute @date.

Example

Position of the European Parliament adopted at first reading on 5 July 2018 with a view to the adoption of Regulation (EU) 2018/... of the European Parliament and of the Council on the European *Union* Agency for the operational management of large-scale IT systems in the area of freedom, security and justice (*eu-LISA*), and amending Regulation (EC) 1987/2006 and Council Decision 2007/533/JHA and repealing Regulation (EU) 1077/2011*

Will be marked as

```

...
<longTitle>
  <p><docStage><docType>Position of the European Parliament</docType> adopted at first
  reading on <date date="2018-07-05">5 July 2018</date> with a view to the adoption
  of</docStage>
  ...
</p>
</longTitle>
...

```

PART 2.1 - 3.5.2.2 <docType>

<docType> MUST be used to mark the line containing the type of the <act> or <bill>.

The mandatory attribute @refersTo points to the corresponding <TLCReference name="docType">.

In <act>, the line containing the type of the act contains the number of the act.

This information MUST be marked with the element <docNumber>.

Example

REGULATION (EU) 2017/2393 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

Will be marked as

```

<meta>
...
  <TLCReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>...
</meta>
...
<longTitle>
  <p><docType refersTo="~REG">REGULATION <docNumber>(EU) 2017/2393</docNumber> OF THE
  EUROPEAN PARLIAMENT AND OF THE COUNCIL</docType>

```

During the drafting, the number of the act is not defined. If indication of the number is put in the text, it should be in a <placeholder> element.

Example

Regulation (EU) 2017/... of the European Parliament :

should be marked as

```
<meta>
...
  <TLReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>...
</meta>
<docType refersTo="~REG">Regulation <placeholder>(EU) 2017/...</placeholder> of the
European Parliament ...</docType>
```

Example with a proposal for a Council act:

Proposal for a
COUNCIL REGULATION
 fixing for 2020 the fishing opportunities for certain fish stocks and groups of fish stocks,
 applicable in Union waters and, for Union fishing vessels, in certain non-Union waters

Will be marked as

```
<meta>
...
  <TLReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>...
</meta>

<docType refersTo="~REG">COUNCIL REGULATION</docType>
```

Example with a Council act:

COUNCIL DECISION (EU) 2021/1249

Will be marked as

```
<meta>
...
  <TLReference xml:id="DEC" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/DEC"
    showAs="DECISION"/>...
</meta>

<docType refersTo="~DEC">COUNCIL DECISION <docNumber>(EU) 2021/1249</docNumber></docType>
```

Example of a Draft Council decision

POLITICAL AND SECURITY COMMITTEE DECISION
(CFSP) 2020/...

of ...

on the appointment of the EU Mission Force Commander
of the European Union military mission
to contribute to the training of Somali security forces (EUTM Somalia)
and repealing Decision (CFSP) 2019/1264
(EUTM Somalia/1/2020)

```
<meta>
...
  <TLReference xml:id="DEC" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/DEC"
    showAs="DECISION"/>...
</meta>

<docType refersTo="~DEC">POLITICAL AND SECURITY COMMITTEE DECISION</docType>
```

PART 2.1 - 3.5.2.3 <date>

The <date> element is used to mark the date of the act.

PART 2.1 - 3.5.2.4 <docPurpose>

This element is MANDATORY for <act> or <bill> that are EU acts. It contains the subject of the act.

The <docPurpose> SHOULD have the following inline elements when it contains reference to one or more another act:

- <ref>
Marks the reference to an act mentioned in the subject of the current act.
The mandatory attribute @href contains the ELI identifier of that act.
- <mref>
The fragment of the <docPurpose> that is common to multiple references to an act.

PART 2.1 - 3.5.2.5 Examples of <longTitle>

Proposal for a

REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

amending Regulation (EC) No 1008/2008 on common rules for the operation of air services in the Community

```

<meta>
  <TLCReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>
</meta>
...
<longTitle>
  <p><docStage>Proposal for a</docStage>
    <docType refersTo="~REG">REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE
    COUNCIL</docType>
    <docPurpose>amending <ref href="http://data.europa.eu/eli/reg/2008/1008">Regulation
    (EC) No 1008/2008 on common rules for the operation of air services in the
    Community</ref></docPurpose></p>
</longTitle>

```

REGULATION (EU) 2017/2393 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

of 13 December 2017

amending Regulations (EU) No 1305/2013 on support for rural development by the European Agricultural Fund for Rural Development (EAFRD), (EU) No 1306/2013 on the financing, management and monitoring of the common agricultural policy, (EU) No 1307/2013 establishing rules for direct payments to farmers under support schemes within the framework of the common agricultural policy, (EU) No 1308/2013 establishing a common organisation of the markets in agricultural products and (EU) No 652/2014 laying down provisions for the management of expenditure relating to the food chain, animal health and animal welfare, and relating to plant health and plant reproductive material

should be marked as

```

<meta>
  <TLCReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>
</meta>
...
<longTitle>
  <p><docType refersTo="~REG">REGULATION <docNumber>(EU) 2017/2393</docNumber> OF THE
    EUROPEAN PARLIAMENT AND OF THE COUNCIL</docType> of <date date="2017-12-13">13
    December 2017</date>
    <docPurpose>amending <mref>Regulations <ref
    href="http://data.europa.eu/eli/reg/2013/1305">(EU) No 1305/2013 on support for rural
    development by the European Agricultural Fund for Rural Development (EAFRD)</ref>, <ref
    href="http://data.europa.eu/eli/reg/2013/1306">(EU) No 1306/2013 on the financing,
    management and monitoring of the common agricultural policy</ref>, <ref
    href="http://data.europa.eu/eli/reg/2013/1307">(EU) No 1307/2013 establishing rules
    for direct payments to farmers under support schemes within the framework of the
    common agricultural policy</ref>, <ref href="http://data.europa.eu/eli/reg/2013/1308">(EU)
    No 1308/2013 establishing a common organisation of the markets in agricultural
    products</ref> and <ref href="http://data.europa.eu/eli/reg/2014/652">(EU) No 652/2014
    laying down provisions for the management of expenditure relating to the food chain, animal
    health and animal welfare, and relating to plant health and plant reproductive
    material</ref></mref></docPurpose></p>
</longTitle>

```

Example of a Draft Council decision

POLITICAL AND SECURITY COMMITTEE DECISION
(CFSP) 2020/...
of ...
on the appointment of the EU Mission Force Commander
of the European Union military mission
to contribute to the training of Somali security forces (EUTM Somalia)
and repealing Decision (CFSP) 2019/1264
(EUTM Somalia/1/2020)

```
<meta>
...
  <TLReference xml:id="DEC" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/DEC"
    showAs="DECISION"/>...
</meta>

<docType refersTo="~DEC">POLITICAL AND SECURITY COMMITTEE DECISION</docType>
```

PART 2.1 - 3.5.3 <container name="eeaRelevance">

This optional container indicates the EEA relevance.

Example

```
<container name="eeaRelevance">
  <p>(Text with EEA relevance)</p>
</container>
```

PART 2.1 - 3.6 <preamble>

The preamble contains the citations, the recitals and the solemn forms that precede and follow them.

PART 2.1 - 3.6.1 <formula>

<formula> is used for the solemn forms. It has a mandatory attribute @name with the following values:

<formula> value of attribute @name	Description
actingEntity	<formula> at the beginning of the preamble, indicating the acting entities.
enactingFormula	<formula> at the end of the preamble.

Example:

```
<formula name="actingEntity">
  <p>THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION,</p>
</formula>
```

```
<formula name="enactingFormula">
  <p>HAVE ADOPTED THIS REGULATION:</p>
</formula>
```

PART 2.1 - 3.6.2 <citations>

The <citations> element is a wrapper that groups a sequence of elements <citation> (one occurrence for each citation).

When a citation has the attribute @refersTo with the value "~legalBasis" it is the citation indicating the legal basis of the act.

When the value of the attribute @refersTo is "~legalBasis", the <references> part of the metadata MUST have the following entry with a reference to the legal basis concept in the eurovoc:

```
<meta>
  <TLCReference xml:id="legalBasis" name="contentSubject"
  href="http://eurovoc.europa.eu/5456" showAs="Legal basis"/>
</meta>
```

Example:

```
<citations>
  <citation refersTo="~legalBasis">
    <p>Having regard to the Treaty on the Functioning
      of the European Union, and in particular Article 207(2) thereof,</p>
  </citation>
  <citation>
    <p>Having regard to the proposal from the European Commission,</p>
  </citation>
  <citation>
    <p>After transmission of the draft legislative act to the national Parliaments,</p>
  </citation>
```

```

    <citation>
      <p>Acting in accordance with the ordinary legislative procedure<authorialNote
marker="1" placement="bottom">...</authorialNote>,</p>
    </citation>
  </citations>

```

PART 2.1 - 3.6.3 <recitals>

The element <recitals> is a wrapper that groups all recitals. It can contain an introductory text (generally 'Whereas :')³, marked as <intro> and one or more recitals (<recital>).

When there are multiple recitals, each recital is numbered so the element <recital> MUST start with a <num> element and the <num> element cannot be empty.

When there is only one recital, it should not be numbered. In this case, <recital> cannot start with <num>.

Example:

```

<recitals>
  <intro><p>Whereas:</p></intro>
  <recital>
    <num>(1)</num>
    <p>A number of amendments are to be made to Directive 2002/92/EC of the
European Parliament and of the Council<authorialNote placement="bottom"
marker="3">...</authorialNote>. In the interests of clarity, that Directive should be
recast.</p>
  </recital>
  ...
</recitals>

```

³ When there is only one recital, the introductory text is normally not present in the EU acts.

PART 2.1 - 3.7 <body>

This element contains the enacting terms of the act or bill.

The normative unit of the enacting terms in the EU legislation is the article, numbered continuously⁴ from the beginning of the enacting terms. It is marked with the element <article>.

Above the <article>, higher hierarchical divisions are possible:

- <part>
- <title>
- <chapter>
- <section>
- <subsection>⁵

PART 2.1 - 3.7.1 <article>

In the legal acts of the European Union, an article is composed of numbered or unnumbered paragraphs. These paragraphs MUST be marked with the element <paragraph>.

The sub-elements of <article> MUST only be from the following:

Sub-element of <article>	Description
<num>	Mandatory - Defines the number of the article.
<heading>	Optional – Defines the subject of the article.
<paragraph>	Repeatable - Numbered or unnumbered paragraph. The numbered paragraph starts with a <num> sub-element. Numbered paragraphs and unnumbered paragraphs cannot be mixed inside the same article. When there is only one <paragraph> inside <article>, it should not start with a <num> sub-element.

⁴ "Continuously" means that the number of the article is incremented along the document regardless of the higher structure containing the article (e.g. no initiation of article numbering at the beginning of each chapter). This is different to the numbering of the paragraphs, which are numbered discontinuously (re-initialisation within each article).

⁵ This division remains only for historical reason but is not used anymore.

Example:

```
<article>
  <num>Article 2</num>
  <heading>Tariff treatment</heading>
  <paragraph>
    <num>1.</num>
    <content>
      <p>Customs duties applied to goods originating in Ecuador on <date date="2014-12-12">12 December 2014</date> shall not be increased and no new customs duties introduced after that date shall be applied to those goods.</p>
    </content>
  </paragraph>
  <paragraph>
    <num>2.</num>
    <content>
      <p>The tariff treatment provided for in paragraph 1 shall be applied without prejudice to any measures taken under Regulations (EC) No 260/2009, (EC) No 597/2009 or (EC) No 1225/2009.</p>
    </content>
  </paragraph>
</article>
```

The structure inside the <paragraph> was described in "PART 1 – 2.3.2.2 "Numbered paragraph" and "unnumbered paragraph" (<paragraph>)".

PART 2.1 - 3.7.1.1 Articles on definitions and articles with amendments

In the *Joint Handbook*, a special style is required for the numbering of points in articles on definitions and in amending provisions:

'By way of exception, in the article on definitions (see point C.7) and in amending provisions (see point C.9.1), the numbering of points starts with Arabic numerals within brackets for the first level and continues with lower-case letters within brackets, small Roman numerals within brackets and indents.'

This information is marked up with the @refersTo pointing to an entry of the references section of the metadata.

Every <article> element, that is an 'article on definition' or an 'article with amending provisions', SHOULD have the @refersTo attribute set with a reference to the corresponding entry in the references section.

The following entries are defined:

Value of @refersTo	Corresponding entry in the references section of metadata
~ART_DEF	<TLCCConcept xml:id="ART_DEF" href="http://publications.europa.eu/resource/authority/subdivision-content/ART_DEF" showAs="Article on definitions"/>
~ART_AMEND	<TLCCConcept xml:id="ART_AMEND" href="http://publications.europa.eu/resource/authority/subdivision-content/ART_AMEND" showAs="Article with amending provisions"/>

Example

```
<article refersTo="~ART_DEF">
  <num>Article 1</num> <heading>Definitions</heading>
  ...
</article>
```

PART 2.1 - 3.7.2 <part><title><chapter><section><subsection>

As all elements representing an higher subdivision of text have the same structure, they are grouped in this section.

These elements contain:

- A mandatory text providing the numbering of this structure that is associated with the parent structure,
- the subject of the structure (optional),
- articles or sub-structures (repeatable).

The official documentation⁶ prescribes an order for the use of these elements, which in practice has not always been respected in the past.

Example:

```
<title>
  <num>TITLE I</num>
  <heading>SCOPE, DEFINITIONS AND GENERAL PRINCIPLES</heading>
  <chapter>
    <num>CHAPTER I</num>
    <heading>Scope and definitions</heading>
    <section>
      <num>Section 1</num>
      <heading>Subject-matter and definitions</heading>
      <article>
        <num>Article 1</num>
        <heading>Subject-matter and scope</heading>
        <paragraph>
          <num>1.</num>
          <content>
            <p>This Directive establishes rules on the procedures for
procurement by contracting authorities with respect to public contracts as well as design
contests, whose value is estimated to be not less than the thresholds laid down in Article
4.</p>
          </content>
        </paragraph>
        <paragraph>
          <num>2.</num>
          <content>
            <p>Procurement within the meaning of this Directive is the
acquisition by means of a public contract of works, supplies or services by one or more
contracting authorities from economic operators chosen by those contracting authorities,
whether or not the works, supplies or services are intended for a public purpose.</p>
          </content>
        </paragraph>
        ...
      </article>
      ...
    </section>
```

⁶ Joint Practical Guide (2015) § 15.4

```
</chapter>
</title>
```

PART 2.1 - 3.7.3 <clause>

The body of a Regulation MUST end with a special formula expressing the direct applicability of the Regulation. This text is outside any <article>, but inside the <body>. It MUST be marked with the element <clause>.

Example:

```
<clause>
  <content>
    <p>This Regulation shall be binding in its entirety and directly applicable in all
Member States.</p>
  </content>
</clause>
```

PART 2.1 - 3.8 <conclusions>

This element marks up the information corresponding to the signature of the document: the location, date and signature.

PART 2.1 - 3.8.1 <references> section of the metadata for the <conclusions>

For the <conclusions>, the <references> part of the metadata has the following entries:

- An optional <TLCLocation> for the location (authority table 'Place'⁷).

```
<meta>
...
<TLCLocation xml:id="BEL_BRU"
href="http://publications.europa.eu/resource/authority/place/BEL_BRU"
showAs="Brussels"/>
...
</meta>
```

- A mandatory <TLCOrganization> for each institution that signs or will sign the act/bill. For an Ordinary Legislative Procedure, it will be the European Parliament and the Council (authority table 'Corporate body'⁸).

```
<meta>
...
<TLCOrganization xml:id="CONSIL"
href="http://publications.europa.eu/resource/authority/corporate-body/CONSIL"
showAs="Council of the European Union"/>

  <TLCOrganization xml:id="EP"
href="http://publications.europa.eu/resource/authority/corporate-body/EP"
showAs="European Parliament"/>
...
</meta>
```

- a mandatory <TLCTRole> for the role of the signatory (authority table 'Role'⁹)

⁷ <https://publications.europa.eu/en/web/eu-vocabularies/at-dataset/-/resource/dataset/place>

⁸ <https://publications.europa.eu/en/web/eu-vocabularies/at-dataset/-/resource/dataset/corporate-body>

⁹ <https://publications.europa.eu/en/web/eu-vocabularies/at-dataset/-/resource/dataset/role>

```

<meta>
...
<TLCRole xml:id="PRESID"
href="http://publications.europa.eu/resource/authority/role/PRESID" showAs="President"/>
...
</meta>

```

PART 2.1 - 3.8.2 Structure of <conclusions>

The structure of <conclusions> is the following:

- a <p> element contains the text with the location and the date. This element MAY comprise the following inline elements:

Sub-elements of <p> in <conclusion>	Description
<location>	The location of the signature. The attribute @refersTo points to a <TLCLocation> in the <references> part of the metadata containing the corresponding location.
<date>	The date of the signature. The attribute @date contains the date in the format YYYY-MM-DD.

- a <block> element with the attribute @name which has the value "signatory". The element <block> MUST contain one or more <signature> elements.

Each <signature> element MUST contain the following sub-elements:

Sub-elements of <signature>	Description
<organization>	The institution of the person who signs the document. The attribute "refersTo" points to the corresponding TLCOrganization in the <references> part of the metadata.
<role>	The role of the person who signs the document. The attribute "refersTo" points to the corresponding TLCRole in the <references> part of the metadata.
<person>	The name of the person who signs the document. The attribute "refersTo" remains empty in this version of AKN4EU.

Example:

```
<conclusions>
  <p>Done at <location refersTo="~BEL_BRU">Brussels</location>, <date date="2014-12-18">18 December 2014</date>.</p>
  <block name="signatory">
    <signature>
      <organization refersTo="~EP">For the European Parliament</organization>
      <role refersTo="~PRESID">The President</role>
      <person refersTo="">M. SCHULZ</person>
    </signature>
    ...
  </block>
</conclusions>
```

Example 2

Done at Brussels,

*For the Political and Security Committee
The Chairperson*

```
<meta>
<TLCOrganization xml:id="CMT_PSC"
  href="http://publications.europa.eu/resource/authority/corporate-body/CMT_PSC"
  showAs="Political and Security Committee"/>
<TLCRole xml:id="CHAIR"
  href="http://publications.europa.eu/resource/authority/role/CHAIR"
  showAs="Chairman"/>
</meta>
...
<conclusions>
  <p>Done at <location refersTo="~BEL_BRU">Brussels</location>, </p>
  <block name="signatory">
    <signature>
      <organization refersTo="~CMT_PSC">For the Political and Security
Committee</organization>
      <role refersTo="~CHAIR">The Chairperson</role>
      <person refersTo=""></person>
    </signature>
    ...
  </block>
</conclusions>
```

PART 2.1 - 3.9 <attachments>

This section is used to make the link in the <bill> or <act> to its annex(es)

PART 2.1 - 3.9.1 <attachment> for “annex”

For each annex, there MUST exist an <attachment> element containing only a <documentRef> element.

The <documentRef> has as attributes:

- A mandatory @href attribute containing the path to the file containing the annex;
- the content of the <container name=" headerOfAnnex ">/<block="num"> element of the corresponding annex

Example

```
<attachment>
  <documentRef href="...xml"
    showAs="ANNEX I"/>
</attachment>
```

PART 2.1 - 3.9.2 <attachment> for “Table of annex”

If annexes are preceded by a “table of annexes”, there MUST exist an **<attachment>** element for this.

See AKN4EU PART 1 – 1.1.4 *The table of annexes* for the mark-up inside this **<attachment>**.

PART 2.1 - 3.9.3 <attachment> for “attachment”

For each legal act *attached*¹⁰ to this act, there MUST exist an **<attachment>** element containing a **<documentRef>** element eventually preceded by a **<num>** element.

This **<attachment>**

- MUST have an attribute @refersTo pointing to a **<TLCReference name="doctype">** for the ‘ATTACHMENT’ entry of the authority table ‘resource type’
- CAN have an element **<num>** if the word “ANNEX” is used in the text to introduce the attachment
- Must have a **<documentRef>** that reference the AKN4EU file with the content of the “attachment”.

The **<documentRef>** has as attributes:

- A mandatory @href attribute containing the path to the file containing the attachment;
- the content of the **<longTitle>/<doctype>** element of the corresponding attachment

Example

```
<meta>
  ...
  <TLCReference xml:id="ATTACHMENT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/ATTACHMENT"
    showAs="Attachment"/>
  ...
</meta>

<attachment refersTo="~ATTACHMENT">
  <num>ANNEX</num>
  <documentRef href="...xml" showAs="Decision ..."/>
</attachment>
```

Or, if the word “ANNEX” is not present:

```
<meta>
  ...
  <TLCReference xml:id="ATTACHMENT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/ATTACHMENT"
    showAs="Attachment"/>
  ...
</meta>

<attachment refersTo="~ATTACHMENT">
```

¹⁰ See Joint Practical Guide, 22.B., p. 75 – *Legal acts attached to other acts*

```
<documentRef href="...xml" showAs="Decision ..."/>
</attachment>
```

PART 2.1 - 4 Annex

Annexes are used to present material separately from the body of the enacting terms, because it is either voluminous or technical or both. Annexes are an integral part of an act. When there are multiple annexes, they are numbered in the order of appearance.

The annexes are marked up with the element <doc>.

<doc> has a mandatory attribute @name. The value of this attribute is:

Value of attribute @name	Description
ANNEX	This is the generic code issued from the Authority table 'Resource type' available on OP EU Vocabularies website ¹¹ .

PART 2.1 - 4.1 Overall organization

<doc name="ANNEX"> has the following structure:

- <meta> mandatory (metadata)
- <preface> mandatory
- <mainBody> mandatory
- <attachments> mandatory if annex has annex(es)

PART 2.1 - 4.2 <meta>

The following metadata are required:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5)
The <FRBRprescriptive> metadata MUST be set to "true".
- In <references>, a <TLReference name="docType"> MUST exist, with the information on the entry in the authority table "resource-type" corresponding to the value of the @name attribute of the <doc> (the value of the attribute @name MUST be the authority code)

Example

```
<doc name="ANNEX">
  <meta>
    ...
    <references source="~...">
      ...
      <TLReference xml:id="REG" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/ANNEX"
        showAs="Annex"/>
      ...
    </references>
  </meta>
  ...
</act>
```



¹¹ <https://publications.europa.eu/en/web/eu-vocabularies/authority-tables>

PART 2.1 - 4.3 <preface>

The preface contains the title of annexes.

The title of an annex is more similar to the title of a chapter or a section than to the title of an act: it contains the numbering of the annex inside the act/bill and the subject of the annex. Therefore, instead of the element <longTitle>, a specific <container> is used.

<container> has a mandatory attribute @name. The value of this attribute is:

Value of attribute @name	Description
headerOfAnnex	The title of the annex.

The <container> MUST be composed of elements <block>. The <block> has a mandatory attribute @name. The value of this attribute is:

Value of attribute @name	Description
num	Mandatory. The numbering of the annex in the act. If there is only one annex, only the word "ANNEX", without number. Else, the word ANNEX with a number.
heading	Optional. The subject of the annex.

Example:

```
<preface>
  <container name="headerOfAnnex">
    <block name="num">ANNEX I</block>
    <block name="heading">TYPES OF ACTIONS</block>
  </container>
</preface>
```

PART 2.1 - 4.4 <mainBody>

Currently, annexes can have various structures. They differ structurally from the body of the act because they are not composed of articles.

The structure of annexes can be composed of 3 levels of elements:

- The **core structures** allowed are:
 - independent points;
 - unnumbered paragraphs;
 - articles.

All these structures are optional: an annex can be composed:

- of unnumbered paragraphs, or
- of independent points, or
- of a sequence of articles, or
- of unnumbered paragraphs followed by independent points

“Independent subject(s)” (“crossheading”) are also allowed (<block name=“crossheading”>) as child of <mainBody> .

- The core structures can be grouped into **named high-level structures**, as in the enacting terms of the act: part, title, chapter, section.
- A **lower level structures**, grouping all structures available inside the core structures.

PART 2.1 - 4.4.1 High level structures

As in the enacting terms of acts, the following elements are available to represent the high-level structures in annexes:

- <part>
- <title>
- <chapter>
- <section>

Example:

- `<chapter>`
 `<num>CHAPTER I</num>`
 `<heading>Subject matter for the training of staff performing official controls`
 `and other official activities</heading>`
- ...
- `</chapter>`

PART 2.1 - 4.4.2 *The possible content of the named high-level structures is described in PART 1 – 2.3.1. Core structures*

PART 2.1 - 4.4.2.1 Article (<article>)

Some annexes are composed of <article>.

See “AKN4EU PART 1 – section 2.3.2.1 Article <article>” on the way to mark “article”.

PART 2.1 - 4.4.2.2 Independent points: element <level>

See 'PART 1 – 2.3.2.3 independent point (<level>)' on the way to mark “independent points”;

PART 2.1 - 4.4.2.3 Unnumbered paragraphs

See 'PART 1 – 2.3.2.2 “Numbered paragraph” and “unnumbered paragraph” (<paragraph>)' on the way to mark “unnumbered paragraph”;



In annex of EU acts, “numbered paragraph” is forbidden except as a subdivision of an <article>;
Only “independent point”(<level>) (and <article>) can be used as numbered core structure of an annex.

PART 2.1 - 4.4.3 “crossheading”

Use the mark-up <block name=“crossheading”> when the “crossHeading” is child of <mainBody>.

Use the mark-up <crossheading> when the “crossheading” is inside another subdivision.

PART 2.1 - 4.4.4 Low level structures

All the low level structures are acceptable in annexes

PART 2.1 - 4.4.4.1 Inside the core structure <article>

See PART 1 – 2.3.2.1 for the acceptable structures inside an <article>

PART 2.1 - 4.4.4.2 Inside the core structure <paragraph>

See PART 1 – 2.3.2.2 for the acceptable structures inside “unnumbered paragraph”

PART 2.1 - 4.4.4.3 Inside the core structure <level>

See PART 1 – 2.3.2.3 for the acceptable structures inside a <level>

PART 2.1 - 4.5 <attachments>

PART 2.1 - 4.5.1 annex of an annex

For each embedded annex, there MUST exist inside <attachments>, an <attachment> element containing only a <documentRef> element.

The <documentRef> has as attributes:

- A mandatory @href attribute containing the path to the file containing the embedded annex;
- the content of the <container name="headerOfAnnex"/></block="num"> element of the corresponding annex

Example

```
<attachment>
  <documentRef href="... .xml"
    showAs="Appendix"12/>
</attachment>
```

¹² @showAs may depend on the way the user called the Annex.

PART 2.2 International Agreement

PART 2.2 - 1 International Agreements : use cases for AKN4EU

The structure of an International agreement, according to the CoV is the following

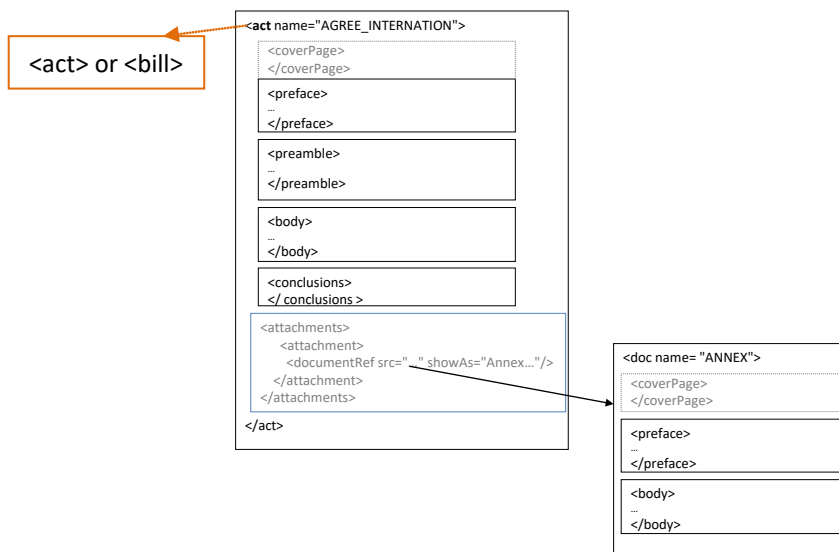


PART 2.2 - 2 AKN4EU mark-up of the International Agreement: overall structure

The main part of an International Agreement, containing the title of the document, the preamble, the enacting terms and the signatures is in one AKN4EU file. It is marked as an <act> or a <bill> (see after).

An International Agreement can contain one or more annex(es). In this case

- For each annex, it must exist inside the <attachments> section of the <act> or the <bill> one <attachment> element;
- The content of each annex MUST be in a specific AKN4EU file;
- Each annex is marked with the element <doc>.



PART 2.2 - 3 The AKN4EU mark-up of the main part of the International Agreement

PART 2.2 - 3.1 <act> or <bill>

Akoma Ntoso uses two elements to mark up a legal text:

- <act>, for the final version that is published in the Official Journal;
- <bill>, for the main part of any draft version of the legal text during the legislative process.

Accordingly, in AKN4EU,

- International Agreement, when published in the Official Journal, are marked as <act>
- A draft version of what may become, at the end of the legislative procedure, an International Agreement, is marked as a <bill>.

PART 2.2 - 3.2 @name attribute

<act> or <bill> MUST have a @name attribute, used in AKN4EU to define the type of act.

In AKN4EU, the value of this attribute MUST be the code of an entry of the Named Authority List 'Resource type' (<https://publications.europa.eu/en/web/eu-vocabularies/at-dataset/-/resource/dataset/resource-type>).

The following values for the attribute @name are used:

Value of the attribute @name for <act> or <bill>	Description
"AGREE_INTERNATION"	- International Agreement - Any draft version of a International Agreement.

PART 2.2 - 3.3 Overall organization

<act> and <bill> for International Agreement have the following structure:

- <meta> mandatory (metadata)
- <preface> mandatory
- <preamble> mandatory
- <body> mandatory
- <conclusions> mandatory
- <attachments> mandatory if the International Agreement has annex(es)

PART 2.2 - 3.4 <meta>

The following metadata are required:

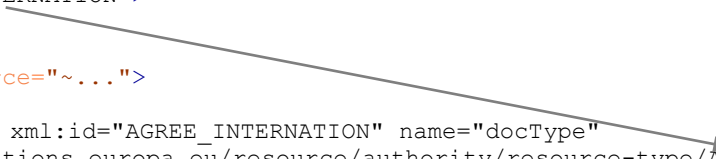
- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5)
The <FRBRprescriptive> metadata MUST be set to "true".
- In <references>, a <TLReference name="docType"> MUST exist, with the information on the entry in the authority table "resource-type" corresponding to the value of the @name attribute of the <act> or <bill> (the value of the attribute @name MUST be the authority code)

Example

```

<act name="AGREE_INTERNATION">
  <meta>
    ...
    <references source="~...">
      ...
      <TLCReference xml:id="AGREE_INTERNATION" name="docType"
href="http://publications.europa.eu/resource/authority/resource-type/AGREE_INTERNATION"
showAs="International agreement"/>
    ...
  </references>
</meta>
  ...
</act>

```


PART 2.2 - 3.5 <preface>

The <preface> can contain the following containers:

PART 2.2 - 3.5.1 <longTitle>

The <longTitle> is used to mark the title of the document.

The <longTitle> MUST contain only one <p> that can contain the following elements:

- <docType>
- <docPurpose>

PART 2.2 - 3.5.1.1 <docType>

<docType> MUST be used to mark the line containing the type of the <act> or <bill>.

The mandatory attribute @refersTo points to the corresponding <TLCReference name="docType">.

Example

STRATEGIC PARTNERSHIP AGREEMENT

between the European Union and its Member States, of the one part, and Canada, of the other part

Will be marked as

```

<meta>
  ...
  <TLCReference xml:id="AGREE_INTERNATION" name="docType"
href="http://publications.europa.eu/resource/authority/resource-type/AGREE_INTERNATION"
showAs="International agreement"/>
</meta>
  ...
<longTitle>
  <p><docType refersTo="~AGREE_INTERNATION">STRATEGIC PARTNERSHIP AGREEMENT</docType>
    <docPurpose>between the European Union and its Member States, of the one part, and
Canada, of the other part</docPurpose></p>
</longTitle>

```


PART 2.2 - 3.5.1.2 <docPurpose>

This element is MANDATORY for <act> or <bill> that are International agreements. It contains the subject of the act.

PART 2.2 - 3.6 <preamble>

The preamble contains the citations, the recitals and the solemn forms that precede and follow them.

PART 2.2 - 3.6.1 <heading>

The preamble can have a **heading**.

If this is the case, the title MUST be marked up with a <block> element¹³. This element has a mandatory attribute @name. The value of this attribute MUST be:

Value of attribute @name	Description
heading	This value indicates that the block is, in fact, a subject and is used when the <heading> element is not available.

Example:

```
<preamble>
  <block name="heading">PREAMBLE</block>
...
</preamble>
```

The preamble contains the recitals and the solemn forms that precede and follow them.

The mark-up for these structures is the following:

The two <formula> MUST be used:

- @name = "actingEntity" at the beginning of the preamble
Each line of this formula is in a specific <p>

Example

```
<formula name="actingEntity">
  <p>THE EUROPEAN UNION, hereinafter referred to as 'the Union', </p>
  <p>and</p>
  <p>THE KINGDOM OF BELGIUM, </p>
  <p>THE REPUBLIC OF BULGARIA, </p>
  <p>THE CZECH REPUBLIC, </p>
...
  <p>of the one part, and</p>
  <p> CANADA, </p>
  <p>of the other part, </p>
  <p>hereinafter jointly referred to as 'the Parties', </p>
```

- @name = "enactingFormula"
at the end of the preamble

Example

¹³ Akoma Ntoso does not allow a <heading> element as sub-element of <preamble>.

```
<formula name="enactingFormula">
  <p>HAVE AGREED AS FOLLOWS:</p>
</formula>
```

PART 2.2 - 3.6.2 <recitals>

The element <recitals> is a wrapper that groups all recitals. The introductory text is optional.

Each recital MUST be in an element <recital>. The recitals can be without numbering (so <num> element is not mandatory).

Example:

```
<recitals>
  <recital>
    <p>INSPIRED BY the long-standing friendship forged between the people of Europe and
    Canada through their extensive historical, cultural, political and economic links,</p>
  </recital>
  ...
</recitals>
```

PART 2.2 - 3.7 <body>

Similar to the enacting terms of EU acts.

NB: Subparagraph with points can be without introductory part.

PART 2.2 - 3.8 <conclusions>

The conclusions can be as follows:

- first, a sequence of paragraphs
- the place and date in the languages of all the parties
- the signatory.

PART 2.2 - 3.8.1 Place and date

Each linguistic variant of the place and date MUST be marked with a <p> element with the @xml:lang attribute with, as value, the two-letter code of the language of the content.

In each linguistic variant, the <location> identifies the place of the signature and the <date> element identifies the date of the signature.

Example:

```
<p xml:lang="bg">Съставено в <location refersTo="~BEL_BRU">Брюксел</location> на <date
date="2016-10-30">тридесети октомври през две хиляди и шестнадесета година</date>.</p>
<p xml:lang="es">Hecho en <location refersTo="~BEL_BRU">Bruselas</location>, el <date
date="2016-10-30">treinta de octubre de dos mil dieciséis</date>.</p>
...
```

For each value of the @xml:lang attribute, a corresponding <TLCReference name="language"> MUST be created in the <references> section of the metadata.

For each value of the @refersTo attribute of the <location> element, a corresponding <TLCLocation> MUST be created in the <references> section of the metadata.

For example:

```
<meta>
...
<TLCReference name="language"
  href="http://publications.europa.eu/resource/authority/language/BUL" showAs="bg"/>
<TLCReference name="language"
  href="http://publications.europa.eu/resource/authority/language/SPA" showAs="es"/>

<TLCLocation xml:id="BEL_BRU"
  href="http://publications.europa.eu/resource/authority/place/BEL_BRU"
  showAs="Brussels"/>
...
</meta>
```

PART 2.2 - 3.8.2 Signatory

The signatory MUST be marked with a <block> element. The mandatory @name attribute MUST have the value "signatory". It contains one or more <signature> elements.

For the International Agreement each <signature> element MUST contain the following sub-elements:

Sub-elements of <signature>	Description
<organization>	The <organization> to identify the party of the person who signs the document. The attribute @refersTo MUST point to the corresponding <TLCOrganization> in the <references> part of the metadata. In case of the International Agreement, the <TLCOrganization> CAN be an entry of the Authority table 'Country' or of the Authority table 'Corporate body'. The information is expressed in an official language of the country that the signatory represents. Sometimes, the information can thus be expressed in multiple linguistic versions. In any case, it is not always the language of this Expression and this information remains in the original language. For this reason, there can be multiple occurrences of <organization> in one <signature>, one for each specific linguistic version. The following rules apply: • If there are multiple occurrences of <organization> in one <signature>, each <organization> of a same <signature> MUST have the same @refersTo value. It means that it MUST point to the same <TLCOrganization> in the references part of the metadata. • When there are multiple occurrences of <organization>, each occurrence MUST have an @xml:lang attribute with a different value. A corresponding <TLCReference name="language"> MUST be created.
<person>	The <person> element with an empty @refersTo. This element will contain

	the image of the handwritten signature.
<remark>	Additional information after the handwritten signature. For example:
	<remark xml:lang="fr">Cette signature engage également la Communauté française, la Communauté flamande, la Communauté germanophone, la Région wallonne, la Région flamande et la Région de Bruxelles-Capitale. </remark>

Example

```

<meta>
...
<TLCOrganization xml:id="BEL"
  href="http://publications.europa.eu/resource/authority/countries/BEL" showAs="Kingdom
of Belgium"/>
<TLCReference name="language"
  href="http://publications.europa.eu/resource/authority/language/NLD" showAs="nl"/>
<TLCReference name="language"
  href="http://publications.europa.eu/resource/authority/language/FRA" showAs="fr"/>
<TLCReference name="language"
  href="http://publications.europa.eu/resource/authority/language/DEU" showAs="de"/>
...
</meta>
<block name="signatory">
  <signature>
    <organization refersTo="~BEL" xml:lang="nl">Voer het Koninkrijk
België</organization>
    <organization refersTo="~BEL" xml:lang="fr">Pour le Royaume de
Belgique</organization>
    <organization refersTo="~BEL" xml:lang="de">Für das Königreich
Belgien</organization>
    <person refersTo="">
      
    </person>
    <remark xml:lang="nl">Deze handtekening verbindt eveneens de Vlaamse Gemeenschap,
de Franse Gemeenschap, de Duitstalige Gemeenschap, het Vlaamse Gewest, het Waalse Gewest en
het Brussels Hoofdstedelijk Gewest.</remark>
    <remark xml:lang="fr">Cette signature engage également la Communauté française, la
Communauté flamande, la Communauté germanophone, la Région wallonne, la Région flamande et
la Région de Bruxelles-Capitale.</remark>
    <remark xml:lang="de">Diese Unterschrift bindet zugleich die Deutschsprachige
Gemeinschaft, die Flämische Gemeinschaft, die Französische Gemeinschaft, die Wallonische
Region, die Flämische Region und die Region Brüssel-Hauptstadt.</remark>
  </signature>...
</block>

```

PART 2.2 - 3.9 <attachments>

This section is used to make the link in the <bill> or <act> to its annex(es)

PART 2.2 - 3.10 <attachment>

For each annex, it MUST exist a <attachment> element containing only a <documentRef> element.

The <documentRef> has as attributes:

- A mandatory @href attribute containing the path to the file containing the annex;
- the content of the <container name=" headerOfAnnex ">/<block="num"> element of the corresponding annex

Example

```
<component>  
  <documentRef href="...xml"  
    showAs="ANNEX I"/>  
</component>
```

PART 2.2 - 4 The AKN4EU mark-up of the Annex

Annexes are used to present material separately from the body of the enacting terms, because it is either voluminous or technical or both. Annexes are an integral part of an act. When there are multiple annexes, they are numbered in the order of appearance.

The annexes are marked up with the element <doc>.

<doc> has a mandatory attribute @name. The value of this attribute is:

Value of attribute @name	Description
ANNEX	This is the generic code issued from the Authority table 'Resource type' available on OP EU Vocabularies website ¹⁴ .

PART 2.2 - 4.1 Overall organization

<doc name="ANNEX" has the following structure:

- <meta> mandatory (metadata)
- <preface> mandatory
- <mainBody> mandatory
- <attachments> mandatory if annex has annex(es)

PART 2.2 - 4.2 <meta>

The following metadata are required:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5)
The <FRBRprescriptive> metadata MUST be set to "true".
- In <references>, a <TLReference name="docType"> MUST exist, with the information on the entry in the authority table "resource-type" corresponding to the value of the @name attribute of the <documentCollection> (the value of the attribute @name MUST be the authority code)

Example

```
<doc name="ANNEX">
  <meta>
    ...
    <references source="~...">
      ...
      <TLReference xml:id="ANNEX" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/ANNEX"
        showAs="Annex"/>
      ...
    </references>
  </meta>
  ...
</act>
```



¹⁴ <https://publications.europa.eu/en/web/eu-vocabularies/authority-tables>

PART 2.2 - 4.3 <preface>

The preface contains the title of annexes.

The title of an annex is more similar to the title of a chapter or a section than to the title of an act: it contains the numbering of the annex inside the act/bill and the subject of the annex. Therefore, instead of the element <longTitle> a specific <container> is used.

<container> has a mandatory attribute @name. The value of this attribute is:

Value of attribute @name	Description
headerOfAnnex	The title of the annex.

The <container> MUST be composed of elements <block>. The <block> has a mandatory attribute @name. The value of this attribute is:

Value of attribute @name	Description
num	Mandatory. The numbering of the annex in the act. If there is only one annex, only the word "ANNEX", without number. Else, the word ANNEX with a number.
heading	Optional. The subject of the annex.

Example:

```
<preface>
  <container name="headerOfAnnex">
    <block name="num">ANNEX I</block>
    <block name="heading">TYPES OF ACTIONS</block>
  </container>
</preface>
```

PART 2.2 - 4.4 <mainBody>

Similar to the <mainBody> of the annexes of EU acts.

PART 2.2 - 4.5 <attachment>

For each annex of annex, it MUST exist a <attachment> element containing only a <documentRef> element.

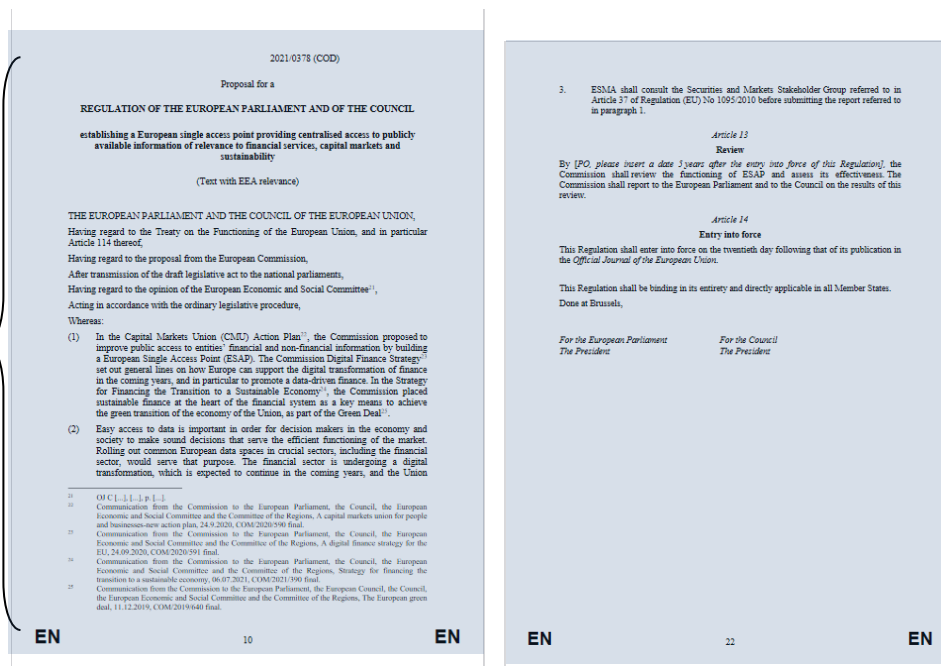
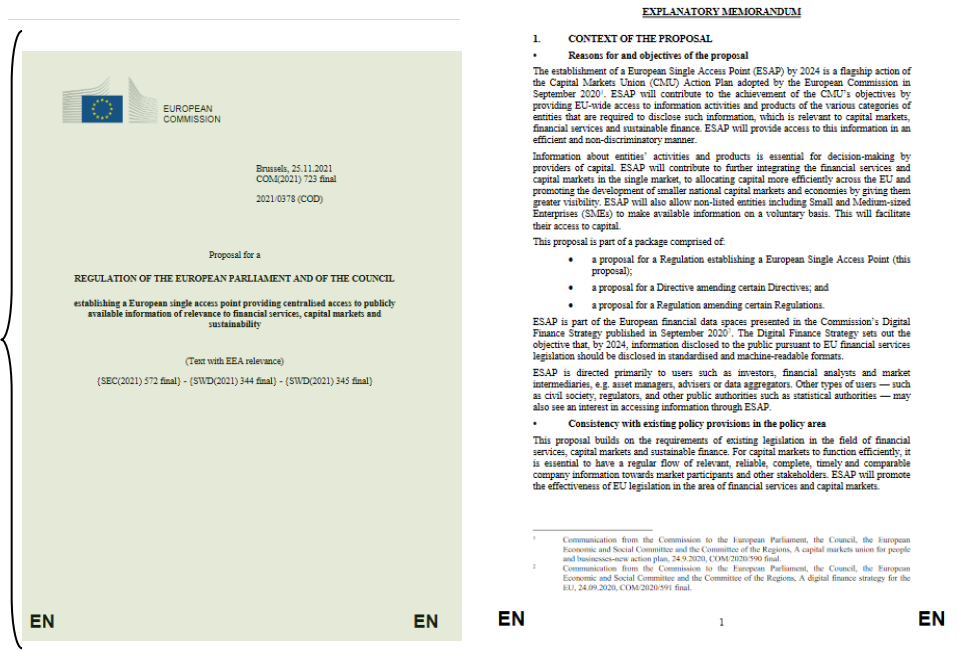
PART 2.3 Proposal for an act

PART 2.3 - 1 Proposal for an act : use cases for AKN4EU

The AKN4EU baseline version contains the following use cases for the Proposal for an act:

- Proposal for a decision
- Proposal for a directive
- Proposal for a regulation
- Proposal for a Implementing Decision

in the context of Legislative/legal procedure.



LEGISLATIVE FINANCIAL STATEMENT

1. FRAMEWORK OF THE PROPOSAL/INITIATIVE

1.1. Title of the proposal/initiative
 Proposal for a Regulation of the European Parliament and of the Council establishing a European Single Access Point providing centralised access to publicly available information of relevance to financial services, capital markets and sustainability

1.2. Policy area(s) concerned
 Policy area: Financial stability, financial services and capital markets union
 Activity: An economy that works for people

1.3. The proposal relates to
☒ a new action
☐ a new action following a pilot project/preparatory action³⁰
☐ the extension of an existing action
☐ a merger of one or more actions towards another's new action

1.4. Objective(s)

1.4.1. General objective(s)
 The general objectives are to further integrate the European capital markets, and to enable a more efficient allocation of capital across the EU.

1.4.2. Specific objective(s)
Specific objective No 1
 The first specific objective is to enable a seamless and integrated access to data published by entities subject to disclosure obligations in the area of financial services and capital markets, including sustainability related data, whilst avoiding disproportionate administrative costs for entities. The ESAP will thus increase flows of information both within Member States and cross-border.
Specific objective No 2
 The second specific objective is to increase the digital use (and re-use) of data.
 From the digital use angle, the ESAP should seek to streamline the way in which information is drawn up in order to make it easier to find, compare and analyse, thus reducing search and processing costs for users. This means improving data findability and data extractability (as regards metadata, data structuring and IT formats and if possible as regards machine readability), ensuring data quality, removing unnecessary restrictions to re-use, lowering linguistic barriers, enabling access to timely information, and possibly addressing the integrity

³⁰ As referred to in Article 58(2)(a) or (b) of the Regulation.

Legislative Financial and
Digital Statement
(or Legislative Financial
Statement)

EN
23
EN

For some Proposals, a document can be attached to the Legal text. It is not really an annex of the Legal text, as it will not be published in the Official Journal as an annex.

In this case, the layout is the following:



PART 2.3 - 2 AKN4EU mark-up of the Proposal for an act: overall structure

The Proposals for an act (Proposal for a decision, Proposal for a directive or Proposal for a Regulation) follows the standard AKN4EU model of a document:

- The entry point (main.xml of a .leg package) is a <documentCollection>.
- The <documentCollection> contains the information of the cover page.
- The <documentCollection> has, as subdocument:
 - an optional *Explanatory Memorandum*
 - a mandatory *Legal Text* that is a Decision, a Directive, a Regulation or an Implementing Decision.
 - An optional Financial Statement or Financial and Digital Statement

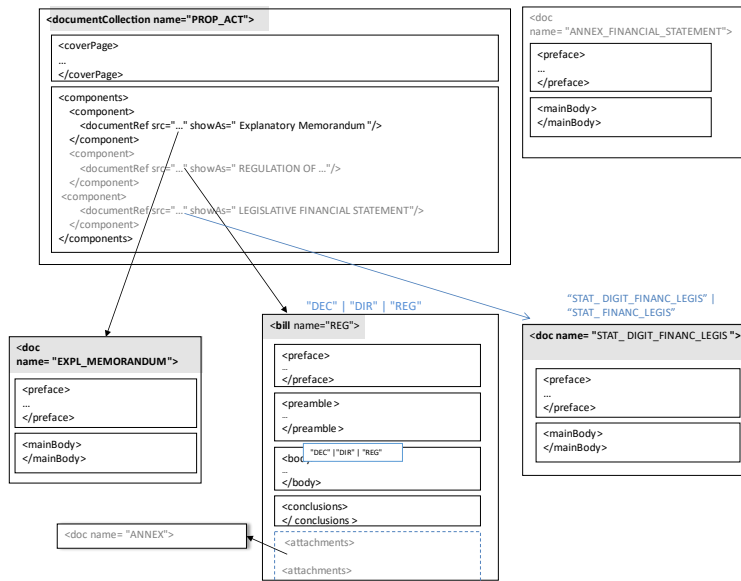
For each subdocument, the <documentCollection> contains, inside the <collectionBody>, one <component> element.

- The content of each subdocument is in a specific file

Document type of the subdocuments

- For the Explanatory Memorandum, the file MUST have as document type:
<doc name="EXPL_MEMORANDUM">
For the legal text
The file MUST have as document type: <bill>.
The @name attribute MUST have as value "DEC", "DIR", "REG" or DEC_IMPL depending on the type of the legal text.
See AKN4EU PART 2 – 2.1 EU acts – section 2 AKN4EU mark-up of the EU acts: overall structure for the components of an EU act.
- For the Legislative Financial and Digital Statement, the file MUST have as document type:
<doc name="STAT_DIGIT_FINANC_LEGIS">.
- For the Legislative Financial Statement, the file MUST have as document type:
<doc name="STAT_FINANC_LEGIS">.

The normal structure for a *Proposal for an act* is the following:



PART 2.3 - 3 The mark-up of the <documentCollection>

PART 2.3 - 3.1 @name attribute

The attribute @name MUST have the value "PROP_ACT", corresponding to the code of the authority table "resource-type" for this type of document.

PART 2.3 - 3.2 Overall organization

This document type has the following structure:

- <meta> mandatory
- <coverPage> mandatory
- <collectionBody> mandatory

PART 2.3 - 3.3 <meta>

The following metadata are needed:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5)
The @value of <FRBRprescriptive> is set to "false"
- In <references>, a <TLCReference name="docType"> MUST exist, with the information on the entry in the authority table "resource-type" corresponding to the value of the @name attribute of the <documentCollection> (the value of the attribute @name is the authority code)

Example

```
<documentCollection name="PROP_ACT">
  <meta>
    ...
    <references source="~...">
      ...
      <TLCReference xml:id="PROP_ACT" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/PROP_ACT"
        showAs="Proposal for an act"/>
      ...
    </references>
  </meta>
  ...
</documentCollection>
```



- In <references>, a <TLCReference name="procedureReference"> **MUST** exist, if the document is associated to a legislative/legal procedure. As forth indication of the @shortForm attribute, the step inside the legislative/legal procedure CAN be indicated if the information is known and meaningful.

Example

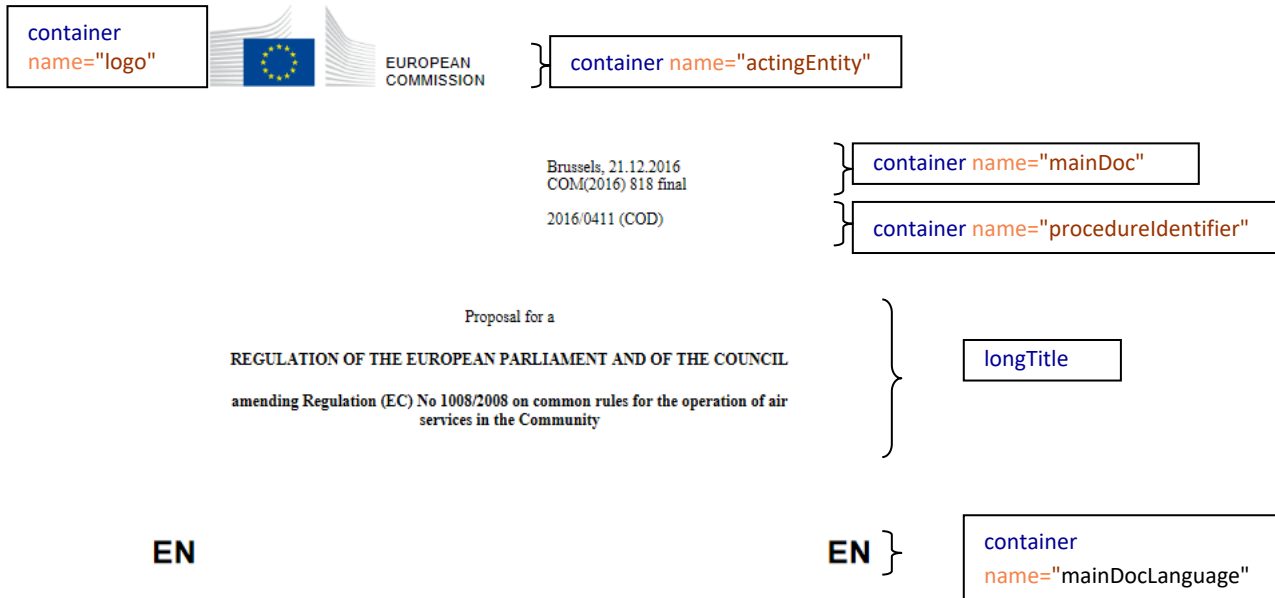
```
<TLCReference xml:id="procedure_2011_458" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2011_458" showAs="2011/0458 (COD) "
  shortForm="2011/458/COD/RDG1"/>
```

```
<TLCReference xml:id="_procedure_2020_165" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2020_165"
  showAs="2020/0165 (CNS)" shortForm="2020/165/CNS"/>
```

- A corresponding <TLCProcess> **CAN** exist to make a explicit link between the step inside the legislative/legal procedure and the corresponding entry in the authority table:

```
<TLCProcess xml:id="RDG1"
href="http://publications.europa.eu/resource/authority/procedure-phase/RDG1"
showAs="First reading"/>
```


PART 2.3 - 3.4 <coverPage>



The <coverPage> CAN contain the following containers:

PART 2.3 - 3.4.1 <container name="logo">

No specific mark-up

Example

```
<container name="logo">
  <p></p>
</container>
```

PART 2.3 - 3.4.2 <container name="actingEntity">

It contains one <p>. The <p> contains <organization> with the mandatory @refersTo attribute pointing to an <TLCOrganization> element in the <references> part of the metadata.

If <container name="logo"> exists, <container name="actingEntity"> MUST also be present.

Example

```
<meta>
  <TLCOrganization xml:id="COM"
    href="http://publications.europa.eu/resource/authority/corporate-body/COM"
    showAs="European Commission"/>
</meta>
...
<container name="logo">
  <p></p>
</container>
<container name="actingEntity">
  <p><organization refersTo="~COM">EUROPEAN COMMISSION</organization></p>
</container>
```

For joint act, a double header is foreseen on the cover page.

In this case, there are two <container name="actingEntity"> (a second <container name="logo"> can also be present).

The sequence of the <container> is the sequence of the display, from left to right

For Example:



HIGH REPRESENTATIVE
OF THE UNION FOR
FOREIGN AFFAIRS AND
SECURITY POLICY

Will be marked as:

```
<meta>
  <TLCOrganization xml:id="COM"
    href="http://publications.europa.eu/resource/authority/corporate-body/COM"
    showAs="European Commission"/>
  <TLCOrganization xml:id="HRUFASP"
    href="http://publications.europa.eu/resource/authority/corporate-body/HRUFASP"
    showAs="High Representative of the Union"/>
</meta>
...
<container name="logo">
  <p></p>
</container>
<container name="actingEntity">
  <p><organization refersTo="~COM">EUROPEAN COMMISSION</organization></p>
</container>
<container name="actingEntity">
  <p><organization refersTo="~HRUFASP">HIGH REPRESENTATIVE OF THE UNION FOR FOREIGN AFFAIRS
AND SECURITY</organization></p>
</container>
```

PART 2.3 - 3.4.3 <container name="mainDoc">

This container contains the information related to the document itself: location, date and the document reference.

- The place and date is marked with a <block name="placeAndDate"> element. Inside,
 - the place MUST be in a <location> element with the @refersTo attribute pointing to the corresponding entry in the <references> part of the metadata.
 - The date MUST be in a <date> element with a mandatory @date attribute.
- The reference of the document is marked with a <block name="reference">.

The reference itself MUST be inside a <docNumber> element with a mandatory @refersTo attribute pointing to the corresponding <TLCReference name="identifier"> .

The information on the version MUST be inside the <docNumber> in an <inline name="version"> element

Before finalization, the document can be identified with a Commission internal identifier¹⁵

When finalized, the reference is an official identifier like a COM number.

Example: Proposal with a reference that is a COM NUMBER

Brussels, 21.12.2016
COM(2016) 818 final

```
<meta>
<TLCLocation xml:id="BEL_BRU"
href="http://publications.europa.eu/resource/authority/place/BEL_BRU" showAs="Brussels" />
<TLCReference xml:id="prs3y" name="identifier"
href="http://publications.europa.eu/resource/authority/document-identifier-format/COM_NUMBER"
showAs="COM(2012) 818" shortForm="COM/2012/818"/>
</meta>
<container name="mainDoc">
  <block name="placeAndDate"><location refersTo="~BEL_BRU">Brussels</location>, <date date="2012-09-28">28.09.2012</date> </block>
  <block name="reference"> <docNumber refersTo="~prs3y">COM(2012) 818 <inline name="version">final</inline></docNumber></block>
</container>
```

The Join Proposal has also a specific reference number (for example JOIN(2022) 19) but the <TLCReference name="identifier"> refers to the "COM number" in the authority table "document-identifier-format".

Example

Brussels, 22.2.2022
JOIN(2022) 19 final/2

¹⁵ "COM_NUMBER_INTERNAL" entry in the authority table document-identifier-format

will be marked as

```
<meta>

<TLCLocation xml:id="BEL_BRU"
href="http://publications.europa.eu/resource/authority/place/BEL_BRU" showAs="Brussels"/>

<TLCTReference xml:id="prs3y" name="identifier"
href="http://publications.europa.eu/resource/authority/document-identifier-format/COM_NUMBER"
showAs="JOIN(2022) 19" shortForm="JOIN/2022/19"/>

</meta>

<container name="mainDoc">
  <block name="placeAndDate"><location refersTo="~BEL_BRU">Brussels</location>, <date date="2022-02-22">22.2.2022</date> </block>
  <block name="reference"> <docNumber refersTo="~prs3y">JOIN(2022) 19 <inline name="version">
>final/2</inline></docNumber></block>

</container>
```

Example: Proposal not finalised, with an internal reference¹⁶

```
<meta>
<TLCTReference xml:id="avts98y" name="identifier"
href="http://publications.europa.eu/resource/authority/document-identifier-format/
COM_NUMBER_INTERNAL" showAs="ckylbnre200dy396bvhp2a1hk" shortForm="ckylbnre200dy396bvhp2a1hk"/>
</meta>
...
<container name="mainDoc">
...
  <block name="reference"><docNumber refersTo="~avts98y">ckylbnre200dy396bvhp2a1hk</docNumber>
</block>
...
</container>
```

¹⁶ The internal reference is used by some DG's to identify the document internally when shared with different users/services. They are internal to the Commission.

PART 2.3 - 3.4.4 <container name="procedureIdentifier">

This container contains the identifier and the type of the legislative procedure.

The container contains a <p> element. The identifier and the type of the legislative procedure MUST be in a <docketNumber> element. The <docketNumber> element MUST have a @refersTo attribute that points to the corresponding <TLReference name="procedureReference">

Example

2016/0411 (COD)

Will be marked as following

```
<meta>
  <TLReference xml:id="procedure_2016_411" name="procedureReference"
    href="http://eur-lex.europa.eu/procedure/EN/2016_411"
    showAs="2016/0411 (COD)" shortForm="2016/411/COD/RDG1"/>
</references>
</meta>
...
<container name="procedureIdentifier">
  <p><docketNumber refersTo="~procedure_2016_411">2016/0411 (COD)</docketNumber></p>
</container>
```

PART 2.3 - 3.4.5 <container name="corrigendum"> and <container name="addendum">

When a new version of a document has to be corrected after sending to external partners, this new version has, in the cover page a box “corrigendum” with the reference to the document modified, the explanation of the correction and the language affected. When an addendum is done, the cover page has a box “addendum”

The <container name="corrigendum"> and the <container name="addendum"> have a similar structure. Both contains multiple <p>.

Inside, the inline elements are available:

- <affectedDocument> with inside, a <docNumber> with <inline name="version">, for the version and <date> for the <date> of the document modified
<affectedDocument> has a mandatory @href attribute that contains the ELI URI (or the CELEX URI) of the preparatory document that is corrected¹⁷.
<docNumber> has a mandatory @refersTo attribute pointing to an entry <TLReference name="identifier">
- <inline name="language"> for each language that is affected, when only some linguistic variant are affected. Each <inline name="language"> MUST have a @refersTo attribute pointing to the corresponding <TLReference name="language">.

<inline name="correctionInfo"> for the information on the correction

¹⁷ For preparatory documents that are related to an interinstitutional procedure, an ELI URI exists. The syntax is the following: [http://data.europa.eu/eli/dl/proc/\[year\]/\[seq_num\]/\[proc_Type\]/doc/com/\[com_number\]/\[version\]](http://data.europa.eu/eli/dl/proc/[year]/[seq_num]/[proc_Type]/doc/com/[com_number]/[version])

Example:**CORRIGENDUM**

This document corrects document COM (2022) 459 final of 19.09.2022.

Concerns all language versions.

Updates of the reference to the legal basis.

The text shall read as follows:

Will be marked as

```
<container name="corrigendum">
  <p>CORRIGENDUM</p>
  <p>This document corrects document <affectedDocument
href="http://data.europa.eu/eli/dl/proc/2022/278/COD/doc/com/COM_(2022)_459/final"18<docNum
ber>COM (2022) 459 <inline name="version">final</inline></docNumber> of <date date="2022-
09-19">19.09.2022</date></affectedDocument></p>
<p>Concerns all language versions.</p>
<p><inline name="correctionInfo">Updates of the reference to the legal basis.</inline></p>
<p>The text should read as follows:</p>
</container>
```

PART 2.3 - 3.4.6 <container name="authenticLanguages">

For acts entering into force by their notification, only the language versions in which the act is notified are authentic.

This information is inside a <container name="authenticLanguages">.

Each language inside MUST be identified with an <inline name="language"> element.

The <inline> element for the language MUST have an attribute @refersTo pointing to the corresponding <TLReference name="language"> metadata.

Example:

Only the English language is authentic

```
<meta>
...
  <TLReference xml:id="en"
href="http://publications.europa.eu/resource/authority/language/ENG" name="language"
showAs="en"/>
...
</meta>

<container name="authenticLanguages">
  <p>Only the <inline name="language" refersTo="~en">English</inline> language is
authentic</p>
</container>
```

¹⁸ CELEX alternative will be : <http://publications.europa.eu/resource/celex/52022PC0459>

PART 2.3 - 3.4.7 <container name="packageTitle">

This container is for the information related to a package

It contains a <p> element.

Example:

```
<container name="packageTitle">
  <p>Package Title</p>
</container>
```

PART 2.3 - 3.4.8 <longTitle>

The <longTitle> of <documentCollection> has the same structure and content as the <longTitle> of the <bill> included in this <documentCollection>.

The <longTitle> MUST contain only one <p>.

The <p> MUST contain the following inline elements:

elements in <longTitle>	Description	
<docStage>	The line comprising the information that the document is a proposal.	
<docType>	The line containing the type of the act. The mandatory attribute @refersTo points to the corresponding <TLCReference name="docType">.	
<docPurpose>	The subject of the act. The <docPurpose> MUST have the following inline elements when it contains the reference to another act:	
	<ref>	Marks the reference to an act mentioned in the subject of the current act. The mandatory attribute @href contains the ELI identifier of that act.
	<mref>	The fragment of the <docPurpose> that is common to multiple references to an act.

The <longTitle> can have notes. The note is with the same @marker as the one in the <longTitle> of the <bill>. They are never renumbered.

Example

Proposal for a

REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

amending Regulation (EC) No 1008/2008 on common rules for the operation of air
services in the Community

```
<meta>
  <TLReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>
</meta>

<longTitle>
  <p><docStage>Proposal for a</docStage>
    <docType refersTo="~REG">REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE
    COUNCIL</docType>
    <docPurpose>amending <ref href="http://data.europa.eu/eli/reg/2008/1008">Regulation
    (EC) No 1008/2008 on common rules for the operation of air services in the
    Community</ref></docPurpose></p>
</longTitle>
```

Example 2

Proposal for a

COUNCIL IMPLEMENTING DECISION

authorising Hungary to apply a special measure derogating from Article 287 of
Directive 2006/112/EC on the common system of value added tax, and repealing Council
Implementing Decision (EU) 2018/1490

```
<meta>
  <TLReference xml:id="DEC_IMPL" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/DEC_IMPL"
    showAs="Implementing decision"/>
</meta>

<longTitle>
  <p><docStage>Proposal for a</docStage>
    <docType refersTo="~DEC_IMPL">COUNCIL IMPLEMENTING DECISION</docType>
    <docPurpose>authorising Hungary to apply a special measure derogating from Article 287
    of <ref href="http://data.europa.eu/eli/dir/2006/112">Directive 2006/112/EC on the common
    system of value added tax</ref>, and repealing <ref
    href="http://data.europa.eu/eli/IMPL_DEC/2018/1490">Council Implementing Decision (EU)
    2018/1490</ref></docPurpose></p>
</longTitle>
```

PART 2.3 - 3.4.9 Notes in <coverPage>

The notes in the cover page comes from two sources:

- The <container> in the <coverPage> can have specific notes.
Note in the cover page is numbered with “*”.
- On the other hand, the <longTitle> element of the <coverPage> is a copy of the title of the legal text (=the <longTitle> of the <preface> of the <bill>).
One business constraint is that, if the title of the legal text has a note, this note must be also in the <coverPage> without being renumbered.

It means that, sometimes, the <coverPage> can have 2 notes with the same note number.

In this example, there are two notes with marker “*”¹⁹:



Brussels, 18.7.2016
COM(2016) 460 final
2016/0218 (COD)
SENSITIVE

Proposal for a

REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

on certain procedures for applying the Stabilisation and Association Agreement between the European Union and the European Atomic Energy Community, of the one part, and Kosovo* of the other part

Distribution only on a 'Need to know' basis - Do not read or carry openly in public places. Must be stored securely and encrypted in storage and transmission. Destroy copies by shredding or secure deletion. Full handling instructions <https://europa.eu/db33PX>
This designation is without prejudice to positions on status, and in line with UNSCR 1244/1999 and the ICJ Opinion on the Kosovo Declaration of Independence

It will be marked as

```
<container name="..."20>
  <p>SENSITIVE<authorialNote marker="*" placement="bottom"><p>Distribution only on a 'Need
to know' basis - Do not read or carry openly in public places...</p></authorialNote>
</container>
...
<longTitle>
  <p><docStage>Proposal for a</docStage>
<doctype refersTo="~REG">Regulation of the European Commission and of the Council</doctype>
  <docPurpose>on certain procedures for applying the Stabilisation and Association
Agreement between the European Union and the European Atomic Energy Community, of the one
part, and Kosovo<authorialNote marker="*" placement="bottom"><p>This designation is without
prejudice to position...</p></authorialNote> of the other part</docPurpose>
```

PART 2.3 - 3.4.10 <container name="eeaRelevance">

This optional container indicates that the bill is with relevance to the European Economic Area.

Example

```
<container name="eeaRelevance">
  <p>(Text with EEA relevance)</p>
</container>
```

¹⁹ This example has been created for the need of the specification. It is not the cover page of a real document.

²⁰ This <container> is not part of the specification and is only for the example purpose.

PART 2.3 - 3.4.11 <container name="associatedReferences">

This container contains the references to the associated documents (e.g. SWD document, SEC document, ...) associated to this Proposal.

This <container> can contain multiple <p>, one for each reference.

Each reference of a associated document MUST be marked with a <ref> element. The mandatory @href attribute contains the ELI URI or CELEX URI of the associated document.

Exemple

```
{SWD(2016) 27 final}
{SWD(2016) 28 final}
```

```
<container name="associatedReferences">
  <p>{<ref href="http://data.europa.eu/eli/dl/proc/.../.../cod/doc/swd/SWD_2016_27/final">SWD(2016) 27
final">SWD(2016) 27 final </ref>} </p>
  <p>{<ref href="http://data.europa.eu/eli/dl/proc/.../.../cod/doc/swd/SWD_2016_28/final"> SWD(2016) 28
final</ref>}</p>
</container>
```

PART 2.3 - 3.4.12 <container name="mainDocLanguage">

This container contains the language code of the document.

The language code inside MUST be identified with an <inline name="language"> element.

The <inline> element for the language MUST have an attribute @refersTo pointing to the <FRBRLanguage> metadata.

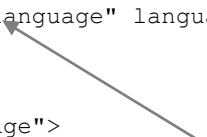
Example

EN

EN

```
<meta>
...
  <FRBRLanguage xml:id="~FRBRLanguage" language="en"/>
...
</meta>

<container name="mainDocLanguage">
  <p><inline name="language" refersTo="~FRBRLanguage">EN</inline></p>
</container>
```



PART 2.3 - 3.5 <collectionBody>

It contains one component per subdocuments.

PART 2.3 - 3.5.1 <component> for the Explanatory Memorandum

The <documentRef> has as attributes:

- A mandatory @href attribute containing the path to the file containing the Explanatory Memorandum;
- A mandatory @showAs attribute containing the content of the <longTitle>/<p>/<docType> element of this subdocument

```
<component>
  <documentRef href="...xml" showAs="EXPLANATORY MEMORANDUM"/>
</component>
```

PART 2.3 - 3.5.2 <component> for legal text

The <documentRef> has as attributes:

- A mandatory @href attribute containing the path to the file containing the legal text;
- the content of the <longTitle>/<p>/<docType> element of the corresponding subdocument

Example

```
<component>
  <documentRef href="...xml"
    showAs="REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL"/>
</component>
```

PART 2.3 - 3.5.3 <component> for the Legislative Financial and Digital Statement and the Legislative Financial Statement

The <documentRef> has as attributes:

- A mandatory @href attribute containing the path to the file containing the Legislative Financial and Digital Statement or the Legislative financial statement;
- the content of the <longTitle>/<p>/<docType> element of the corresponding subdocument

Example

```
<component>
  <documentRef href="...xml" showAs="LEGISLATIVE FINANCIAL STATEMENT"/>
</component>
```

Or

```
<component>
  <documentRef href="...xml" showAs="LEGISLATIVE FINANCIAL AND DIGITAL STATEMENT"/>
</component>
```

PART 2.3 - 4 The mark-up of the Explanatory Memorandum

The Explanatory Memorandum is a document included in the Proposal of the Commission that explains the context and the purpose of the proposal.

This subdocument is marked with a <doc> element

PART 2.3 - 4.1 @name attribute

The attribute @name **MUST** have the value "EXPL_MEMORANDUM", corresponding to the code of the authority table "resource-type" for this type of document.

PART 2.3 - 4.2 Overall organization

This document type has the following structure:

- <meta> mandatory
- <preface> mandatory
- <mainBody> mandatory

PART 2.3 - 4.3 <meta>

The following metadata are needed:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5)
The @value of <FRBRprescriptive> is set to "false"
- a <TLCReference name="docType"> with the information on the entry EXPL_MEMORANDUM in the authority table "resource-type".

PART 2.3 - 4.4 <preface>

The preface contains the title of the Explanatory Memorandum (which is the type of the document).

The title **MUST** be in the element <longTitle>. The <longTitle> **MUST** contain only one <p>.

The <p> **MUST** contain the <docType> element with a mandatory @refersTo attribute pointing to the <TLCReference name="docType"> for the 'EXPL_MEMORANDUM' entry.

Example:

```
<meta>
<TLCReference xml:id="EXPL_MEMORANDUM" name="docType"
  href="http://publications.europa.eu/resource/authority/resource-type/EXPL_MEMORANDUM"
  showAs="Explanatory memorandum"/>
</meta>

<preface>
  <longTitle>
    <p><docType refersTo="~EXPL_MEMORANDUM">EXPLANATORY MEMORANDUM</docType></p>
  </longTitle>
</preface>
```

PART 2.3 - 4.5 <mainBody>

The content of the Explanatory Memorandum is organised in well-defined and standardised hierarchical structures (referred to by the Common Vocabulary as ‘section’).

However, the Explanatory Memorandum does not use the Akoma Ntoso hierarchical elements for the mark up of its content.

- The sections MUST be marked up with the element <tblock>.
- The whole content of the section MUST be inside a <blockContainer> element.

NB: very short ‘Explanatory Memorandum’ can have no section. In this case, they are composed of <p>, <blocklist>, <table> or <block name=”crossheading”>

PART 2.3 - 4.5.1 The “unnumbered paragraph(s)” before the “section(s)”

One or more unnumbered paragraph can occur before the sections.

They are marked as

- <p> when they are simple block and
- <blocklist> when they are composed of sequence of points preceded by an introductory part,
- <table>.

PART 2.3 - 4.5.2 The section: <tblock>

Each <tblock> is composed of

- a mandatory <num> element (the <num> element contains the number of the section or the bullet sign if the section is not numbered)
- a mandatory <heading> element containing the subject of the section
- its content:
 - <blockContainer> or
 - multiple <tblock> if the content is composed of nested sections.

PART 2.3 - 4.5.3 The specific content of a section: <blockContainer>

Each section for which content is allowed MUST have an element <blockContainer>.

The structure of the <blockContainer> is composed of one or more of these elements:

- <p>
- <blockList>, composed of <item>, optionally preceded by a <listIntroduction> (introductory part) and optionally followed by a <listWrapUp> (conclusion of the list).
- table.
- <block name=”crossheading”> (independent subjects).

Example:

```
<tbody>
  <tr>
    <td>
      <num>•</num>
      <heading>Fundamental rights</heading>
      <blockContainer>
        <p>Not applicable</p>
      </blockContainer>
    </td>
  </tr>
</tbody>
```

Overall example of <mainBody>

EXPLANATORY MEMORANDUM

Pursuant to Article 287, point (12), of Directive 2006/112/EC¹ ('the VAT Directive'), Hungary may exempt from value added tax (VAT) taxable persons whose annual turnover is no higher than the equivalent in national currency of EUR 35 000 at the conversion rate on the day of its accession

Pursuant to Council Implementing Decision 2022/73 of 18 January 2022², Hungary is currently authorised to apply a special measure derogating from Article 287 of the VAT Directive to exempt from VAT taxable persons whose annual turnover is no higher than the equivalent in national currency of EUR 48 000 at the conversion rate on the day of its accession to the Union until 31 December 2024.

By letter registered with the Commission on 15 December 2022, Hungary requested an authorisation to increase the threshold of the above-mentioned existing measure to EUR 71 500 until 31 December 2024 ('the special measure').

In accordance with Article 395(2) of the VAT Directive, the Commission informed the other Member States by letter dated 11 January 2023 of the request made by Hungary. By letter dated 12 January 2023, the Commission notified Hungary that it had all the information it considered necessary for the appraisal of the request.

1. CONTEXT OF THE PROPOSAL

• Reasons for and objectives of the proposal

Chapter 1 of Title XII of the VAT Directive allows for the possibility for Member States to apply a special scheme for small enterprises, which includes the possibility to exempt from VAT taxable persons below a certain annual turnover. Taxable persons falling under this exemption do not have to charge VAT on their supplies and, consequently, cannot deduct VAT on their inputs.

will be marked as

```
<mainBody>
  <p>Pursuant to Article 287, point (12), of Directive 2006/112/EC<authorialNote
marker="1" placement="bottom"><p>OJ L 347, 11.12.2006, p. 1.</p></authorialNote> ('the VAT
Directive'), Hungary may exempt from value added tax (VAT) taxable persons whose annual
turnover is no higher than the equivalent in national currency of EUR 35 000 at the
conversion rate on the day of its accession Pursuant to Council Implementing </p>
  <p>Decision 2022/73 of 18 January 2022<authorialNote marker="2" placement="bottom">
    <p>Council Implementing Decision(EU) 2022/73 of 18 January 2022 amending
    Implementing Decision (EU) 2018/1490 as regards authorisation to Hungary to apply for a
    further period the special measure derogating from Article 287 of Directive 2006/112/EC on
    the common system of value added tax (OJ L 12, 19.1.2022, p. 148-150).</p>
  </authorialNote>, Hungary is currently authorised to apply a special measure derogating
  from Article 287 of the VAT Directive to exempt from VAT taxable persons whose annual
  turnover is no higher than the equivalent in national currency of EUR 48 000 at the
  conversion rate on the day of its accession to the Union until 31 December 2024. </p>
  <p>By letter registered with the Commission on 15 December 2022, Hungary requested an
  authorisation to increase the threshold of the above-mentioned existing measure to EUR 71
  500 until 31 December 2024 ('the special measure'). </p>
  <p>In accordance with Article 395(2) of the VAT Directive, the Commission informed the
  other Member States by letter dated 11 January 2023 of the request made by Hungary. By
  letter dated 12 January 2023, the Commission notified Hungary that it had all the
  information it considered necessary for the appraisal of the request. </p>
  <tbody>
    <tr>
      <td>
        <num>1.</num>
        <heading>CONTEXT OF THE PROPOSAL</heading>
        <tbody>
          <tr>
            <td>
              <num>•</num>
              <heading>Reasons for and objectives of the proposal</heading>
            </td>
          </tr>
        </tbody>
      </td>
    </tr>
  </tbody>
```

```
<blockContainer>
  <p> Chapter 1 of Title XII of the VAT Directive allows for the possibility
for Member States to apply a special scheme for small enterprises, which includes the
possibility to exempt from VAT taxable persons below a certain annual turnover. Taxable
persons falling under this exemption do not have to charge VAT on their supplies and,
consequently, cannot deduct VAT on their inputs. </p>
...
  </blockContainer>
</tblock>
...
</tblock>
</mainBody>
```

PART 2.3 - 5 *The mark-up of the Legal Text*

This subdocument is marked with a <bill> element

PART 2.3 - 5.1 @name attribute

The attribute @name **MUST** have one of these value, depending on the type of Legal text: "DEC", DIR", "REG", DEC_IMPL.

PART 2.3 - 5.2 Overall organization

This document type has the following structure:

- <meta> mandatory
- <preface> mandatory
- <preamble> mandatory
- <mainBody> mandatory
- <conclusions> mandatory
- <attachments> mandatory if there is one or more annex(es)

(See the general mark-up for "[AKN4EU PART 2 – 2.1 EU acts](#)")

PART 2.3 - 6 *The mark-up of the Legislative Financial and Digital Statement and of the Legislative Financial Statement*

The Legislative Financial and Digital Statement and the Legislative Financial Statement are documents included in the Proposal for an act, which explains the financial (and Digital) implication of the adoption of this Proposal.

These subdocuments are marked with a <doc> element. The 2 documents shares the same structure, so the AKN4EU mark-up follows the same rule (except for the @name attribute of <doc>).

PART 2.3 - 6.1 @name attribute

The attribute @name **MUST** have the value

- "STAT_FINANC_LEGIS", corresponding to the code of the authority table "resource-type" for Legislative and Financial Statement;
- 'STAT_DIGIT_FINANC_LEGIS, corresponding to the code of the authority table "resource-type" for the Financial and Digital Statement.

PART 2.3 - 6.2 Overall organization

This document type has the following structure:

- <meta> mandatory
- <preface> mandatory
- <mainBody> mandatory

PART 2.3 - 6.3 <meta>

The following metadata are needed:

- The metadata required by Akoma Ntoso (<identification> section)
- The standard AKN4EU metadata, as described in Part 1 of specification;
- The @value of <FRBRprescriptive> is set to "false"
- A <TLCReference name="docType"> with the information on the entry 'STAT_FINANC_LEGIS' or 'STAT_DIGIT_FINANC_LEGIS' in the authority table "resource-type".

PART 2.3 - 6.4 <preface>

The preface contains the title of the Financial Statement (which is the type of the document).

The title **MUST** be in the element <longTitle>. The <longTitle> **MUST** contain only one <p>.

The <p> **MUST** contain the <docType> element with a mandatory @refersTo attribute pointing to the <TLCReference name="docType"> for the Financial Statement entry.

Example:

```
<meta>
<TLReference xml:id="STAT_FINANC_LEGIS" name="docType"
  href="http://publications.europa.eu/resource/authority/resource-
type/STAT_FINANC_LEGIS"
  showAs="Legislative Financial Statement"/>
</meta>

<preface>
  <longTitle>
    <p><docType refersTo="STAT_FINANC_LEGIS">LEGISLATIVE FINANCIAL
STATEMENT</docType></p>
  </longTitle>
</preface>
```

Or

```
<meta>
<TLReference xml:id="STAT_DIGIT_FINANC_LEGIS" name="docType"
  href="http://publications.europa.eu/resource/authority/resource-
type/STAT_DIGIT_FINANC_LEGIS"
  showAs="Legislative Financial and Digital Statement"/>
</meta>

<preface>
  <longTitle>
    <p><docType refersTo="~STAT_DIGIT_FINANC_LEGIS">LEGISLATIVE FINANCIAL AND DIGITAL
STATEMENT</docType></p>
  </longTitle>
</preface>
```

PART 2.3 - 6.5 <mainBody>

Currently, the *Legislative Financial Statement* and the *Legislative Financial and Digital Statement* has a well-defined structure.

The structure is the following:

- A core structure composed of “independent points”
- A low level structure, grouping all structures available inside an “independent point”.

PART 2.3 - 6.5.1 Core structure: element <level>

In AKN4EU, the “independent point” MUST be marked with the element <level>.

Example:

```
<mainBody>
  <level>
    <num>1.</num>
    <content>
      <p>Obligations of manufacturers</p>
    </content>
  </level>
  <level>
    <num>1.1</num>
    <content>
      <p>The satisfactory operation of the multi-stage type-approval requires joint
action by all the manufacturers concerned. To that end approval authorities must ensure,
before granting first and subsequent stage type-approvals, that suitable arrangements exist
between the relevant manufacturers for the supply and interchange of documents and
```

```
information, so that the completed type of vehicle meets the technical requirements of all
the relevant regulatory acts listed in Annex II. Such information must include details of
relevant system, component and separate technical unit type-approvals and of vehicle parts
that form part of the incomplete vehicle but have not yet been type-approved.</p>
```

```
</content>
```

```
</level>
```

```
<level>
```

```
<num>1.2</num>
```

```
<content>
```

```
<p>Each manufacturer involved in a multi-stage type-approval shall be
responsible for the approval and conformity of production of all systems, components or
separate technical units manufactured or added by that manufacturer to the previously built
stage. The manufacturer of the subsequent stage shall not be responsible for objects that
have been approved in an earlier stage, except where that manufacturer modifies relevant
parts to such an extent that the previously granted type-approval becomes invalid.</p>
```

```
</content>
```

```
</level>
```

```
<level>
```

```
<num>2.</num>
```

```
<content>
```

```
<p>Obligations of approval authorities</p>
```

```
</content>
```

```
</level>
```

PART 2.3 - 6.5.2 Low level structures

In Legislative Financial Statement, complex <level> can have the following sub-structures:

PART 2.3 - 6.5.2.1 <heading>

For the subject of the independent point

PART 2.3 - 6.5.2.2 <content>

When the level has one simple content :

PART 2.3 - 6.5.2.3 <subparagraph>

When the <level> has multiple blocks, for the subparagraph that is a simple block.

PART 2.3 - 6.5.2.4 Subparagraph that is an object

Inside the Financial Statement, the following objects can occur

- Table
- Mathematical formula with or without legend.

Example

3. ESTIMATED FINANCIAL IMPACT OF THE PROPOSAL/INITIATIVE

3.1. Heading(s) of the multiannual financial framework and expenditure budget line(s) affected

Existing budget lines

In order of multiannual financial framework headings and budget lines.

Heading of multiannual financial framework	Budget line	Type of expenditure	Contribution			
	Number	Diff./Non-diff. ⁴⁶	from EFTA countries ⁴⁷	from candidate countries ⁴⁸	from third countries	within the meaning of Article 21(2)(b) of the Financial Regulation
1	DG CNECT: <02.04.03>	Diff.	YES	NO	NO	NO
1	ESMA: <03.10.04>	Diff.	NO	NO	NO	NO

New budget lines requested

Will be marked as

```

<level><num>3.</num>
  <heading>ESTIMATED FINANCIAL IMPACT OF THE PROPOSAL/INITIATIVE</heading>
</level>
<level><num>3.1.</num>
  <heading>Heading(s) of the multiannual financial framework and expenditure budget line(s)
  affected</heading>
  <subparagraph>
    <content>
      <p>Existing budget lines</p>
    </content>
  </subparagraph>
  <subparagraph>
    <content>
      <p><u>In order</u> of multiannual financial framework headings and budget lines.</p>
    </content>
  </subparagraph>
  ...
  <!-- subparagraph that is a table object -->
</level>

```

PART 2.3 - 6.5.2.5 <list>

When the subparagraph is composed of an introductory part following by a sequence of points or a sequence of indents.

Check structures are also present.

Example

- ☒ The proposal/initiative has no financial impact on revenue.
- ☐ The proposal/initiative has the following financial impact:
- ☐ on own resources
 - ☐ on other revenue
 - ☐ please indicate, if the revenue is assigned to expenditure lines

```

<list class="CHECK">
  <indent>
    <num><inline name="checked">&#x2611;</inline></num>
    <content>
      <p>The proposal/initiative has no financial impact on revenue.</p>
    </content>
  </indent>
  <indent>
    <num><inline name="unchecked">&#x2610;</inline></num>
    <list class="CHECK">

```

```

<subparagraph refersTo="~INP">
  <content>
    <p>The proposal/initiative has the following financial impact:</p>
  </content>
</subparagraph>
<indent>
  <num><inline name="unchecked">&#x2610;</inline></num>
  <content>
    <p>on own resources</p>
  </content>
</indent>
<indent>
  <num><inline name="unchecked">&#x2610;</inline></num>
  <content>
    <p>on other revenue</p>
  </content>
</indent>
<indent>
  <num><inline name="unchecked">&#x2610;</inline></num>
  <content>
    <p>please indicate, if the revenue is assigned to expenditure lines</p>
  </content>
</indent>
</list>
</indent>
</list>

```

PART 2.4 EP Texts adopted

PART 2.4 - 1 EP Text Adopted : use cases for AKN4EU

The AKN4EU baseline version contains the following use cases for the EP text adopted:

- EP Text Adopted that contains only a Legislative Resolution
- EP Text Adopted that contains a Legislative Resolution and a Consolidated text abridged, in the context of an agreement with the Council

All these document has a cover page.

PART 2.4 - 1.1 Case 1: Legislative resolution alone

European Parliament 2019-2024 TEXTS ADOPTED <i>Provisional edition</i>	Cover page
P9_TA-PROV(2020)0184 Specific rules for posting drivers in the road transport sector and enforcement requirements ***II European Parliament legislative resolution of 9 July 2020 on the Council position at first reading with a view to the adoption of a directive of the European Parliament and of the Council laying down specific rules with respect to Directive 96/71/EC and Directive 2014/67/EU for posting drivers in the road transport sector and amending Directive 2006/22/EC as regards enforcement requirements and Regulation (EU) No 1024/2012 (05112/1/2020 – C9-0106/2020 – 2017/0121(COD)) (Ordinary legislative procedure: second reading) <i>The European Parliament,</i> – having regard to the Council position at first reading (05112/1/2020 – C9-0106/2020), – having regard to the reasoned opinion submitted, within the framework of Protocol No 2 on the application of the principles of subsidiarity and proportionality, by the Senate of the Republic of Poland, asserting that the draft legislative act does not comply with the principle of subsidiarity, – having regard to the opinion of the European Economic and Social Committee of 18 January 2018¹, – having regard to the opinion of the Committee of the Regions of 1 February 2018², – having regard to its position at first reading³ on the Commission proposal to Parliament and the Council (COM(2017)0278), – having regard to Article 294(7) of the Treaty on the Functioning of the European Union, – having regard to the provisional agreement approved by the committee responsible under Rule 74(4) of its Rules of Procedure, ¹ OJ C 197, 8.6.2018, p. 45. ² OJ C 176, 23.5.2018, p. 57.	

PART 2.4 - 1.2 Case 2: Legislative resolution and Consolidated text, in the context of an agreement with the Council

P8_TA(2017)0110

Prospectus to be published when securities are offered to the public or admitted to trading
***I

European Parliament legislative resolution of 5 April 2017 on the proposal for a regulation of the European Parliament and of the Council on the prospectus to be published when securities are offered to the public or admitted to trading (COM(2015)0583 – C8-0375/2015 – 2015/0268(COD))

(Ordinary legislative procedure: first reading)

(2018/C 298/31)

The European Parliament,

- having regard to the Commission proposal to Parliament and to
 - having regard to Article 294(2) and Article 114 of the Treaty on the Functioning of the European Union, pursuant to which the Commission submitted the proposal to Parliament (C8-0375/2015),
 - having regard to Article 294(3) of the Treaty on the Functioning of the European Union,
 - having regard to the opinion of the European Central Bank of 17 March 2016 ⁽¹⁾,
 - having regard to the opinion of the European Economic and Social Committee of 16 March 2016 ⁽²⁾,
 - after consulting the Committee of the Regions,
 - having regard to the provisional agreement approved by the responsible committee under Rule 69(4) of its Rules of Procedure and the undertaking given by the Council representative by letter of 20 December 2016 to approve that position, in accordance with Article 294(4) of the Treaty on the Functioning of the European Union,
 - having regard to Rule 59 of its Rules of Procedure,
 - having regard to the report of the Committee on Economic and Monetary Affairs and the opinion of the Committee on the Internal Market and Consumer Protection (A8-0238/2016),
1. Adopts its position at first reading hereinafter set out ⁽³⁾;
 2. Calls on the Commission to refer the matter to Parliament again if it replaces, substantially amends or intends to substantially amend its proposal;
 3. Instructs its President to forward its position to the Council, the Commission and the national parliaments.

P8_TC1-COD(2015)0268

Position of the European Parliament adopted at first reading on 5 April 2017 with a view to the adoption of Regulation (EU) 2017/... of the European Parliament and of the Council on the prospectus to be published when securities are offered to the public or admitted to trading on a regulated market, and repealing Directive 2003/71/EC

(As an agreement was reached between Parliament and Council, Parliament's position corresponds to the final legislative act. Regulation (EU) 2017/1129.)

Cover page

Legislative resolution

Consolidated Text abridged

PART 2.4 - 2 AKN4EU mark-up of the EP Texts adopted: overall structure

The EP Text Adopted documents follow the standard AKN4EU model of a document:

- The entry point (main.xml of a .leg package) is a <documentCollection>.
- The <documentCollection> contains the information of the cover page. For the Parliament documents, these information are split in the <coverPage> and the <preface> elements.
- The <documentCollection> has, as subdocument:
 - an mandatory *Legislative Resolution*
 - an optional Consolidated text.

For each subdocument, the <documentCollection> contains, inside the <collectionBody>, one <component> element.

- The content of each subdocument is in a specific file

Document type of the subdocuments

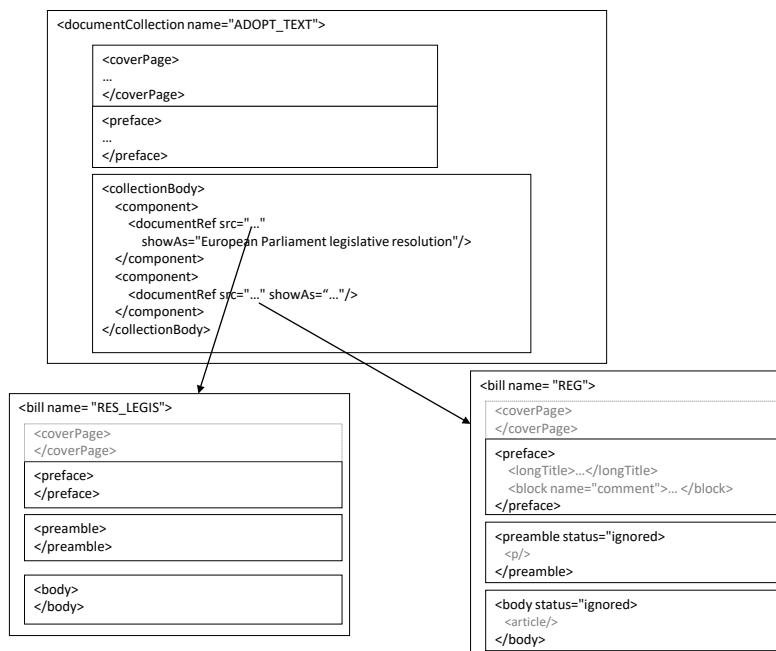
- For the legislative Resolution, the file MUST have as document type:

<bill name="RES_LEGIS">

- In the use case studied, the "*Consolidated act, abridged*".

It is a <bill> with the type corresponding to the type of the legal text ("REG", "DIR", "DEC").

As the text of the bill is not displayed, the @status of <preamble> and <body> are set to "ignored"



PART 2.4 - 3 The mark-up of the <documentCollection>

PART 2.4 - 3.1 @name attribute

The attribute @name MUST have the value "ADOPT_TEXT", corresponding to the code of the authority table "resource-type" for this type of document.

PART 2.4 - 3.2 <meta>

The following metadata are needed:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata MUST be set to "false".
- For the value of the @name attribute of the <documentCollection>, it MUST exist a <TLCReference name="docType"> with the information on the corresponding entry in the authority table "resource-type" (the value of the attribute @name is the authority code)

Example



```
<documentCollection name="ADOPT_TEXT">
  <meta>
    ...
    <references source="~...">
      ...
      <TLCReference xml:id="ADOPT_TEXT" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/ADOPT_TEXT"
        showAs="Texts adopted"/>
      ...
    </references>
  </meta>
  ...
</documentCollection>
```

- In the <analysis>/<otherReferences>, an <implicitReference> **SHOULD** exist, that identify the document on which this EP Text Adopted reacts (if such document exists).
A <TLCReference name="docType"> **MUST** exist with the corresponding type of document (@xml:id corresponding to the reference in the @refersTo of the <implicitReference>).

Example

In the case of a first reading, the document referenced is the *Proposal for an act*:



```
<analysis source="...">
  <otherReferences source="~PUBL">
    <implicitReference xml:id="com-2015-583" refersTo="~PROP_ACT"
      href="http://data.europa.eu/eli/prop_act/2015/58321" showAs="COM(2015) 0583"/>
  </otherReferences>
</analysis>
<references source="~...">
  <TLCReference xml:id="PROP_ACT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/PROP_ACT"
    showAs="Proposal for an act"/>
</references>
```

²¹ With the syntax of ELI-DL, it will be "http://data.europa.eu/eli/dl/proc/2015/268/cod/doc/com/COM_2015_826"

- In <references>, a <TLCReference name="procedureReference"> **MUST** exist, if the document is associated to a legislative procedure.

As forth indication of the @shortForm attribute, the step inside the legislative procedure **MUST** be indicated; this information is expressed using a code from the authority table "procedure-phase".

Example (a procedure in second reading)

```
<TLCReference xml:id="procedure_2011_458" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2011_458" showAs="2011/0458 (COD)"
  shortForm="2011/458/COD/RDG2"/>
```

- A corresponding <TLCProcess> **CAN** exist to make a explicit link between this information and the corresponding entry in the authority table:

```
<TLCProcess xml:id="RDG2"
  href="http://publications.europa.eu/resource/authority/procedure-phase/RDG2"
  showAs="Second reading"/>
```

Example

Specific rules for posting drivers in the road transport sector and enforcement requirements ***II

Will be marked as following

```
<documentCollection name="ADOPT_TEXT">
<meta>
...
<analysis source="~...">
  <otherReferences source="~...">
    <implicitReference refersTo="~POSIT"
      href="http://data.europa.eu/eli/posit/2020/5112_1" showAs="05112/1/2020"/>
    <!-- optional -->
  </otherReferences>
</analysis>
...
<references source="~...">
  <TLCReference xml:id="ADOPT_TEXT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/ADOPT_TEXT"
    showAs="Texts adopted"/>
  <TLCReference xml:id="POSIT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/POSIT"
    showAs="Position"/> <!-- optional only if <implicitReference> -->
  <TLCReference xml:id="procedure_2017_121" name="procedureReference"
    href="http://eur-lex.europa.eu/procedure/EN/2017_121"
    showAs="2017/0121 (COD)" shortForm="2017/121/COD/RDG2"/>
  <TLCProcess xml:id="RDG2"
    href="http://publications.europa.eu/resource/authority/procedure-phase/RDG2"
    showAs="Second reading"/> <!-- optional -->
</references>
</meta>
...
<container name="relatedProc">
  <p><shortTitle>Specific rules for posting drivers in the
    road transport sector and enforcement requirements</shortTitle>
    <inline name="procSymbol" refersTo="~procedure_2017_121">***II</inline></p>
</container>
```

PART 2.4 - 3.3 <coverPage> and <preface>

The content of the cover page is split into the elements <coverPage> and <preface>.

In the following schema, the content in green is in the <preface>, the other content is in the <coverPage>.



PART 2.4 - 3.3.1 <coverPage>

The <coverPage> contains the following <container>:

PART 2.4 - 3.3.1.1 <container name="actingEntity">

It contains two <p> elements:

- One with the <organization> with the mandatory @refersTo attribute pointing to an <TLCOrganization> element in the <references> part of the metadata.
- One with the "EP legislature". This information MUST be marked with the AKN element <legislature>.

Example

European Parliament
2019-2024

```
<meta>
  <TLCOrganization xml:id="EP"
    href="http://publications.europa.eu/resource/authority/corporate-body/EP"
    showAs="European Parliament"/>
</meta>
...
<container name="actingEntity">
  <p><organization refersTo="~EP">European Parliament</organization></p>
  <p><legislature>2019-2024</legislature></p>
</container>
```

PART 2.4 - 3.3.1.2 <container name="logo">

No specific mark-up

Example

```
<container name="logo">
  <p></p>
</container>
```

PART 2.4 - 3.3.1.3 <container name="docHeader">

This container contains the information on the "title of the document".

In this class of EP document, the <docHeader> contains only the type of the document (inside a <container name="typeOfDocument">)

<container name="typeOfDocument"> can contain two <p> elements:

- One, always present, with the <docType> with the mandatory @refersTo attribute. The @refersTo attribute MUST point to a <TLCReference name="docType">, in the <references> part of the metadata.
- One, optional, with the information on the version. The information is marked by an <inline> element with @name="version".

Example

TEXTS ADOPTED
Provisional edition

```
<meta>
<TLCReference xml:id="ADOPT_TEXT" name="docType"
  href="http://publications.europa.eu/resource/authority/resource-type/ADOPT_TEXT"
  showAs="Texts adopted"/>
</meta>
...
<container name="docHeader">
  <container name="typeOfDocument">
    <p><docType refersTo="~ADOPT_TEXT">TEXTS ADOPTED</docType></p>
    <p><inline name="version">Provisional edition</inline></p>
  </container>
</container>
```


PART 2.4 - 3.3.2 <preface>

The <preface> contains the following <container>:

PART 2.4 - 3.3.2.1 <container name="mainDoc">

This <container> contains the reference of the document in a <block name="reference">.

The reference MUST be in a <docNumber> element

P9_TA-PROV(2020)0184

```
<container name="mainDoc">
  <block name="reference"><docNumber>P9_TA-PROV(2020)0184</docNumber></block>
</container>
```

PART 2.4 - 3.3.2.2 <container name="relatedProc">

This <container> contains information related to the Legislative Procedure : a 'short title' with the "subject", and a symbol representing the current step in the legislative procedure.

The symbol is marked with a <inline> element with the mandatory @name attribute sets to "procSymbol"

It **MUST** contain a @refersTo attribute pointing to a <TLReference name="procedureReference">.

This <TLReference> contains the URI of the EUR-lex page of the procedure.

Example

Specific rules for posting drivers in the road transport sector and enforcement requirements *II**

```
<meta>
<TLReference xml:id="procedure_2011_458" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2011_458" showAs="2011/0458 (COD)"
shortForm="2011/458/COD/RDG2"/>
</meta>
...
<container name="relatedProc">
  <p><shortTitle>Specific rules for posting drivers in the
    road transport sector and enforcement requirements</shortTitle>
    <inline name="procSymbol" refersTo="~procedure_2011_458">***II</process></p>
</container>
```

PART 2.4 - 3.4 <collectionBody>

It contains one component per subdocuments.

PART 2.4 - 3.4.1 <component> for the Legislative Resolution

The <documentRef> has as attributes.

- A mandatory @href attribute containing the path to the file containing the Legislative Resolution
- A mandatory @showAs attribute containing the content of the <longTitle>/<p>/<docType> element.

```
<component>
  <documentRef href="legislative_resolution_123.xml"
    showAs="European Parliament legislative resolution"/>
</component>
```

PART 2.4 - 3.4.2 <component> for the Consolidated text abridged

When the EP adopted texts contains a Consolidated text, there is an additional <component> element.

The <documentRef> has, as value for the @showAs attribute:

- the content of the <docType> in the <longTitle>/<p>/<docStage> of the corresponding subdocument or, if this element does not exist,
- the <docType> in the <longTitle>/<p> itself.

Example

```
<component>
  <documentRef href="...xml"
    showAs="Position of the European Parliament"/>
</component>
```


PART 2.4 - 4 The mark-up of the Legislative resolution

This subdocument is marked with a <bill> element

PART 2.4 - 4.1 @name attribute

The attribute @name **MUST** have the value "RES_LEGIS", corresponding to the code of the authority table "resource-type" for this type of document.

PART 2.4 - 4.2 Overall organization

This document type has the following structure:

- <meta> mandatory
- <preface> mandatory
- <preamble> mandatory
- <body> mandatory

PART 2.4 - 4.3 <meta>

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata **MUST** be set to "true".
-
- A <TLCReference name="docType"> **MUST** exist for the authority code RES_LEGIS:

```
<TLCReference xml:id="RES_LEGIS" name="docType"
  href="http://publications.europa.eu/resource/authority/resource-type/RES_LEGIS"
  showAs="Legislative resolution"/>
```

- In the <analysis>/<otherReferences>, an <implicitReference> **SHOULD** be inserted with the information on the document at the basis of this Legislative Resolution.

A <TLCReference name="docType"> **MUST** exist with the @xml:id corresponding to the @xml:id referenced in the @refersTo attribute of the <implicitReference>.

For example, in the case of a second reading, the reference to the Position of the Council:

```
<implicitReference xml:id="pos-2020-5112_1" refersTo="~POSIT"
  href="http://data.europa.eu/eli/posit/2020/5112_1" showAs="05112/1/2020"/>
...
<references source="...">
  <TLCReference xml:id="POSIT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/POSIT"
    showAs="Position"/> <!-- optional only if <implicitReference> -->
</source>
```

- In the <references>, A <TLCReference name="procedureReference"> **MUST** exist.

Remainder: The forth information in the @shortForm is the step inside the legislative procedure; this information is expressed using a code of the authority table "procedure-phase".

```
<TLCReference xml:id="procedure_2011_458" name="procedureReference"
  href="http://eur-lex.europa.eu/procedure/EN/2011_458" showAs="2011/0458 (COD) "
  shortForm="2011/458/COD/RDG2"/>
```


- A corresponding <TLCProcess> **CAN** exist to make a explicit link to the entry in the authority table:

```
<TLCProcess xml:id="RDG2"
href="http://publications.europa.eu/resource/authority/procedure-phase/RDG2"
showAs="Second reading"/>
```

PART 2.4 - 4.4 <preface>

It has the following sub-elements

- <longTitle>

Specificity: the <longTitle> contains the title and some information related to the legislative procedure in the same block. Therefore, inside the <p> element,

- <docTitle> MUST exist, that contains the part related to the title of the document
- <inline name="relatedProc"> MUST exist that contains the information related to the legislative procedure.

Inside the <inline name="relatedProc">,

- The first document number of the parenthesis is the document on which is provided the Consolidated text. It **MUST** be marked as following:
 - A <docNumber> element, with a mandatory @refersTo attribute pointing to a <TLCReference name="identifier">.
 - Inside this <docNumber>, a <ref> element **SHOULD** be inserted with the following alternative value for the mandatory @href attribute :
 - reference to the corresponding metadata that is the corresponding <implicitReference> that contains the ELI URI of the document.
 - directly the ELI URI of the document.
- The second document number of the parenthesis is the "session number" of the same document. It **MUST** be marked as following:
 - A <docNumber> element, with a mandatory @refersTo attribute pointing to a <TLCReference name="identifier">.
- The third information is the procedure number. It **MUST** be marked with a <docketNumber> with a @refersTo attribute pointing to the corresponding <TLCReference> with the @name="procedureReference".

Example

European Parliament legislative resolution of 9 July 2020 on the Council position at first reading with a view to the adoption of a directive of the European Parliament and of the Council laying down specific rules with respect to Directive 96/71/EC and Directive 2014/67/EU for posting drivers in the road transport sector and amending Directive 2006/22/EC as regards enforcement requirements and Regulation (EU) No 1024/2012 (05112/1/2020 – C9-0106/2020 – 2017/0121(COD))

```

<meta>
<analysis source="~EP">
  <otherReferences source="~EP">
    <implicitReference xml:id="pos2020-5112-1" refersTo="~POSIT"
      href="http://data.europa.eu/eli/posit/2020/5112/1" showAs="05112/1/2020"/>
    <!-- ELI uri = draft !!! -->
  </otherReferences>
</analysis>
<references>
  <TLReference xml:id="RES_LEGIS" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/RES_LEGIS"
    showAs="Legislative resolution"/>
  <TLReference xml:id="id-C9-0106-2020" name="identifier"
    href="http://publications.europa.eu/resource/authority/document-identifier-
    format/SESSION_NUMBER" showAs="C9-0106/2020" shortForm="C/9/106/2020"/>

  <TLReference xml:id="id-5112-1-2020" name="identifier"
    href="http://publications.europa.eu/resource/authority/document-identifier-
    format/CSL_NUMBER" showAs="05112/1/2020" shortForm="5112/1/2020"/>
  <TLReference xml:id="procedure_2017_121" name="procedureReference"
    href="http://eur-lex.europa.eu/procedure/EN/2017_121" showAs="2017/0121(COD)"
    shortForm="2017/121/COD/RDG2"/>

</meta>
...
<longTitle>
  <p><docTitle><docType refersTo="~RES_LEGIS">European Parliament legislative
  resolution</docType> of <date date="2020-07-09">9 July 2020</date>
    <docPurpose>on the Council position at first reading with a view to the
    adoption of a directive of the European Parliament and of the Council laying down
    specific rules with respect to <ref
    href="http://data.europa.eu/eli/dir/1996/71">Directive 96/71/EC</ref> and <ref
    href="http://data.europa.eu/eli/dir/2014/67">Directive 2014/67/EU</ref> for posting
    drivers in the road transport sector and amending <ref
    href="http://data.europa.eu/eli/dir/2006/22">Directive 2006/22/EC</ref> as regards
    enforcement requirements and <ref
    href="http://data.europa.eu/eli/reg/2012/1024">Regulation (EU) No 1024/2012</ref>
  </docPurpose></docTitle>
    <inline name="relatedProc">(<docNumber refersTo="~id-5112-1-2020"><ref
    href="~pos2020-5112-1">05112/1/2020</ref></docNumber> - <docNumber refersTo="~id-
    C9-0106-2020">C9-0106/2020</docNumber> - <docketNumber
    refersTo="~procedure_2017_121">2017/0121 (COD)</docketNumber>)</inline></p>
</longTitle>

```

- **<container name="relatedProc">**

It contains inside a **<p>**, in a **<process>** element, the information related to the step of the legislative procedure. The **<process>** element MUST have an **@refersTo** attribute pointing to the **<TLReference name="procedureReference">**

Example

(Ordinary legislative procedure: second reading)

```
<container name="relatedProc">
  <p><process refersTo="~procedure_2011_458">(Ordinary legislative procedure: second
reading)</process></p>
</container>
```

PART 2.4 - 4.5 <preamble>

The **<preamble>** contains the following sub-elements

- One mandatory **<formula name="actingEntity">** as first element
- **<citations>** containing one or more **<citation>**

Remarks on the preamble of Legislative Resolution

1. Each citation starts with an indent character (*mdash* character). This *mdash* is not part of the text. To indicate that the citation is to render with *mdash*, the parent **<citations>** element MUST have a **@refersTo** attribute pointing to a **<TLConcept>** element indicating that the **<citation>** is to render with an indent character (authority code "CITATION_DASH").
2. Some **<citation>** are related to legal basis. In this case, they SHOULD be marked with a **@refersTo** attribute pointing to the **<TLReference name="contentSubject">** and the **@href** pointing to the 'LegalBasis' concept in Eurovoc.

Example

– having regard to Article 294(7) of the Treaty on the Functioning of the European Union,

```
<meta>
...
<TLReference name="contentSubject" href="http://eurovoc.europa.eu/5456"
showAs="Legal basis" xml:id="legalBasis"/>

<TLConcept xml:id="CITATION_DASH"
href="http://publications.europa.eu/resource/authority/subdivision-content/CITATION_DASH"
showAs="citation with dash"/>
...
</meta>
...

<citations refersTo="~CITATION_DASH">
...
  <citation refersTo="~legalBasis">
    <p>having regard to Article 294(7) of the Treaty on the Functioning of the European
Union,</p>
  </citation>
```

```
...
</citations>
```

PART 2.4 - 4.6 <body>

The <body> has the following sub-elements:

- Basic structures
 - Numbered paragraph (<paragraph> with <num>)

Example

```
<body>
  <paragraph>
    <num>1.</num>
    <content>
      <p>Adopts its position at first reading hereinafter set out <authorialNote marker="3"
placement="bottom"><p>This position replaces the amendments adopted on 15 September 2016
(Texts adopted <docNumber>P8_TA(2016)0353</docNumber>).</p></authorialNote>; </p>
    </content>
  </paragraph>
  <paragraph>
    <num>2.</num>
    <content>
      <p>Calls on the Commission to refer the matter to Parliament again if it replaces,
substantially amends or intends to substantially amend its proposal;</p>
    </content>
  </paragraph>
  <paragraph>
    <num>3.</num>
    <content>
      <p>Instructs its President to forward its position to the Council, the Commission and
the national parliaments.</p>
    </content>
  </paragraph>
</body>
```

PART 2.4 - 5 *The mark-up of the Consolidated text abridged*

The AKN4EU 4.1 covers only the case of Consolidated text abridged.

The consolidated text is in fact, the draft of an EU legal text (Regulation, Directive or Decision). It is marked as a <bill> document type.

PART 2.4 - 5.1 @name attribute

The attribute @name MUST have one of these value "REG", "DIR", "DEC" (regulation, directive, decision).

PART 2.4 - 5.2 Overall organization

This document type has the following structure:

- <meta> mandatory
- <preface> mandatory
- <preamble> mandatory
- <body> mandatory
- <attachments> mandatory if the <bill> has annex(es)

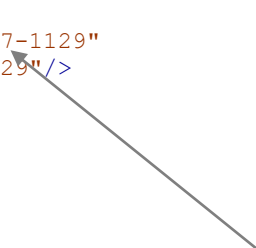
PART 2.4 - 5.3 <meta>

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata MUST be set to "true".
- In the <analysis>/<otherReferences>

In the case of a Consolidated text, abridged, an <alternativeReference> SHOULD be defined containing the EU act that is the Consolidated text.

```
<meta>
  <analysis>
    <otherReferences>
      <alternativeReference xml:id="reg-2017-1129"
href="http://data.europa.eu/eli/reg/2017/1129"/>
    </otherReferences>
  </analysis>
</meta>
```

...corresponds to the final legislative act, <ref href="~reg-2017-1129"> Regulation (EU) 2017/1129</ref>...



PART 2.4 - 5.4 <preface>

It has the following sub-elements:

PART 2.4 - 5.4.1 <container name="mainDoc">

It contains the document identifier.

It MUST contain a <block name="reference">.

Inside, the document identifier MUST be inside a <docNumber> element

Example

```
<container name="mainDoc">
  <block name="reference">
    <docNumber>P8_TC1-COD(2015)0268</docNumber>
  </block>
</container>
```

PART 2.4 - 5.4.2 <longTitle>

It contains the title of the document

Given the following example,

Position of the European Parliament adopted at first reading on 5 April 2017 with a view to the adoption of Regulation (EU) 2017/... of the European Parliament and of the Council on the prospectus to be published when securities are offered to the public or admitted to trading on a regulated market, and repealing Directive 2003/71/EC

Two informations on the type of the document:

- it provides the role of the document in the legislative procedure), and
- it is a Regulation.

To represent this, the structure inside the <longTitle>/<p> is the following:

- A <docStage>containing a <docType> and a <date>
- A <docType> (that can contain a <placeholder>)
- A <docPurpose>

The first docType has no @refersTo attribute. The second <docType> MUST have a @refersTo attribute pointing to the corresponding <TLCReference name="docType">

Example

```

<meta>
  <TLCTReference xml:id="REG" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/REG"
    showAs="Regulation"/>
</meta>
<longTitle>
  <p><docStage><docType>Position of the European Parliament</docType> adopted at first
  reading on <date>5 April 2017</date> with a view to the adoption of </docStage> <docType
  refersTo="~REG">Regulation <placeholder>(EU) 2017/...</placeholder> of the European
  Parliament and of the Council</docType> <docPurpose>on the prospectus to be published when
  securities are offered to the public or admitted to trading on a regulated market, and
  repealing <ref href="http://data.europa.eu/eli/dir/2003/71">Directive
  2003/71/EC</ref></docPurpose></p>
</longTitle>

```

PART 2.4 - 5.4.3 <container name="abridgedTextComment">

A special comment replace the content of the <bill>.

In this comment, the reference to the act that that is the Position of the Parliament.

In the mark-up, the comment is put in the preface, in a <container name="abridgedTextComment">

The reference, inside this comment, SHOULD refers to the <alternativeReference> inside the metadata>

Example

```

<meta>
  <alternativeReference xml:id="reg-2017-1129"
    ref="http://data.europa.eu/eli/reg/2017/1129"/>
</meta>
...
<container name="abridgedTextComment">
  <p>(As an agreement was reached between Parliament and Council, Parliament's position
  corresponds to the final legislative act, <ref href="~reg-2017-1129"> Regulation (EU)
  2017/1129</ref>.)</p>
</container>

```

PART 2.4 - 5.5 <preamble>

When it is an abridged consolidated text, the element <preamble> has the attribute @status set to "ignored".

As the <preamble> element cannot be empty, it contains an empty <p>

Example

```

<preamble status="ignored">
  <p/>
</preamble>

```

PART 2.4 - 5.6 <body>

When it is an abridged consolidated text, the element <body> has the attribute @status set to "ignored".

As the <body> element cannot be empty, it contains an empty <article>

Example

```
<body status="ignored">  
  <article/>  
</body>
```


PART 2.5 Council documents

PART 2.5 - 1 *Council documents: use cases*

All the Council documents studied have the same structure:

- A cover page
- 0, one or more "Council Explanatory" document. The Council Explanatory is without title of the document.
- Other optional subdocuments, generally identified inside the document as "ANNEX". These optional subdocuments are not really annexes: they are in fact, the main part of the document.

In this analysis, they are named *CNSDocANNEX* for "Council doc annex".

A (*CNSDocANN*) can be:

- An act or bill (Regulation, directive, decision, Council acts, ...)
- A consolidated version of a <bill> or fragments of consolidated version of bill.
This is not part of AKN4EU 4.1
- A specific document (Council conclusions, simple doc, ...)
- Any other document without specific type

We examine the following cases and how they are split in subcomponents:

- Council internal documents in general like *Note*, *"I/A" Item Note*, *"I" Item Note...*
- The Statement of the Council's reasons
- The Position of the Council
- Council internal document with Draft Council act (decision for example)

PART 2.5 - 1.1 *Council internal documents in general*

This covers among others the following Council internal documents *Note*, *"I/A" Item Note*, *"I" Item Note*, *Working document...* and provides a generic way to mark these documents.

The presentation of these documents is as follows:

- An optional cover page
- 0, one or more "Council explanatory", (a text explaining the context and content of the document)
- 0, one or more *CNSDocANN*.
When there is a subdocument before, the *CNSDocANN* is optionally preceded by some words like "ANNEX", with a numbering if there is more than one *CNSDocANN*.

Example

The following picture shows a Council's note with a cover page, a Council Explanatory and a CNSdocANN that contains fragments of a consolidated version of a bill.

The Council Explanatory has no "title of the document"

The word "ANNEX" at the begin of the CNSdocANN is not part of the content of CNSdocANN. It is just placed to mark the limit between Council explanatory and the CNSDocANN.

Cover page


Council of the European Union

Brussels, 27 February 2017
(OR, 89)

06/18/17

ENER 88
CODEC 280

NOTE

From: General Secretariat of the Council
To: Permanent Representatives Committee
Subject: Proposal for a REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL, concerning measures to safeguard the security of gas supply and repealing Regulation (EU) No 994/2010
Preparation for the next informal trilogue

In Article 2, additional paragraph (1a) was introduced. Article 12 was revised entirely based on the proposal from the European Parliament with the addition of key elements from the Council's initial mandate.

III. CONCLUSION

On that basis the Permanent Representatives Committee is invited to:

- give the Presidency a revised mandate on Articles 2 and 12 as set out in Annex to this Note, which will supplement the initial Council mandate (5844/17) to be used as the basis for further negotiations with the European Parliament.

The Presidency will report to the Committee on the outcome of the second informal trilogue meeting and submit, where necessary, an adjusted text for analysis and possible agreement by this Committee.

I. INTRODUCTION

On 16 February 2016, the Commission submitted to the Council a proposal for a Regulation of the European Parliament and of the Council concerning measures to safeguard the security of gas supply and repealing Regulation (EC) No 994/2010¹.

II. PRESIDENTY PROPOSAL FOR A REVISED MANDATE ON ARTICLES 2 AND 12

With the view to the second informal trilogue with the European Parliament, scheduled for 2 March, delegations will find in the Annex the revised Articles 2 and 12, reflecting discussion at the first trilogue, technical meetings and the Council Working Party meetings.

The Presidency has examined carefully the proposal from the European Parliament, the comments provided by delegations and considered that the revised text represents a way forward to continue negotiations on Article 2 and 12.

¹ 6225/16 ADD 1, ADD 2, ADD 3

06/18/17 DOE 28 BL/ue 1 EN

06/18/17 DOE 28 BL/ue 2 EN

ANNEX

Article 2

Definitions

For the purposes of this Regulation, the definitions in Article 2 of Directive 2009/73/EC⁴ and Article 2 of Regulation (EC) No 715/2009 of the European Parliament and of the Council⁵ shall apply.

The following definitions shall also apply:

(1) 'protected customer' means a household customer connected to a gas distribution network and, in addition, where the Member State concerned so decides, may also mean one or more of the following:

(a) a small or medium-sized enterprise, provided that it is connected to a gas distribution network, or an essential social service, provided that it is connected to a gas distribution or transmission network, and provided that such enterprises or services do not represent jointly more than 20 % of the total annual final gas consumption in that Member State;

(b) a district heating installation to the extent that it delivers heating to household customers or to the enterprises or services referred to in point (a) provided that such installation is not able to switch to other fuels and is connected to a gas distribution or transmission network;

(1a) 'solidarity protected customer' means:

household customers connected to a gas distribution network, and, in addition, shall also mean one or more of the following:

a) a district heating installation if it is a 'protected customer' as specified in point 1(b) of this Article in the relevant Member State and to the extent that it delivers heat to households or essential social services;

b) an essential social service to the extent that it is a 'protected customer' in the relevant Member State as specified in points 1(a) and 2 of this Article, but not including educational and public administration services;

(2) 'essential social service' means: healthcare, essential social care, emergency, security, educational or public administration service;

(3) 'national regulatory authority' means a national regulatory authority designated in accordance with Article 19(1) of Directive 2009/73/EC;

(4) 'competent authority' means a national governmental authority or a national regulatory authority designated by a Member State to ensure the implementation of the measures provided for in this Regulation.

Council Explanatory

CNSDocANN

PART 2.5 - 1.2 Statement of the Council's Reasons

The Statement of the Council's Reasons is only composed of a Council Explanatory

Cover page

Council Explanatory

I. INTRODUCTION

- On 11 December 2015, the Commission submitted a proposal to the European Parliament and to the Council for a Regulation of the European Parliament and of the Council on the sustainable management of external fishing fleets¹, repealing Council Regulation (EC) No 1006/2008². The proposal envisages an overhaul of the authorisation regime for Union fishing vessels to fish outside Union waters, and for third country vessels to fish inside Union waters.
- Following an in-depth examination of the proposal by the Working Party on Internal and External Fisheries Policy, the Council agreed on a general approach³ on 28 June 2016.
- On 1 March 2016, the Committee of the Regions decided not to issue an opinion.
- On 25 May 2016 the European Economic and Social Committee adopted its opinion.⁴
- On 2 February 2017, the European Parliament adopted its legislative report containing the first reading position.⁵
- Between February and early March 2017, the Working Party on Internal and External Fisheries Policy examined the set of amendments contained in the European Parliament's legislative report, and on 9 March 2017 COREPER established a mandate⁶ for negotiations with the EP.

¹ Cf. doc. 15262/1/15 REV 1 PECHE 481 CODEC 1773.
² Cf. Council Regulation (EC) No 1006/2008 of 29 September 2008 concerning authorisations for fishing activities of Community fishing vessels outside Community waters and the access of third country vessels to Community waters, amending Regulations (EEC) No 2847/93 and (EC) No 1627/94 and repealing Regulation (EC) No 3317/94, OJ L 266, 29.10.2008, p. 33.
³ Cf. doc. 10143/16 PECHE 217 CODEC 868.
⁴ OJ C 363, 19.08.2016, p. 116.
⁵ Cf. doc. 5866/17 PECHE 44 CODEC 141 PE 4.
⁶ Cf. doc. 6304/2/17 REV 2 PECHE 58 CODEC 211.

11382/2/17 REV 2 ADD 1 DRI psc 1 EN

Example

PART 2.5 - 1.3 Position of the Council

The Position of the Council is only composed of a CNSDocANN. There is no Council Explanatory and there is no word "ANNEX" at the start of the CNSDocANN

Example

Cover page

CNSDocANN

DECISION No .../2013/EU
OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

of ...

providing macro-financial assistance to the Kyrgyz Republic

THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on the Functioning of the European Union, and in particular Article 209 thereof,

Having regard to the proposal from the European Commission,

After transmission of the draft legislative act to the national parliaments,

Acting in accordance with the ordinary legislative procedure¹,

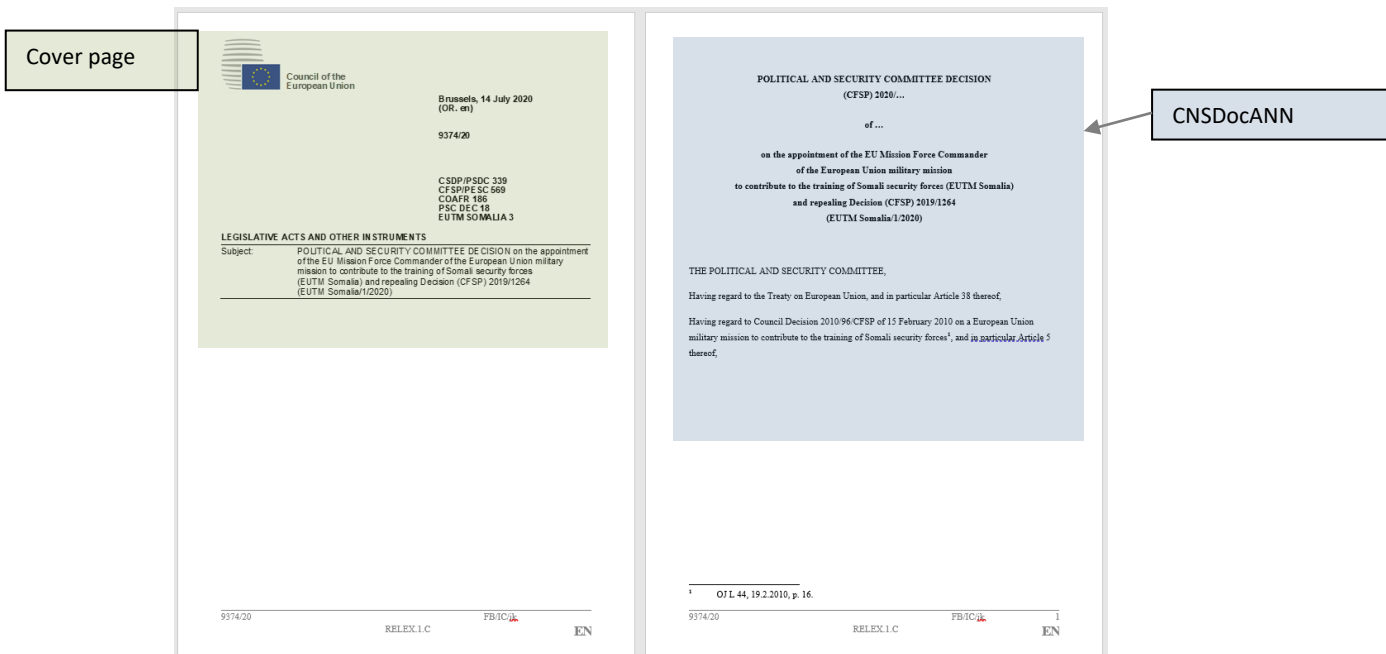
¹ Position of the European Parliament of 11 December 2012 and position of the Council at first reading of ... (not yet published in the Official Journal). Position of the European Parliament of ... (not yet published in the Official Journal).

11703/1/13 REV 1 DGG 1A vm 1 EN

PART 2.5 - 1.4 Council internal document with (draft) act

This internal document is only composed of a CNSDocANN. There is no Council Explanatory and there is no word "ANNEX" at the start of the CNSDocANN

Example



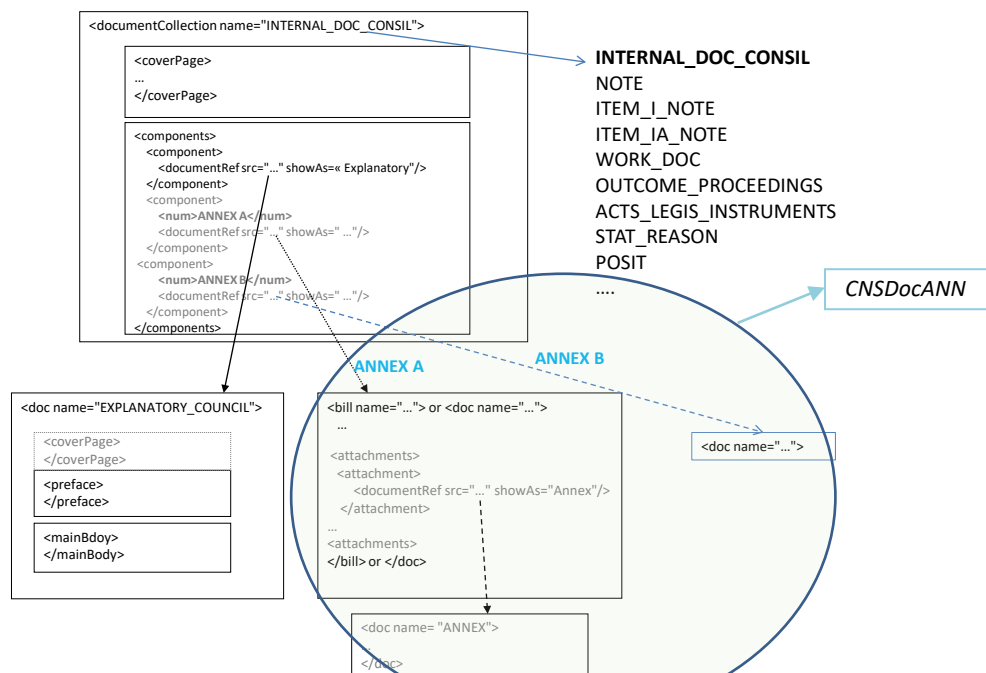
PART 2.5 - 2 AKN4EU mark-up of the Council documents: overall structure

Council documents follow the standard AKN4EU model of a document:

- The entry point (main.xml of the .leg package) is the <documentCollection>
- The <documentCollection> contains the <coverPage> that can be empty.
- The <documentCollection> has one or more subdocuments.
For each subdocument, the <documentCollection> contains, inside the <collectionBody>, one <component> element.
- The content of each subdocument is in a specific file:

Document type of the subdocument

- For the optional "Council Explanatory", the file MUST have as document type : <doc name="EXPLANATORY_COUNCIL">.
- For each optional CNSDocANN, the file can have, as document type, <doc name="..."> or <bill name="...">, depending on the content.
The value of the mandatory @name attribute is also depending on the content of the subdocument.
- The optional word "ANNEX[nn]" at the beginning of the CNSDocANN MUST be marked inside the corresponding <component> of the <documentCollection>, in a <num> element.



PART 2.5 - 3 The mark-up of the <documentCollection>

PART 2.5 - 3.1 The @name attribute

The <documentCollection> element has a mandatory attribute @name with one of the following values (non exhaustive list):

Component	Value of attribute @name (from the authority table "resource-type")
"Council Internal Document" Generic type for Council internal document.	INTERNAL_DOC_CONSIL
NOTE	NOTE
'I' ITEM NOTE	ITEM_I_NOTE
'I/A' ITEM NOTE	ITEM_IA_NOTE
OUTCOME OF PROCEEDINGS	OUTCOME_PROCEEDINGS
WORKING DOCUMENT	WORK_DOC
STATEMENT OF THE COUNCIL'S REASONS	STAT_REASON
LEGISLATIVE ACTS AND OTHER INSTRUMENTS	ACTS_LEGIS_INSTRUMENTS
Position of the Council	POSIT
...	...

PART 2.5 - 3.2 <meta>

The following metadata are needed:

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata MUST be set to "false".
 - For the value of the @name attribute of the <documentCollection>, it MUST exist a <TLReference name="docType"> with the information on the corresponding entry in the authority table "resource-type" (the authority code has the same value as the value of the attribute @name)
 - For each legislative procedure mentioned in the <coverPage>, it MUST exist
 - In the <references> part of metadata,
a <TLReference name="procedureReference"> ;
 - in the <otherReference> of the <analysis> part of metadata,
an <implicitReference>, referencing the corresponding "PROP_ACT" (Proposal for an act)²².
 - For each <implicitReference>, a <TLReference name="identifier"> CAN exist.

²² In this case, the <references> part of metadata MUST have a <TLReference name="docType"> for the "PROP_ACT" definition.

Example

When, in the cover page of a Council internal document, there is the following information (CoV DLV20 1.9, legislative/legal procedure identifier):

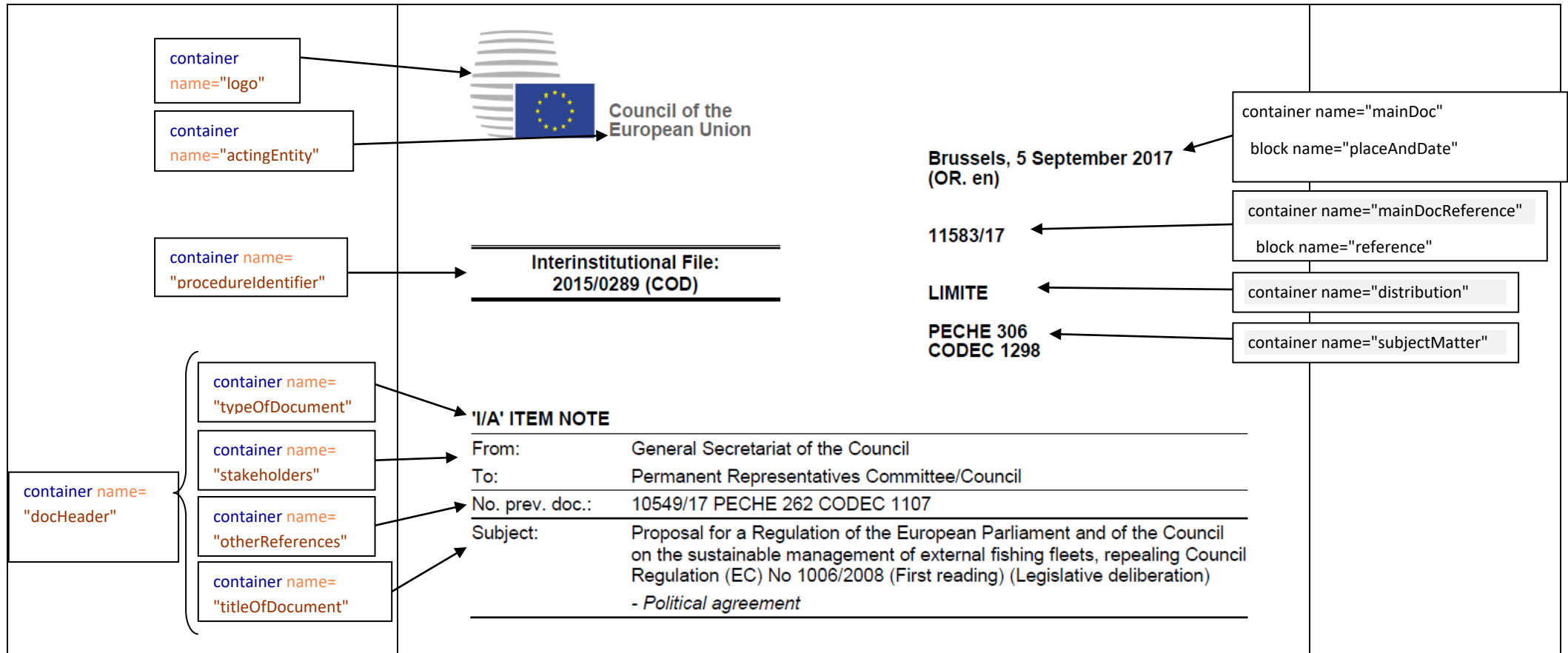
Interinstitutional File:
2016/0030 (COD)

the mark-up of the content and the metadata will have the following:

```
<documentCollection name="INTERNAL_DOC_CONSIL">
  <meta>
    ...
    <analysis source="~...">
      <otherReferences source="~PUBL">
        <implicitReference for="~COM_2016_0052" refersTo="~PROP_ACT"
          href="http://data.europa.eu/eli/prop_act/2016/52" showAs="COM(2016)0052"/>
      </otherReferences>
    </analysis>
    <references source="~...">
      <TLReference xml:id="INTERNAL_DOC_CONSIL" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-
        type/INTERNAL_DOC_CONSIL" showAs="Council internal document"/>
      <TLReference xml:id="procedure_2016_30" name="procedureReference"
        href="http://eur-lex.europa.eu/procedure/EN/2016_30" showAs="2016/0030 (COD)"
        shortForm="2016/30/COD/RDG1"/>
      <TLReference xml:id="COM_2016_0052" name="identifier"
        href="http://publications.europa.eu/resource/authority/document-identifier-
        format/COM_NUMBER"
        showAs="COM(2016)0052" shortForm="COM/2016/52"/>
      <TLReference xml:id="PROP_ACT" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/PROP_ACT"
        showAs="Proposal for an act"/>
    ...
  </references>
</meta>
<coverPage>
  ...
  <container name="procedureIdentifier">
    <p>Interinstitutional File: <doctetNumber refersTo="~procedure_2016_30">
2016/0030 (COD) </doctetNumber></p>
  </container>
  ...
</coverPage>
...
</documentCollection>
```


PART 2.5 - 3.3 <coverPage>

The cover page of the Council document contains information on the document. In AKN4EU these information are grouped in multiple <container>. This section describes the <container> used. All are optional.



PART 2.5 - 3.3.1 <container name="logo">

As already defined

PART 2.5 - 3.3.2 <container name="actingEntity">

As already defined

PART 2.5 - 3.3.3 <container name="mainDoc">

This container contains the place and date of the document and can have information on the original language(s) version of the document.

- The place and date is marked with a <block name="placeAndDate"> element. Inside,
 - the place MUST be in a <location> element with the @refersTo attribute pointing to the corresponding entry in the <references> part of the metadata.
 - The date MUST be in a <date> element with a mandatory @date attribute.
- The information on the original language version(s) is marked with a <block name="mainDocOriginalLanguage">.

The language code(s) inside MUST be in a <inline name="language">

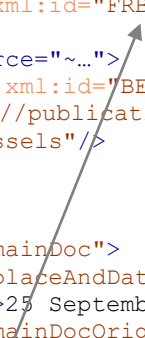
The mandatory @refersTo attribute of this <inline> points to the <FRBRlanguage> metadata if this linguistic version is the original, otherwise to the <FRBRtranslation>.

Example

Brussels, 25 September 2013
(OR. en)

Will be marked as :

```
<meta>
...
  <FRBRlanguage xml:id="FRBRlanguage" language="en"/>
...
  <references source="~...">
    <TLCLocation xml:id="BEL_BRU"
      href="http://publications.europa.eu/resource/authority/place/BEL_BRU"
      showAs="Brussels"/>
  </references>
</meta>
...
<container name="mainDoc">
  <block name="placeAndDate"><location refersTo="~BEL_BRU">Brussels</location>, <date
date="2013-09-25">25 September 2013</date></block>
  <block name="mainDocOriginalLanguage">(OR. <inline name="language"
refersTo="~FRBRlanguage">en</inline>)</block>
</container>
```



PART 2.5 - 3.3.4 <container name="procedureIdentifier">

The container contains one <p> element with the following information:

- The label is in an <inline name="label"> element
- Each procedure identifier is in a <docketNumber> element. The <docketNumber> MUST have an attribute @refersTo that points to a <TLReference name="procedureReference"> of the corresponding procedure. See [The metadata](#) for more information on the metadata needed for legislative/legal procedure of the document.

Example

```
<meta>
<TLReference xml:id="procedure_2015_289" name="procedureReference"
             href="http://eur-lex.europa.eu/procedure/EN/2015_289"
             showAs="2015/0289 (COD)" shortForm="2015/289/COD"/>
</meta>

<container name="procedureIdentifier">
  <p><inline name="label">Interinstitutional File:</inline>
    <docketNumber refersTo="~procedure_2015_289">2015/0289 (COD)</docketNumber></p>
</container>
```

PART 2.5 - 3.3.5 <container name="mainDocReference">

The number of the document is in a specific container. It is inside a <block name="reference"> in the inline element <docNumber>.

Example

11703/1/13
REV 1

Will be marked as

```
<container name="mainDocReference">
  <block name="reference"><docNumber>11703/1/13 REV 1</docNumber></block>
</container>
```

PART 2.5 - 3.3.6 <container name="subjectMatter">

This part of the cover page contains a list of acronyms, with a number.

The container has as value “subjectMatter” for the attribute @name.

To be aligned to the IMMC markup, the keyword is isolated in an inline element (<inline name="subjectCode">²³>).

Example

ECOFIN 649
RELEX 597
COEST 172
NIS 32
CODEC 1631
PARLNAT 228

```
<container name="subjectMatter">
  <p><inline name="subjectCode">ECOFIN</inline> 649</p>
  <p><inline name="subjectCode">RELEX</inline> 597</p>
  <p><inline name="subjectCode">COEST</inline> 172</p>
  <p><inline name="subjectCode">NIS</inline> 32</p>
  <p><inline name="subjectCode">CODEC</inline> 1631</p>
  <p><inline name="subjectCode">PARLNAT</inline> 228</p>
</container>
```

PART 2.5 - 3.3.7 <container name="distribution">

This <container> is optional and will only be present when there is information on the restricted distribution to the document.

Example

LIMITE

will be marked as:

```
<container name="distribution">
  <p>LIMITE</p>
</container>
```

²³ If the keywords are part of an authority table, a <term> can be used with a reference to the corresponding TLCTerm in the references part of the metadata.

PART 2.5 - 3.3.8 <container name="docHeader">

The central part of the cover page contains information like the type of the document, the issuer and addressee, the reference to other documents, the subject etc.

The <container name="docHeader"> is composed of several elements <container> to divide the information in different lines.

Example (CoV DLV20 1.10):

'I/A' ITEM NOTE	
From:	General Secretariat of the Council
To:	Permanent Representatives Committee/Council
No. prev. doc.:	10549/17 PECHE 262 CODEC 1107
Subject:	Proposal for a Regulation of the European Parliament and of the Council on the sustainable management of external fishing fleets, repealing Council Regulation (EC) No 1006/2008 (First reading) (Legislative deliberation) - Political agreement

PART 2.5 - 3.3.8.1 <container name="typeOfDocument">

This <container> contains one <p> that SHOULD contain a <docType> element.

<docType> has a mandatory @refersTo attribute that MUST point to the corresponding <TLCReference name="docType">

Example

'I/A' ITEM NOTE

```
<meta>
  <TLCReference xml:id="ITEM_IA_NOTE" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/ITEM_IA_NOTE"
    showAs="'I/A' item note"/>
</meta>

<container name="typeOfDocument">
  <p><docType refersTo="~ITEM_IA_NOTE">'I/A' ITEM NOTE</docType></p>
</container>
```

If the document type is not defined in the authority table, the container contains a <p> element without <docType> element inside

Example

```
<container name="typeOfDocument">
  <p>some ITEM NOTE</p>
</container>
```

PART 2.5 - 3.3.8.2 <container name="stakeholders">

This optional <container> contains the information on the issuer, the addressee. It can also, when appropriate, contain the date of the event

It is composed of following elements <block>

- <block name="issuer">
To indicate the entity, from which the document originates
- <block name="addressee">
to indicate the addressee of the document.
- <block name="eventDate">
to indicate the date of the event.

Both blocks have the same structure: they MUST have an <inline name="label"> and can have one or more elements <organisation>.

The <organisation> MUST have a @refersTo attribute that CAN point to the corresponding <TLCReference> or remains empty.

Example

From:	General Secretariat of the Council
To:	Permanent Representatives Committee/Council

```
<meta>
<TLCOrganization xml:id="CONSIL_SG"
href="http://publications.europa.eu/resource/authority/corporate-body/CONSIL_SG"
showAs="General Secretariat of the Council"/>
<TLCOrganization xml:id="COREPER"
href="http://publications.europa.eu/resource/authority/corporate-body/COREPER"
showAs="Committee of Permanent Representatives"/>
</meta>

<container name="stakeholders">
  <block name="originator"><inline name="label">From:</inline>
    <organization refersTo="~CONSIL_SG">General Secretariat of the
Council</organization></block>
  <block name="addressee"><inline name="label">To:</inline>
    <organization refersTo="~COREPER">Permanent Representatives Committee/Council
</organization></block>
</container>
```

The @refersTo of the organization can be empty

Example

```
<block name="addressee"><inline name="label">To:</inline>
<organization refersTo="">Delegations </organization></block>
```

PART 2.5 - 3.3.8.3 <container name="otherReferences">

This optional <container> can contain the following 2 blocks, or at least one of them:

- <block name="prevDoc">
- <block name="cionDoc">

Both blocks have the same structure: an <inline name="label"> for the label and the rest of the text.

The content can be marked with the <docNumber> or the <inline name="subjectCode"> following the content.

Example

No. prev. doc.:	10549/17 PECHE 262 CODEC 1107
-----------------	-------------------------------

```
<container name="otherReferences">
  <block name="prevDoc"><inline name="label">No. prev. doc.:</inline>
    <docNumber>10549/17</docNumber> <inline name="subjectCode">PECHE</inline> 262 <inline
name="subjectCode">CODEC</inline> 1107</block>
</container>
```

PART 2.5 - 3.3.8.4 *<container name="titleOfDocument">*

This <container> contains one <p>. This <p> contains two sub-elements:

- An <inline name="label"> for the subject
- The <docTitle> for the information on the right.
The <docTitle> can contain <eol/> for newline

Example

Subject:	Proposal for a Regulation of the European Parliament and of the Council on the sustainable management of external fishing fleets, repealing Council Regulation (EC) No 1006/2008 (First reading) (Legislative deliberation) - <i>Political agreement</i>
----------	---

```
<container name="titleOfDocument">
  <p><inline name="label">Subject:</inline>
    <docTitle> Proposal for a Regulation of the European Parliament and of the Council on
the sustainable management of external fishing fleets, repealing Council Regulation (EC) No
1006/2008 (First reading) (Legislative deliberation) <eol/>
- Political agreement</docTitle></p>
</container>
```

PART 2.5 - 3.4 <collectionBody>

It contains one <component> per subdocument.

PART 2.5 - 3.4.1 <component>

The <component> MUST contain a <documentRef> with the following mandatory attributes:

- @href containing the path to the file containing the subdocument;
- @showAs contains <preface>/<longTitle>/<docType> of the corresponding subdocument if exists, <preface>/<longTitle> else.

The <component> CAN contain, before the <documentRef> a <num> element (when the CNSDocANN is preceded the word "ANNEX...").

PART 2.5 - 3.5 Examples

The following examples show the mark-up of the <documentCollection>:

- The general case of Council internal document,
- The statement of Council's reasons,
- The Position of the Council
- A draft act.

Only the most interesting mark-up are shown regarding the type of the document and the split into component(s). The official instances attached with this specification will contain the full mark-up of the <documentCollection> of these examples.


```
<collectionBody>

  <component>
    <documentRef href="....xml" showAs="Explanatory"/>
  </component>

  <component>
    <num>ANNEX</num>
    <documentRef href="....xml" showAs="REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE
COUNCIL"/>
  </component>

</collectionBody>

</documentCollection>
```

PART 2.5 - 3.5.2 Statement of Council's reasons

The Statement of Council's reasons (CoV DLV20 1.5A) is composed of a "Council Explanatory".



Council of the European Union

Brussels, 17 October 2017
(OR: es)

11382/2/17
REV 2 ADD 1

PECHÉ 298
CODEC 1287
PARLHAT 250

Interinstitutional File:
2015/0289 (COD)

STATEMENT OF THE COUNCIL'S REASONS

Subject: Position of the Council at first reading with a view to the adoption of a REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL on the sustainable management of external fishing fleets, and repealing Council Regulation (EC) No 1006/2008

- Statement of the Council's reasons
- Adopted by the Council on 17 October 2017

I. INTRODUCTION

- On 11 December 2015, the Commission submitted a proposal to the European Parliament and to the Council for a Regulation of the European Parliament and of the Council on the sustainable management of external fishing fleets¹, repealing Council Regulation (EC) No 1006/2008². The proposal envisages an overhaul of the authorisation regime for Union fishing vessels to fish outside Union waters, and for third country vessels to fish inside Union waters.
- Following an in-depth examination of the proposal by the Working Party on Internal and External Fisheries Policy, the Council agreed on a general approach³ on 28 June 2016.
- On 1 March 2016, the Committee of the Regions decided not to issue an opinion.
- On 25 May 2016 the European Economic and Social Committee adopted its opinion⁴.
- On 2 February 2017, the European Parliament adopted its legislative report containing the first reading position⁵.
- Between February and early March 2017, the Working Party on Internal and External Fisheries Policy examined the set of amendments contained in the European Parliament's legislative report, and on 8 March 2017 COREPER established a mandate⁶ for negotiations with the EP.

¹ Cf. doc. 15262/1/15 REV 1 PECHÉ 481 CODEC 1773.
² Cf. Council Regulation (EC) No 1006/2008 of 29 September 2008 concerning authorisations for fishing activities of Community fishing vessels outside Community waters and the access of third country vessels to Community waters, amending Regulation (EEC) No 2847/93 and (EC) No 1627/94 and repealing Regulation (EC) No 3317/94, OJ L 286, 29.10.2008, p. 33.
³ Cf. doc. 10143/16 PECHÉ 217 CODEC 868.
⁴ OJ C 303, 19.08.2016, p.116.
⁵ Cf. doc. 3866/17 PECHÉ 44 CODEC 141 PE 4.
⁶ Cf. doc. 6304/2/17 REV 2 PECHÉ 58 CODEC 211.

11382/2/17 REV 2 ADD 1

DRI psc 1

EN

11382/2/17 REV 2 ADD 1

DRI psc 2

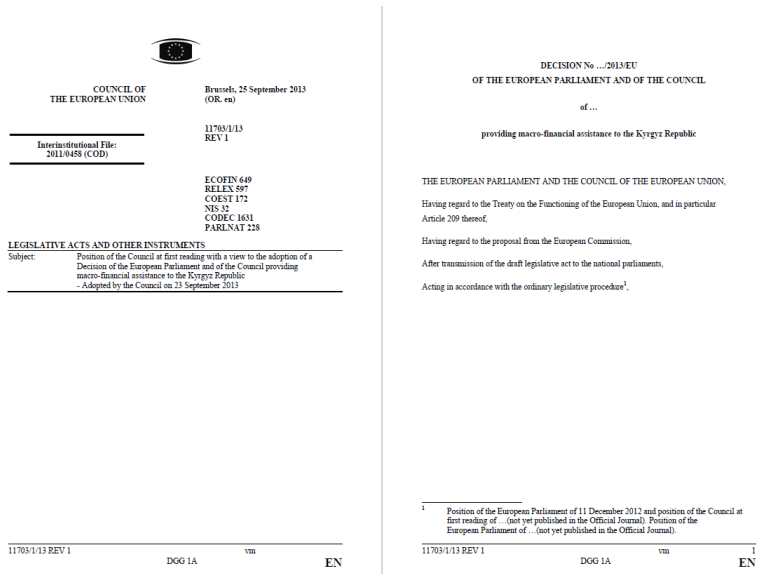
EN

The markup of the <documentCollection> (main.xml) will be the following:

```
<documentCollection name="INTERNAL_DOC_CONSIL">
  <!-- or <documentCollection name="STAT_REASON"> -->
  <meta>
    ...
    <references source="...">
      <TLReference xml:id="STAT_REASON" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/STAT_REASON"
        showAs="Statement of reasons"/>
      <TLReference xml:id="INTERNAL_DOC_CONSIL" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-
type/INTERNAL_DOC_CONSIL" showAs="Council internal document"/>
      ...
    </references>
  </meta>
  <coverPage>
    ...
    <container name="typeOfDocument">
      <p><docType refersTo="~STAT_REASON">STATEMENT OF THE COUNCIL'S REASONS</docType></p>
    </container>
    ...
  </coverPage>
  <collectionBody>
    <component>
      <documentRef href="....xml" showAs="Explanatory"/>
    </component>
  </collectionBody>
</documentCollection>
```

PART 2.5 - 3.5.3 The Position of the Council

The Position of the Council (CoV DLV20 1.5A) is composed of a CNSDocANN, without Council explanatory.



The markup of the <documentCollection> (main.xml) could be the following (the <documentCollection> can have up to 3 different values to represent different phases in the life of the document (for example, drafting phase, finalization, diffusion, ...)):

```
<documentCollection name="INTERNAL_DOC_CONSIL"> <!-- or <documentCollection name="POSIT">
or <documentCollection name="ACTS_LEGIS_INSTRUMENTS"> -->

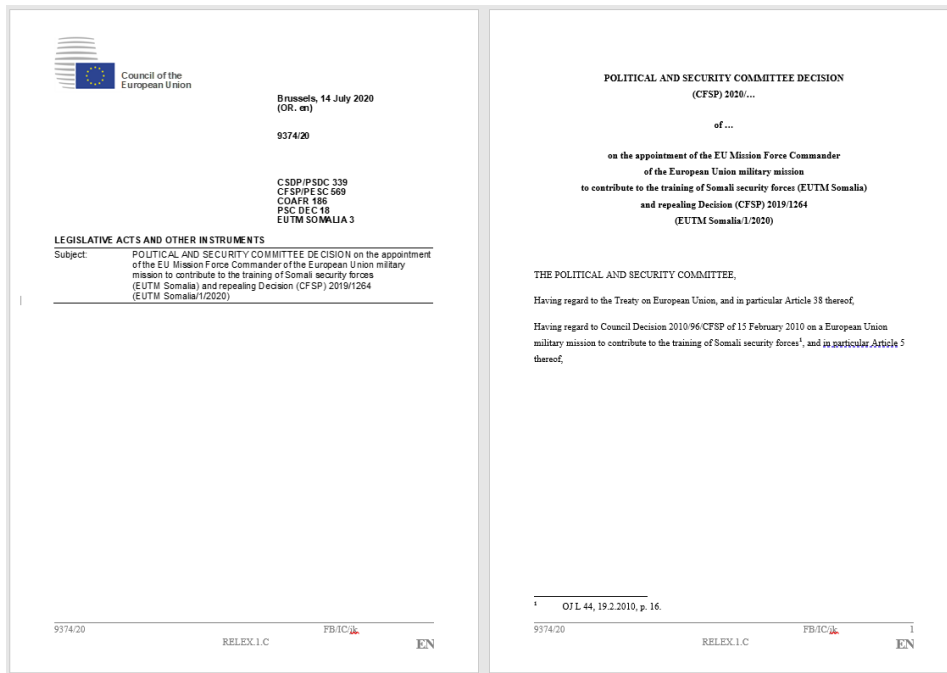
<meta>
...
<references source="~...">
  <TLReference xml:id="ACTS_LEGIS_INSTRUMENTS" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-
    type/ACTS_LEGIS_INSTRUMENTS" showAs="Legislative acts and other instruments"/>

  <!-- Depending on the value of the @name attribute of the <documentCollection>, -->
  <TLReference xml:id="INTERNAL_DOC_CONSIL" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-
    type/INTERNAL_DOC_CONSIL" showAs="Council internal document"/>
  <!-- or -->
  <TLReference xml:id="POSIT" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/POSIT"
    showAs="Position"/>
...
</references>
</meta>
<coverPage>
...
<container name="typeOfDocument">
  <p><docType refersTo="~ACTS_LEGIS_INSTRUMENTS">LEGISLATIVE ACTS AND OTHER
    INSTRUMENTS</docType></p>
</container>
...
</coverPage>
<collectionBody>
  <component>
    <documentRef href="....xml" showAs="DECISION No .../2013/EU OF THE EUROPEAN PARLIAMENT
    AND OF THE COUNCIL"/>
  </component>
</collectionBody>
</documentCollection>
```

```
</component>  
</collectionBody>
```

PART 2.5 - 3.5.4 The Council internal document with (draft) act

Like the Position of the Council (CoV DLV20 1.5A), the document is composed of a CNSDocANN, without Council explanatory.



The markup of the <documentCollection> (main.xml) could be the following (the <documentCollection> can have 2 different values, the generic one and ACTS_LEGIS_INSTRUMENTS to indicate that the document contains a draft act.

```
<documentCollection name="INTERNAL_DOC_CONSIL"> <!-- or <documentCollection
name="ACTS_LEGIS_INSTRUMENTS"> -->
  <meta>
    ...
    <references source="~...">
      <TLReference xml:id="ACTS_LEGIS_INSTRUMENTS" name="docType"
href="http://publications.europa.eu/resource/authority/resource-
type/ACTS_LEGIS_INSTRUMENTS" showAs="Legislative acts and other instruments"/>
      <TLReference xml:id="INTERNAL_DOC_CONSIL" name="docType"
href="http://publications.europa.eu/resource/authority/resource-
type/INTERNAL_DOC_CONSIL" showAs="Council internal document"/>
    ...
  </references>
</meta>
<coverPage>
  ...
  <container name="typeOfDocument">
    <p><docType refersTo="~ACTS_LEGIS_INSTRUMENTS">LEGISLATIVE ACTS AND OTHER
INSTRUMENTS</docType></p>
  </container>
  ...
</coverPage>
<collectionBody>
  <component>
    <documentRef href="....xml" showAs="POLITICAL AND SECURITY COMMITTEE DECISION"/>
```

```
</component>  
</collectionBody>
```

PART 2.5 - 4 The mark-up of the 'Council Explanatory' subdocument

This subdocument is marked with a <doc> element

PART 2.5 - 4.1 The @name attribute

The <doc> element used to mark-up the 'Council Explanatory' has a mandatory attribute @name with always the value "EXPLANATORY_COUNCIL".

PART 2.5 - 4.2 Overall organization

This subdocument has the following structure:

- <meta> mandatory (metadata)
- <preface> mandatory
- <mainBody> mandatory

PART 2.5 - 4.3 <meta>

The following metadata are needed:

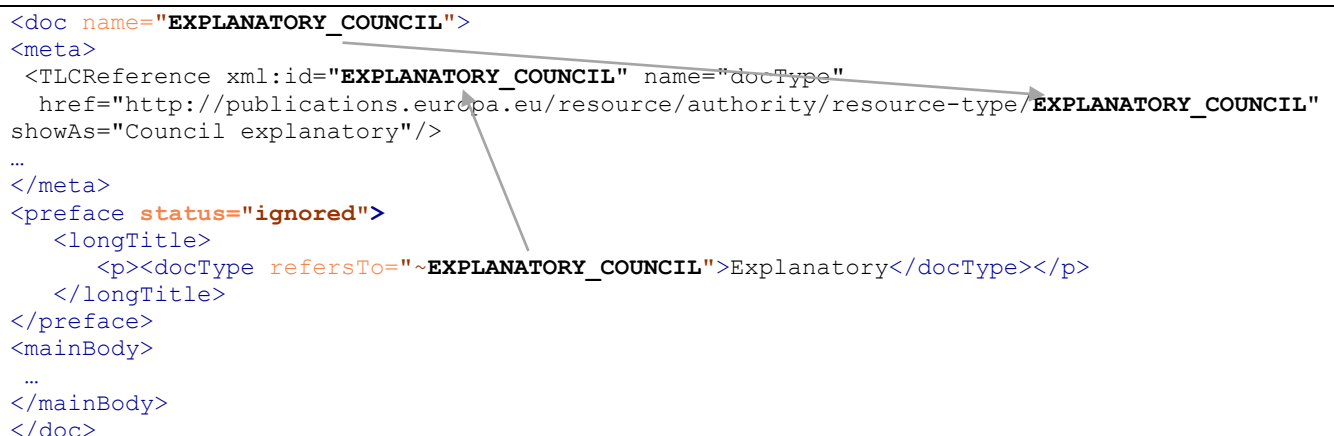
- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata MUST be set to "false".
- For the value of the @name attribute of the <doc>,
it must exist, as metadata, a <TLCReference name="docType"> with the information on the corresponding entry in the authority table "resource-type" (the authority code is the value of the attribute @name)(see example below)

PART 2.5 - 4.4 <preface>

The preface MUST always be present in the XML instance even if the title is not rendered.

In the case the title is not rendered, the attribute @status of the <preface> is set to "ignored".

The <longTitle> contains the document type of this document (<docType>). The <docType> MUST have a @refersTo attribute with a reference to the corresponding entry in the <references> part of metadata.



```
<doc name="EXPLANATORY_COUNCIL">
<meta>
  <TLCReference xml:id="EXPLANATORY_COUNCIL" name="docType"
    href="http://publications.europa.eu/resource/authority/resource-type/EXPLANATORY_COUNCIL"
    showAs="Council explanatory"/>
  ...
</meta>
<preface status="ignored">
  <longTitle>
    <p><docType refersTo="~EXPLANATORY_COUNCIL">Explanatory</docType></p>
  </longTitle>
</preface>
<mainBody>
  ...
</mainBody>
</doc>
```


PART 2.5 - 4.5 <mainBody>

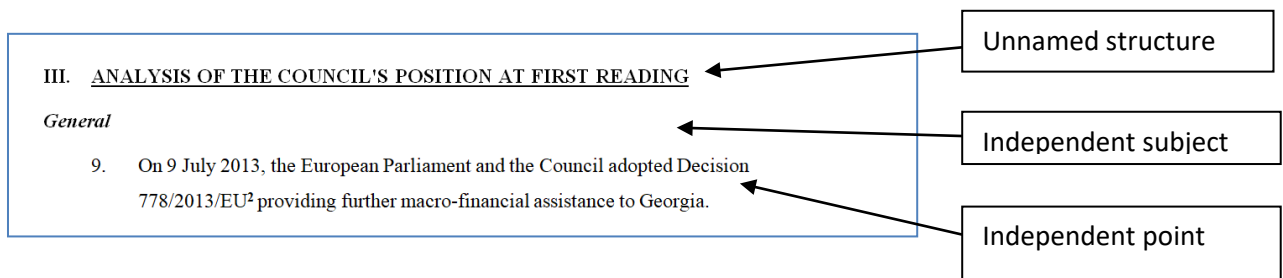
Drafting especially of Council internal documents requires due flexibility for the drafter in the composition of his document structures. When a user start drafting he/she might not know what would be the final structure of his draft as it is closely related on the complexity of the text itself that can evolve during the drafting.

PART 2.5 - 4.5.1 The structures

The main part of a Council Explanatory can have the following structure:

- unnamed structures in flat model
4 different types are defined: "type_1", "type_2", "type_3" and "type_4"; each type has a specific rendering.
To harmonize the document, there are constraints on the use of these types of unnamed structures, depending on the context.
- independent points.
- independent subjects inside the document without numbering systems.
These subjects must be more viewed as bookmark. They can have bullet or indent character at the beginning.

Example



PART 2.5 - 4.5.2 The representation in AKN4EU

PART 2.5 - 4.5.2.1 The unnamed structure in flat model (<division>)

This element MUST CONTAIN one "heading" (<num>) and one "subject" (<heading>).

It CANNOT contain any other element.

<division> MUST contain a @class attribute with one of these following value (in this order):

- "type_1"
<division> of first type
- "type_2"
<division> of second type
- "type_3"
<division> of third type
- "type_4"
<division> of the fourth type

PART 2.5 - 4.5.2.2 The independent subject**(`<crossHeading>` or `<block name="crossHeading">`)**

The independent subject is represented

- by the element `<crossHeading>` inside an Akoma Ntoso hierarchical element (`<level>`, `<point>`),
- by the element `<block name="crossHeading">` outside an Akoma Ntoso hierarchical element²⁴.

The `<crossHeading>` can be mixed with (= at the same level as)

- `<subparagraph>`, `<list>`, `<point>`, `<indent>`.

The `<block name="crossheading">` can be mixed (= at the same level as)

- `<division>`
- `<paragraph>`, `<level>`

An independent subject can have bullet or indent.

In this case, the bullet or indent are marked as

`<inline>` with the mandatory attribute `@name` set to "crossHnum"

Example

```
<block name="crossheading">
  <inline name="crossHnum">•</inline> ...
</block>
```

Or

```
<crossHeading>
  <inline name="crossHnum">-</inline> ...
</crossHeading>
```

PART 2.5 - 4.5.2.3 The mark-up of highlighting

The following new elements are defined, as they are used frequently inside the "Council Explanatory", in the Council internal documents:

- To mark-up a text that is strikethrough: `<span class="strikethrough">`

New text compared to the Commission proposal is indicated in **bold**. Deletions are marked by ~~strikethrough~~.

```
<p>New text compared to <u>the Commission proposal</u> is indicated in <b>bold</b>.
Deletions are marked by <span class="strikethrough">strikethrough</span>.</p>
```

²⁴ The next release of Akoma Ntoso will correct this, allowing to have `<crossheading>` outside the Akoma Ntoso hierarchical element.

PART 2.5 - 4.5.2.4 Example

Taking the following example:

II. MAIN CHANGES**Link to the General Data Protection Regulation (GDPR)**

5. The Presidency has tried to further clarify the interplay between the ePR and GDPR in a **new recital 2a** (merged with text coming from former recital 5, now deleted) and **art. 1(3)**. The aim of the changes was to make clear that the ePR is a *lex specialis vis-à-vis* the GDPR as far as personal data (i.e. of natural persons) are concerned. If no specific rules are established in the ePR, the provisions of the GDPR apply to any processing of electronic communications data that qualify as personal data. Moreover, since the GDPR as such does not apply to legal persons, recital 2a makes clear that relevant provisions of the GDPR shall apply to them only if the ePR makes a specific reference (as for example in art. 4a).

The representation in AKN4EU will be the following:

```
<division>
  <num>II.</num>
  <heading>MAIN CHANGES</heading>
</division>
<block name="crossHeading">Link to the General Data Protection Regulation (GDPR)</block>
<level>
  <num>5.</num>
  <content>
    <p>The Presidency has tried to further clarify the interplay between the ePR and GDPR
in a <b>new recital 2a</b> (merged with text coming from former
recital 5, now deleted) and <b>art. 1(3)</b>. The aim of the changes was
to make clear that the ePR is a lex specialis vis-à-vis the GDPR as far
as personal data (i.e. of natural persons) are concerned. If no specific
rules are established in the ePR, the provisions of the GDPR apply to
any processing of electronic communications data that qualify as
personal data. Moreover, since the GDPR as such does not apply to legal
persons, recital 2a makes clear that relevant provisions of the GDPR
shall apply to them only if the ePR makes a specific reference (as for
example in art. 4a).</p>
  </content>
</level>
...
```

PART 2.5 - 5 *The mark-up of the CNSDocANN*

A "Council doc annex" (CNSDocANN) can be

1. An <act> or <bill> (Regulation, Directive, Decision) ("Position of the Council", autonomous acts, ...)
2. A consolidated version of a <bill> or fragments of consolidated version of <bill>.
3. A <doc> with a specific document type (Council conclusions for example: <doc name="CONCL">)
4. Any other text without specific type
<doc name "DOC">.

All CNSDocANN must have as metadata at least the standard metadata

- The metadata required by Akoma NtosoAKN4EU (see AKN4EU PART1 – section 9.5<identification> section, as defined in AKN4EU 4.1 baseline),
The @value of the <FRBRprescriptive> metadata MUST be set to "true" or "false" depending on the type of CNSDocANN.

PART 2.5 - 5.1 Act or bill

The CNSdocANN can be an <act> or a <bill> element.

PART 2.5 - 5.1.1 The @name attribute

The attribute @name can be "DEC", "DIR" or "REG"

PART 2.5 - 5.1.2 Overall organization

The structure of the document is the classical structure of <act> or <bill>.

It can have one or more annexes.

In this case, the <act> (or the <bill>) contains an <attachments> section with one <attachment> element per annex.

Example

 COUNCIL OF THE EUROPEAN UNION Brussels, 25 September 2013 (OR. en) 11703/1/13 REV 1 Interventive File: 2011/0458 (COD) ECOFIN 649 RELEX 597 COEST 172 NIS 32 CODEC 1631 PARLNAT 228 LEGISLATIVE ACTS AND OTHER INSTRUMENTS Subject: Position of the Council at first reading with a view to the adoption of a Decision of the European Parliament and of the Council providing macro-financial assistance to the Kyrgyz Republic - Adopted by the Council on 23 September 2013 11703/1/13 REV 1 DGG 1A vm EN	DECISION No .../2013/EU OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL of ... providing macro-financial assistance to the Kyrgyz Republic THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION, Having regard to the Treaty on the Functioning of the European Union, and in particular Article 209 thereof, Having regard to the proposal from the European Commission, After transmission of the draft legislative act to the national parliaments, Acting in accordance with the ordinary legislative procedure¹, ¹ Position of the European Parliament of 11 December 2012 and position of the Council at first reading of ... (not yet published in the Official Journal). Position of the European Parliament of ... (not yet published in the Official Journal). 11703/1/13 REV 1 DGG 1A vm 1 EN
--	---

The CNSDocANN content will be marked as following:

```
<bill name="DEC">
  <meta>
    ...
    <references source="~...">
      <TLCTReference xml:id="DEC" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/DEC"
        showAs="Decision"/>
    ...
  </references>
</meta>
<preface>
  ...
</preface>
<preamble>
  ...
</preamble>
<body>
  ...
</body>
```

```

    <conclusions>
...
    </conclusions>
    <attachments>
...
        <attachment>
            <documentRef href="....xml" showAs="ANNEX ..."/>
        </attachment>
...
    </attachments>
</bill>

```

PART 2.5 - 5.1.3 <meta>

All CNSDocANN must have as metadata at least the standard metadata

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5),
The @value of the <FRBRprescriptive> metadata MUST be set to "true".
- For the value of the @name attribute of the <bill>,
it must exist, as metadata, a <TLCReference name="docType"> with the information on the corresponding entry in the authority table "resource-type" (the authority code is the value of the attribute @name).

PART 2.5 - 5.1.4 <preface>

The mark-up follows *the general mark-up for "EU acts"* (See AKN4EU PART 2 – 2.1 EU acts).

PART 2.5 - 5.1.5 <body>

The mark-up follows *the general mark-up for "EU acts"* (See AKN4EU PART 2 – 2.1 EU acts).

PART 2.5 - 5.1.6 <conclusions>

The mark-up follows *the general mark-up for "EU acts"* (See AKN4EU PART 2 – 2.1 EU acts).

PART 2.5 - 5.2 Fragment(s) of consolidated version of a document

PART 2.5 - 5.2.1 Introduction

During the Council internal workflow, in the context of legislative procedures, the Council internal documents are exchanged as basis for the discussion of the final Position of the Council.

For the Ordinary Legislative Procedure, the workflow starts with the reception of the Proposal for an Act issued from the Commission and ends with the final Position of the Council.

The intermediate Council internal documents are generally focused on one or more fragments of the Proposal and highlight the already accepted changes of the proposal and the new changes.

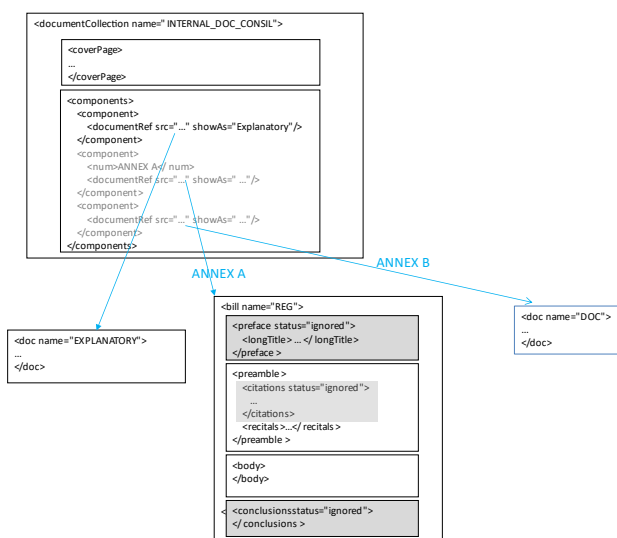
PART 2.5 - 5.2.2 The AKN4EU content of the CNSDocANN

For the mark-up of the CNSDocANN that is a consolidated fragment of a another document (<bill> or <doc>), the AKN4EU file always includes the whole current version of the document and the subdivisions that are not displayed are indicated by using a @status attribute set to "ignored".

The advantage of this method is to have always the complete last version of the bill without complex merges of multiples CNSDocANN.

The CNSDocANN as an XML file contains the whole <bill> with all the modifications already adopted; not visible parts of the <bill> have the attribute @status sets to "ignored".

The following picture shows a Council internal document with 2 CNSDocANN. The first one is a consolidated fragment of bill. In AKN4EU, the overall <bill> is present, not visible part have the attribute @status="ignored" (shaded)



PART 2.5 - 5.2.2.1 General structure in the case of <bill>

See AKN4EU PART 2 – 2.1 EU acts

PART 2.5 - 5.2.2.2 The specific mark-up inside the consolidated version of a document

These mark-up allows to mark the track changes inside the <bill>.

Any modification compared to the original version of the document is marked as following:

- <ins> is used to mark the insertion of text
- is used to mark the deletion of text

Article 4
Definitions

1. For the purposes of this Regulation, following definitions shall apply:
 - (a) the definitions in Regulation (EU) 2016/679;
 - (b) the definitions of 'electronic communications network', 'electronic communications service', 'interpersonal communications service', 'number-based interpersonal communications service', 'number-independent interpersonal communications service', 'end-user' and 'call' in ~~points~~ **paragraphs** (1), (4), (5), (6), (7), (14) and (21) respectively of Article 2 of [Directive establishing the European Electronic Communications Code];
 - (c) the definition of 'terminal equipment' in ~~point (1) of Article 1(1)~~ of Commission Directive 2008/63/EC⁷;
 - (d) **the definition of 'information society service' in point (b) of Article 1 (1) of Directive (EU) 2015/1535⁸.**

The mark-up will be the following:

```
<?xml version="1.0" encoding="UTF-8"?>
<article>
  <num>Article 4</num>
  <heading>Definitions</heading>
  <paragraph>
    <num>1.</num>
    <list>
      <subparagraph refersTo="~INP"><content>
        <p>For the purposes of this Regulation, following definitions shall apply: </p>
      </content></subparagraph>
      <point>
        <num>(a)</num>
        <content>
          <p>the definitions in Regulation (EU) 2016/679; </p>
        </content>
      </point>
      <point>
        <num>(b)</num>
        <content>
          <p>the definitions of 'electronic communications network', 'electronic
communications service', 'interpersonal communications service', 'number-based
interpersonal communications service', 'number-independent interpersonal communications
service', 'end-user' and 'call' in <del>points</del><ins>paragraphs</ins> (1), (4), (5),
(6), (7), (14) and (21) respectively of Article 2 of [Directive establishing the European
Electronic Communications Code]; </p>
        </content>
      </point>
      <point>
        <num>(c)</num>
        <content>
          <p>the definition of 'terminal equipment' in <del>point (1) of
</del>Article 1<ins>(1)</ins> of Commission Directive 2008/63/EC<authorialNote
placement="bottom" marker="10"><p>Commission Directive 2008/63/EC of 20 June 2008 on competition in
the markets in telecommunications terminal equipment (OJ L 162, 21.6.2008, p. 20-
26).</p></authorialNote><del>.</del><ins>;</ins>
          </p>
        </content>
      </point>
      <point>
        <num>(d)</num>
        <content>
          <p><b>the definition of 'information society service' in point (b) of Article 1 (1) of Directive
(EU) 2015/1535<sup>8</sup>.</b>
          </p>
        </content>
      </point>
    </list>
  </paragraph>
</article>
```



```

        <ins>(d)</ins>
      </num>
    <content>
      <p>
        <ins>the defintion of 'information society service' in point (b) of
        Article 1 (1) of Directive (EU) 2015/1535<authorialNote placement="bottom"
        marker="11"><p>Directive (EU) 2015/1535 of the European Parliament and of the Council of 9
        September 2015 laying down a procedure for the provision of information in the field of
        technical regulations and of rules on Information Society services (OJ L 241, 17.9.2015, p.
        1-15).</p></authorialNote>.</ins>
      </p>
    </content>
  </point>
</list>
</paragraph>
</article>

```

PART 2.5 - 5.3 Document (Council conclusions for example)

The CNSdocANN can be a <doc>.

The attribute @name for the 'Council conclusions' is "CONCL".

The structure of the document is identical to the structure of the "Council explanatory" except the fact that there can have a title of the document to display.

PART 2.5 - 5.3.1 Overall organization

This subdocument has the following structure:

- <meta> mandatory (metadata)
- <preface> mandatory
- <mainBody> mandatory
- <attachments> mandatory if it has annex(es)

PART 2.5 - 5.3.2 <meta>

- The metadata required by AKN4EU (see AKN4EU PART1 – section 9.5), The metadata required by Akoma Ntoso (<identification> section, as defined in AKN4EU 4.1 baseline), The @value of the <FRBRprescriptive> metadata MUST be set to "false".
- For the value of the @name attribute of the <doc>, it must exist, as metadata, a <TLCReference name="docType"> with the information on the corresponding entry in the authority table "resource-type" (the authority code is the value of the attribute @name)

PART 2.5 - 5.3.3 <preface>

If the <preface> contains information to display, the <preface> has no @status (it must be displayed).

The <longTitle> MUST exist. If it is not to display, it has the @status set to "ignored".

<preface> can contain a <block name="crossheading">. When this is the case, this block must be rendered as an "header".

Example (CoV DLV20 1.19)

This example is special:

- The title of the Conclusions is not displayed
- In place, a text is put in the header of each page.

Subject: European Council meeting (13 and 14 December 2018)
– Conclusions

Delegations will find attached the conclusions adopted by the European Council at the above meeting.

This is the text of the <longTitle> of the "<doc name='CONCL'>

EUCO 17/18

EN

Conclusions – 13 and 14 December 2018

The <block name="crossheading"> in <preface> is displayed as header.

I. MULTIANNUAL FINANCIAL FRAMEWORK

1. The European Council welcomes the intensive preparatory work carried out during this semester on the future Multiannual Financial Framework and takes note of the Presidency's progress report. It calls on the incoming Presidency to continue that work and develop an

The AKN4EU mark-up of the <preface>:

- Set the @status of <longTitle> to "ignored"
- Add in the <preface> a <block name="crossheading">

```
<preface>
  <longTitle status="ignored">
    <p>European Council meeting (13 and 14 December 2018) – Conclusions</p>
  </longTitle>
  <block name="crossHeading">Conclusions – 13 and 14 December 2018</block>
</preface>
```

PART 2.5 - 5.3.4 <mainBody>

Same as [the 'Council Explanatory' subdocument](#).

PART 2.5 - 5.3.5 Examples

Example (CoV DLV20 1.20)

ANNEX

DRAFT COUNCIL CONCLUSIONS ON THE UPDATED BIOECONOMY STRATEGY "A SUSTAINABLE BIOECONOMY FOR EUROPE: STRENGTHENING THE CONNECTION BETWEEN ECONOMY, SOCIETY AND THE ENVIRONMENT"

The Council of the European Union:

1. RECALLING:

- The European Council conclusions of March 2019, which underlined a strong economic base as of key importance for Europe's prosperity and competitiveness, and in view of a globally integrated sustainable and competitive industrial base, invited the Commission to present by the end of 2019 a long term vision for the EU's industrial future, touching upon all relevant policy areas¹;
- the European Council on 20 June 2019, where the European Council invited the Council and the European Commission to advance work on conditions, the incentives and the enabling framework to put in place so as to ensure a transition to a climate neutral EU in line with the Paris agreement²;

The mark-up will be the following:

```
<doc name="CONCL">
  <meta>
    ...
    <references>
      <TLReference xml:id="CONCL" name="docType"
        href="http://publications.europa.eu/resource/authority/resource-type/CONCL"
        showAs="Council conclusions"/>
    </references>
  </meta>
  <preface>
    <longTitle>
      <p>DRAFT <docType refersTo="~CONCL">COUNCIL CONCLUSIONS</docType> ON THE UPDATED
      BIOECONOMY STRATEGY "A SUSTAINABLE BIOECONOMY FOR EUROPE: STRENGTHENING THE CONNECTION
      BETWEEN ECONOMY, SOCIETY AND THE ENVIRONMENT"</p>
    </longTitle>
  </preface>
  <mainBody>
    <paragraph>
      <content>
        <p>The Council of the European Union:</p>
      </content>
    </paragraph>
    <level>
      <num>1.</num>
      <list>
        <subparagraph refersTo="~INP">
          <content>
            <p>RECALLING:</p>
          </content>
        </subparagraph>
      </list>
    </level>
  </mainBody>
</doc>
```

```

    </content>
  </subparagraph>
  <indent>
    <num>-</num>
    <content>
      <p>The European Council conclusions of March 2019, which underlined a strong
economic base as of key importance for Europe's prosperity and competitiveness, and in view
of a globally integrated sustainable and competitive industrial base, invited the
Commission to present by the end of 2019 a long term vision for the EU's industrial future,
touching upon all relevant policy areas<authorialNote marker="1" placement="bottom">
<p>EUCO 1/19</p> </authorialNote>;</p>
    </content>
  </indent>
  <indent>
    <num>-</num>
    <content>
      <p>the European Council on 20 June 2019, where the European Council invited the
Council and the European Commission to advance work on conditions, the incentives and the
enabling framework to put in place so as to ensure a transition to a climate neutral EU in
line with the Paris agreement<authorialNote marker="2" placement="bottom"><p>EUCO
9/19</p></authorialNote>;</p>
    </content>
  </indent>
</list>
</level>
</mainBody>
</doc>

```